

Management and Working of the Forests

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State of Bihar - Act

Management and Working of the Forests

BIHAR

India

Management and Working of the Forests

Rule MANAGEMENT-AND-WORKING-OF-THE-FORESTS of 1887

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Management and Working of the Forests

Chapter-1 Administrative Rules and Instructions

1.

Classification of forests in Bihar.

- The forests in Bihar are classified as follows: -

A. - Under the Indian Forest Act, 1927.

1. [Reserved Forests]

[1799 Sq. Miles]

...Sq. miles.

2. [Protected Forests]

[1220 Sq. Miles.]

...Sq. miles.

(a) Demarcated Protected Forests

...Sq. miles.

(b) Undemarcated Protected Forests

...Sq. miles.

B. - Under the Bihar Private Forest Act.

1. Private Protected Forest

...Sq. miles.

C. -[Unclassed Forests]

[Sq. Miles Please Note all these figures are old data as provided in Government Publication Bihar & Orissa Forest Manual. Now a days, it is measured in Sq. Kilometers. Latest area may be different.]

, which do not fall under any of the above categories.

Note. - For definition of each type of forests, see the Indian Forest Act, 1927.

2.

Forest settlements.

- The following procedure is prescribed for settlement of forests areas:-

Follows memorandum by the Inspector-General of Forests, published in Government of India Circular No. 5-F, dated the 27th April, 1887.

1. Under Section 3 of the Indian Forest Act (XVI of 1927) it rests with State Government to decide what forests and waste lands, being the property of the State, or over which the State has proprietary rights, or to the whole or any part of the forest-produce of which the State is entitled, should be constituted a Reserved Forest. There may be forests and wastes so situated as to make it impolitic to proceed with their settlement; others, again, may be burdened to such an extent by adverse rights of users that the benefits accruing to the State would not compensate for the expensive settlement prescribed by the Forest Act.

But, as a rule, it may be laid down that it is the duty of Government to secure the best possible legal title (as prescribed by the Forest Act), to the property, or to such share as it owns, in all forests and waste lands, defined in Section 3 of the Act. Having this in view, District Officers should be instructed to initiate proposals for the settlement of all forest and waste lands against the reservation of which, in the opinion of the State Government, no forcible reasons exist.

These proposals by the District Officers must, naturally, be of a general character only. They will simply specify the limits of the land in question in such a way as to fix its situation and to be readily intelligible to interested parties; they should not enter into any discussions likely to affect the future settlement, and render ineffective the provisions of Section 5 of the Act.

2. Whenever a State Government is satisfied that no special reasons exist why land, fulfilling the description in Section 3 of the Act, should not be constituted a Reserve, the notification prescribed in Section 4 should issue, and a Forest Settlement Officer be appointed.

3.

The procedure of a Forest Settlement Officer may be considered under three separate heads viz: -

(1)

The procedure previous to the adjudication of claims;

(2)

The adjudication as a Civil Court;

(3)

The action taken after the adjudication of claims.

4.

Under (1) the Forest Settlement Officer is required to -

(a)

specify the limits of the proposed forest*;

(b)

explain the consequences which will ensue on the reservation of the forest;

(c)

fix a period during which claims may be preferred either in writing or in person.

*A forest tract proposed to be reserved frequently includes village land or lands the ownership of which is at least questionable, and it has been considered inconsistent with Section 5 of the Act to permit new clearings in such land. This circumstance may result in hardships or militate against reservation. The difficulty can be overcome by excluding these lands by special mention, from the revisions of the preliminary Notifications.

5.

Under (2) the Forest Settlement Officer, acting as a Civil Court, is required to record the substance of all statements regarding claims to rights invited under Section 6. He is further required to make a similar record of any rights of which the existence is ascertained, whether from previous records or by local inquiry.

Claims can be divided into three classes-

1. Claims to a right in, or over land.
2. Claims to forest produce, including pasture.
3. Claims to right of way or water course.

With respect to class (3) the Forest Settlement Officer has only to satisfy himself of the existence of the ways or water-courses in question and to record them as such. Any action in regard to them is Ruled by Section 25 of the Act.

Referring to classes (1) and (2) the Forest Settlement Officer's first duty is to adjudicate on the evidence and facts before him, to decide whether the rights claimed are legally established or not, and to pass an order admitting or rejecting them accordingly in whole or in part. It is clearly the intention of the Act to settle these claims on their legal merits and not with reference to any special objects which were had in view when it was proposed to constitute the forest a Reserve. Claims must be admitted or rejected within the limits to which the right has been substantiated. State Government should, as a rule, appoint some person, under Section 19 (who may most suitably be the Local Forest Officer) to attend at the enquiry, plead, and act on behalf of the State before the Forest Settlement Officer. This person will have a proper legal standing, be able to cross examine witnesses who support claims, produce evidence to rebut claims, comment on any documents or evidence; and if he desires to prefer an appeal against any decision, the Forest Settlement Officer, should give him a certified copy of such decision. It is of vital importance that only such rights should be admitted as are legally proved to exist, and then only to the extent proved.

There is nothing in the Forest Act that justifies the Forest Settlement Officer in providing for the prospective wants of non-existing settlers, or for a future and possibly more numerous generation; nothing that permits the concession, by a Forest Settlement Officer, of more extensive rights than those which he finds to exist at the time of settlement. The rights claimed must be actually existing rights, vested in an individual or person, or in a definite body of persons, such as for instance, a number of co-owners, or a village community. They may be rights in grass, unconnected with the ownership of immovable property (houses or land) or they may be rights attached to the ownership of such property. They may be rights enduring only for a certain period, or for the life of the person in whom they are vested, or they may be rights which will pass to the heirs of that person, or pass in perpetuity with the property to which they are attached. But they must be existing and vested in some person, or body of persons, who can claim them at the time of settlement.

If the Forest Settlement Officer is permitted to provide for the indefinite prospective wants of an indefinite prospective number of right-holders, he may be providing for the gradual absorption and final extinction of the actually existing rights of the State.

It is conceivable that a claimant might establish a right of such a nature that it would possibly, in course of time, entitle him to larger benefits from forest than he was entitled to at the time of settlement. For instance, he might show that he was entitled to pasture for all cattle employed by him in the cultivation of his land, and he might be in possession of extensive waste land, which he was gradually bringing under cultivation a process which of necessity would tend to increase the number of his cattle. Here the Forest Settlement Officer though dealing only with "actually existing rights", would also have to take into account "prospective wants".

In such a case, which could probably only arise when the right in question had been specially conferred by the terms of a former grant, revenue settlement, or sanad, it would seem reasonable to admit the same within a maximum, which should be determined with reference to the rights actually enjoyed by the claimant at the time of making the record, and with due regard to the potential capabilities of the forest.

A prescriptive right, to exist at all, must be proved to have been regularly exercised in the past; and in no case can a prescriptive right over any forest be held to have been acquired by the continuous purchase of its produce from the owner, the element of adverse enjoyment and of enjoyment as of right on which prescription rests being wholly wanting.

In regard to rights of class (1), admitted in whole or in part, three courses are open to the Forest Settlement Officer, and

these are clearly stated in Section 11 of the Act.

With regard to rights of class (2) similarly dealt with under Section 12, the Forest Settlement Officer is to record, in the manner prescribed in Section 13 his decision in all cases, whether in favour of the claimant or otherwise; and it would probably be found convenient if the Settlement Officer briefly entered an epitome of the grounds for his decision, the evidence and finding being, as a matter of course, duly recorded at length in the Judicial proceedings. Providing for this and other details of procedure within the provisions of the Act, as explained in this Memorandum, the State Governments may also make Rules under Section 76(d) of the Act, similar to those issued by the Government of Madras under Section 63(b) of Act V of 1882.

Section 14 of the Act provides for a complete record of the extent of such rights as have been admitted, and of the limits within which claims have been established. The preparation of this record brings to a close the duties of the Forest Settlement Officer when proceeding as a Civil Court.

6.

The Forest Settlement Officer should now proceed, with due regard for the maintenance of the forest, to arrange for the continued exercise of the rights to the extent admitted.

Under Section 15 he is at liberty to adopt one of three courses:-

(a)

Transfer the burden of the right to some other conveniently situated and available forest.

(b)

Alter the proposed boundaries, so as to exclude an area of forest sufficient for the exercise of the rights admitted and convenient for the purpose.

(c)

Record an order continuing the exercise of the right to the extent admitted at such seasons in such portions of the forest, under such rules as may from time to time be prescribed by the State Government.

It is evident that this Section is only intended to regulate the legally admitted rights, and gives no power to alter or extend such rights.

If the Settlement Officer acts under (a) or (b), the Section explains clearly enough what course he should follow.

Under (c), the Forest Settlement Officer must record an order declaring that the claimants of the admitted rights may continue to exercise the rights to the extent admitted; (a) at such seasons; (b) within such portions of the proposed forest; and (c) subject to such Rules as may, from time to time, be prescribed by the State Government.

The Rules that are here referred to must not substantially detract from the rights of either the claimant or the State. Such Rules are not intended to define the legal status of rights claimed, but only to control the exercise of rights admitted for the power to make such Rules is limited, and does not extend to fixing the number of cattle which a right-holder may send into the forest, or the amount of produce he may extract. An order admitting a claim to rights of pasture or forest produce cannot, therefore, be limited or extended by any declaration in Rules framed under Section 15(c) of the Forest Act.

The Rules might be such as to require, e.g., cattle to be marked, to wear bells, or produce to be removed by certain roads.

In cases where the right admitted and recorded is of such a nature, that it would, in course of time, entitle the right-holder to larger benefits from the forest than he enjoyed at the time of settlement, a maximum should be fixed in such a way as to render substantial justice to the claimants and to the State, having due regard for the well-being of the forest.

For Example for a few years immediately, preceding settlement, the cattle of a village may have been considerably reduced by disease or other causes. It is, in this case, obviously desirable to fix a maximum number of cattle in excess of what exist. Similarly, a village, owing to dacoities has been reduced by the emigration of some of its inhabitants who, in more settled times, may be expected to return. In such a case it may be necessary to fix the bamboos, etc. at a quantity in excess of actual present requirements.

Section 16 provides that if a Reserved Forest cannot be maintained as a forest side by side with the continued exercise of such rights as have been admitted over it, the Forest Settlement Officer may commute such rights as render a proper treatment of the forest impossible, either by cash payment or by the grant of land, or in such other way as he thinks fit. The State Government may make Rules in reference to this question which may prescribe the basis upon which money compensation may be assessed, or land be given in exchange (Madras Government Notification G.O. No. 970, dated

27th August, 1884, paragraphs 12 and 13).

7.

It is, without doubt desirable that a professional Forest Officer should be associated with the Forest Settlement Officer to assist and advice as to the action the latter may wish to take under Sections 15 and 16. The question whether a forest can be maintained or not under exercise of certain rights, and whether Section 15 or Section 16 is applicable to the case in point, is one demanding practical experience and professional knowledge and the advice of the Forest Officer, besides being useful as a means of pointing out what it is practicable to effect with due regard to the maintenance of the forest should also prove of material assistance in arranging for a settlement of all claims on a simple and stable basis.

The Forest Officer may be usefully consulted in the final selection of boundaries.

8.

This brings the work of the Forest Settlement Officer under the Act to a conclusion, and, subject to any orders passed on appeal, secures, once for all, the sound legal status of the Reserved Forest in question.

9.

The management of the forest, with the legal obligations imposed at the time of settlement as a first charge upon it, should now be left to the provisions of a Working Plan, drawn up by a professional Forest Officer after full examination of the capabilities of the forest and the demands, local or other, which it can supply, and with careful regard to the orders and Rules of the State Government under Section 15, clause (C).

10.

Appellate Courts can only decide on the same lines as those upon which the Forest Settlement Officer had originally passed judgement and the State Government, when revising such procedure under Section 18 should be guided by the same principles.

11.

[(1) At this stage, it becomes the duty of the State Government to publish the final notification declaring the forest to the reserved. The limits of the reserved forests should be described in the final notification on the following lines-

(a)

Where the boundaries are described in separate sheets of 16" = 1 mile cadastral survey maps prepared by the Survey and Settlement Department.

"The limits of the reserved forest are the lines marked in green on a copy of each of the 16"=1 mile cadastral maps of the villages specified below, which has been signed by the Deputy Commissioner/Collector of the..... district and deposited in his record room".

(b)

Where a special map of the reserved forest on the scale of 16" = 1 mile has been prepared under the orders of the Deputy Director of Surveys, Bihar-

"The limits of the reserved forest are the lines marked on a copy of the special map on the scale of 16" = 1 mile prepared under the orders of the Deputy Director of Surveys, Bihar, which has been signed by the Deputy Commissioner/Collector of the district and deposited in the record room.

The special map referred to in clause (b) above should show such details of village land reproduced from the cadastral survey map as are necessary for easy check of the forest boundaries.]

(2)

[Government of Bihar Revenue Department letter No. 3304-R-IIIF-205 dated 30.7.1937 and 644-R-IIIF-143-37 dated 22-12-1937]. - The boundary according to the map is the authoritative boundary and great care must be taken by the Forest Settlement Officer to see that the boundary on the ground agrees accurately with the map. The lines are drawn on the map by him as provided in Rule 62(c) of the Forest Manual and he should see that the demarcation on the ground agrees with the map. If any changes are ordered in appeal the Forest Settlement Officer should see that the changes ordered are made in the map in the lines demarcated on the ground. A certified copy of the map should be kept in the custody of Government and another such copy should be handed over to the Forest Officer after the issue of the notification under Section 20. The Deputy Commissioner/Collector should sign the following certificate on each sheet of the copies of the maps deposited in his record room.

"Certified that the green lines mark the boundaries of the forest and waste lands declared under Notification No of the to be reserved forests".

(3)

Where No 16" cadastral map of the area exists a map on that scale should be prepared by the Forest Settlement Officer as provided under Rule 62(c) of the Forest Manual, and he should see that the demarcation on the ground agrees with the map as far as possible. But in view of the possible inaccuracy of such a map the notification should in such cases be according to the demarcation on the ground and not according to the map. Where the boundary follows natural features, such as streams, hill ridges, etc., such natural features should be referred to in the description of the boundary. Where there is no such natural feature on the boundary it should be described by numbered pillars, and care should be taken at the time of demarcation that the position of such numbered pillars is clearly shown on the ground. The distance between pillars should be measured with accuracy and given in the notification.

(4)

As soon as the date mentioned in the notification is past the Forest Settlement Officer's duty ceases and the Forest Officer should proceed at once to improve the demarcation of the boundary on the ground where necessary according to the Rules of the Forest Department.

12.

Under Section 22, the State Government may, within five years, revise any arrangement, rescind or modify any order, under Sections 15, and 18 including any orders of revision passed by them under the latter Section, provided such arrangements or orders are replaced by some other of the proceedings possible under Sections 25 or 26. No new rights can be admitted under this Section.

13.

Under Section 23 no right of any description can be acquired in or over a Reserved Forest, except by succession or under a grant or contract in writing made by or on behalf of the Government, or of some person in whom such right was vested when the notification under Section 20 was issued. (Approved in Government Order No. 12203-III-F-66-R. dated 2.11.1933).

3. Further instructions regarding Forest settlements.

- To ensure correct procedure in the matter of Forest Settlement, the following further instructions have been approved by the State Government:-

(a)

With reference to the provisions of Section 6 of the Forest Act (XVI of 1927), the Forest Settlement Officer should take steps for the publication of a proclamation in Form No. 39. A translation in the vernacular of the proclamation as filled up for each proposed reserve should be printed for issue. The Forest Settlement Officer is responsible for the sufficiency of the publication of the proclamation. With this object he should consult the Collector in any case in which he is in doubt as to the method or places of publication. The action taken by the Forest Settlement Officer in regard to the publication of the proclamation must be fully recorded in his proceedings.

(b)

In accordance with Section 7 of the Forest Act (XVI of 1927), the Forest Settlement Officer should record all claims made and all rights ascertained. The procedure differs in the case of claims relating to the privilege of practising, shifting cultivation and other claims which relate to rights. Claims to the privilege of practising shifting cultivation and orders passed thereon should be recorded in Form No. 40 which will form a complete record of the proceedings. The claims to rights and orders passed thereon should be recorded in Form No. 41, which provides for a concise record of the proceedings under the settlement and appeal.

(c)

The Forest Settlement Officer, in order to complete his proceedings has to prepare a short report and a map of the proposed reserved forest showing the original boundaries and the modifications made to them (if any) during the settlement. He should also prepare a draft notification in Form No. 42 for publication under Section 20 the Forest Act (XVI of 1927).

(d)

[All forest settlement orders, before they are issued be submitted in draft by the Forest Settlement Officer to Government through the Collector and Commissioner or, if the Collector is the person appointed to hear appeals under Section 17 of the Forest Act (XVI of 1927), through the Commissioner direct, with such remarks as the Chief Conservator of Forest may have to make on the point, whether the rights proposed are excessive or whether continued existence of the full rights declared will be deleterious to the continued existence of the forest. These orders will be returned to the Forest Settlement Officer through the channel in which they were received with such remarks as the Government may have to

make for his consideration.]

[Substituted vide C.S. No. 14, dated 9.7.1938.]

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(e)

The following papers will be forwarded by the Forest Settlement officer to the Officer appointed to hear appeals:-

(i)

A copy of the Notification under Section 4 of the Forest Act (XVI of 1927)

(ii)

A copy of the proclamation under Section 6 of the Forest Act, 1927, in Form No. 39 with a record of manner in which it was published.

(iii)

A record of claims and the manner in which they have been dealt with in Form Nos. 40 and 41.

(iv)

A map of the proposed reserve showing the boundary of the area notified under Section 4 of the Forest Act (XVI of 1927) (in red) and the boundary of the area which is finally selected for reservation (in green).

(v)

A draft Notification for publication under Section 20 of the Forest Act, 1927, in Form No. 42.

(vi)

The Collector's and Divisional Forest Officer's note.

(vi)

The Forest Settlement Officer's report.

(f)

The Appellate Officer will retain the papers until the period of appeal is over; he will fill in columns 7 and 8 of Form No. 41 to show what appeals (if any) were made, and how they were disposed of; and he will then forward them through the Collector, Commissioner, and the Chief Conservator of Forests to the State Government.

(g)

The proceedings of the Forest Settlement Officer, consisting of parts (i) to (vii) detailed in paragraph (e) above will be printed and copies supplied to the local officers.

4. Amended description of boundaries.

- Cases arise in which it may be desirable to publish, by means of a fresh notification, amended descriptions of the boundaries of forest reserves already notified under Section 20 of the Indian Forest Act (XVI of 1927) or under other forest enactments. It has been ascertained that there is no legal objection to this course, if the fresh notification merely provides for the substitution of a more exact and definite description of the boundaries for that which was originally notified, and which, though purporting to describe the boundaries as they existed at the time has subsequently become incorrect or proved to be open to misconstruction. The appended form of notification is considered suitable for such cases, and may be employed whenever necessary. This procedure must not be held to extend to any such alteration of the boundaries on the ground as would involve either the inclusion of new areas or the exclusion of any lands which have been declared by the previous notification to be Reserved Forest. Such changes require either a new settlement of the additions it is proposed to make, or, in the case of disafforestation, the previous [sanction of the Government of India]

[The sanction of the Government of India is not necessary now (vide Section 3 of the Indian Forests Act, 1927), and the procedure indicated in Rule 65 (Government Publication Here R-6 below should be followed.)

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5. Modifications of boundaries.

- Copies of all Notifications issued by State Governments constituting or modifying the boundaries of Reserved and Protected Forests, together with indicative tracings or sketch maps, should be supplied direct as soon as they are issued to the Deputy Director of Surveys, Gulzarbagh, for the purpose of enabling that officer to make the requisite additions or alterations in the corresponding maps in his office.

The boundaries of all forests whose limits have been decided shall be demarcated on the ground by marks which should be easily recognised. The marks used for the purpose shall ordinarily consist of-

(a)

Pillars-According to local conditions there may be-(i) Earthen with soded grass (ii) Stone cairns (iii) Loose stone with timber (iv) Concrete pillars. All pillars should bear a number as shown in the demarcated map..

(b)

Agave planting-Agave should be planted on both sides of the pillar along the boundary line indicating the direction.

(c)

Cleared lines-A belt of land as prescribed in working plan will be kept cleared of all vegetative growth along the boundary line.

(1)

(a)

The Forest guard incharge of the sub-beat will be responsible for maintenance and protection of all the boundary marks in the forests of his sub-beat.

(b)

The Forest Guard shall specially inspect each forest boundary mark in his sub-beat at least once in every three months, and a record of his inspection is to be entered in his diary when it may occur.

(2)

(a)

The Beat Officer will be responsible for the maintenance and protection of the boundary marks in the forests of his beat. He will see that they are maintained in proper form, the numbers are freshened and that required measure for agave planting upon the forest boundaries is undertaken and performed.

(b)

The Beat Officer should inspect the boundary mark in the forest of his Beat once every year and will make a record of every inspection made in his diary when it may occur and also submit a special report to the Divisional Forest Officer upon the state and condition of the boundary marks, forest boundaries, agave planting etc. as soon as he may have completed the inspection of the boundaries of any forest village or forest block.

(3)

The Range Officer will, specially inspect and report upon the state and condition of the forest boundaries and forest boundary marks of not less than 5 km. of forest boundary in every sub-beat in his range. A record of inspection made will be entered in his diary when they may occur.

Every forest shall be managed according to a working plan.

The procedure with regard to the preparation and revision of working plans is dealt within the Code of working plan procedure in Bihar and Orissa. The procedure with regard to the exchange of working plans between States and the instructions for writing up control forms and compartment history forms are also embodied in the Code.

6. Disafforestation.

- In submitting proposals for disafforestation to the State Government the proposals should be in the following form and should be accompanied by a map and the recommendations of the Revenue and Forest Authorities:-

6A.

[Instructions in connection with the Indian Forest (B. & O. Amendment) Act, 1935 regarding suspension of rights of pasture or to forest produce.

[Inserted vide C.S. No. 15 dated 9.7.1938.]

- The following instruction are issued in connection with sub-section (3) of Section 26 and sub-section (2) of Section 33 of the Indian Forest Act, 1927, as Amended by the Bihar and Orissa Amendment Act of 1935.

(a)

The District Officer should cause to be distributed to each village in which the tenants have any right in reserved or protected forests a copy of the following notice, in Hindi:-

"It has come to the notice of the Government that in some reserved and protected forest theft of forest produce and illicit felling of trees is going on to such an extent that it is becoming difficult to save those forests from destruction. It has, therefore, been found necessary to amend the law to empower Government to check such theft. In future, if theft of forest produce occurs within a reserved or protected forest and if such theft seems to be likely to imperil the future yield of the forest, Government may order that all rights to pasture or to forest produce in that forest shall be suspended for a period up to 4 years. It is the duty of the villagers of.... to do what they can to prevent such thefts and to report to the authorities any case of theft which may come to their notice. If this is done, it is hoped that it will never become

necessary to take the step of suspending rights in the forest".

(b)

The Divisional Forest Officer will carry out a special annual inspection of one-fifth of the total area of forest in each felling series and will send a written report to the District Officer, with a copy to the Conservator of Forests, stating the extent to which in his opinion theft of forest produce has gone on. He should state also the number of cases of theft by-

(i)

right-holders, and

(ii)

non-right holders, in the felling series concerned reported during the year preceding his inspection. If the Divisional Forest Officer is of opinion that theft has been going on in a considerable scale, he should support his opinion by reference to the observations made by him on the spot. If the Divisional Forest Officer is of opinion that rights should be suspended, he should give full reasons for that opinion.

(c)

On receipt of a copy of a report from the Divisional Forest Officer recommending that rights should be suspended, the Conservator of Forests will send his opinion on the recommendation to the District Officer.

(d)

If the District Officer, after considering the report of the Divisional Forest Officer is of opinion that theft of forest produce has been going on in a considerable scale, he may issue a warning to the right-holders of the forest concerned.

(e)

On receipt of a recommendation of the Divisional Forest Officer that rights in a forest be suspended and of the opinion of the Conservator of Forests on that recommendation, the District Officer should hold or cause the Subdivisional Officer to hold a local enquiry into the matter. After considering the results of that enquiry the District Officer should submit his report and recommendation to the Commissioner, who should forward it to the State Government with his recommendations. [Government of the Bihar Revenue Department Letter No. 3690- III-132-R. dated - 9-4-1936.]

7. Registration of Property marks.

- [Notification No. 1592 dated the 20th March, 1906]-The following Rules are prescribed for the registration of property marks, in the Singhbhum district under Section 41 of India Forest Act (XVI of 1927).

1. Any person who desires to register a property mark to be placed on timber which he intends to transport in or through the Kolhan or Porahat Estate, Singhbhum district, may apply in writing to the Forest Officer-in-charge of the Saranda, or Kolhan, or Porahat or Chaibasa Forest Division, submitting with his application -

(i)

a copy and description of the mark which he wishes to be registered;

(ii)

a statement of the period for which he wishes the mark to be registered; and

(iii)

the amount of the fee due under these Rules for registration.

2. Every registration of a property mark by the Forest Officer shall hold good for one or for three years from the 1st July preceding the date of registration, whichever the applicant may desire, and the fee payable by him shall be Rs. 2 for each registration for one year and Rs. 4 for each registration for three years. Double fees shall be charged for any additional property mark in excess of the first one registered in the name of an applicant.

3. The Forest Officer may refuse to register any mark -

(a)

which he considers resembles too closely any Government property mark or any mark he has previously registered in favour of another person; or

(b)

if, he is of opinion that the applicant does not possess and is unlikely to obtain possession of timber requiring to be marked with a property mark, or

(c)

if, on account of a previous conviction of the applicant of any serious forest offence, or for any other reason which seems to him sufficient, he is of opinion that the applicant cannot be trusted with a registered property mark; or

(d)

if, he has already registered one or more property marks in the applicant's favour, and is of opinion that the latter has not shown sufficient cause for the registration of an additional mark.

4. An appeal shall lie from any order by the Forest Officer refusing to register a mark to the Conservator of Forests, Bihar and, if the applicant owns timber outside the boundaries of the Kolhan and Porahat Estates and desires to transport it through either or both of these estates, from any such order passed on appeal by the Conservator of Forests to the Commissioner of the Chota Nagpur Division.

Form of Certificate of Registration of a Property Mark in the Singhbhum District

Certificate of registration of a property mark for use in Singhbhum district.

Person in whose favour the mark is registered.

Date of registration.

Date upto which registration will hold good.

Registration fees received, (counterfoil)

Copy of mark.

Signature of the Forest Officer.

8. Transit of timber etc.-B. & O. Government Notification No. 8454-R-III-F-201 dated 24.12.1918.

- The following Rules under Section 41 of the Indian Forest Act (XVI of 1927), for the transit of timber, firewood and sabai grass in and through the Singhbhum district, are laid down:-

I. In these Rules "Timber" includes all pieces of wood which being sawn or squared exceed six feet in length and nine square inches sectional area or being in the log exceed six feet in length and four and a half feet in girth at the large end.

"The Forest Officer" means the Forest Officer-in-charge of the Saranda or Kolhan or Porahat of Chaibasa Division.

"Sabai grass" includes string or rope made from Sabai grass.

II. No timber shall be imported into the tracts respectively called the Kolhan Estate and the Porahat Estate situated in Singhbhum district from any place outside the said tracts, without a written permit previously obtained from the Forest Officer showing:-

- (a)
the name or designation of the owner of the timber;
- (b)
the descriptions and amounts of timber which may be imported;
- (c)
the property mark or marks which each piece of timber must bear;
- (d)
the road or roads by which the timber must be transported and its destination or destinations; and
- (e)
the period during which the permit holds good.

III. No piece of timber shall be imported into the said tracts, or removed from any reserved forest in the said tract or transported from any other part of the said tracts to any railway station on the Bengal Nagpur line, or to the towns of Chaibasa or Chakradharpur unless it bears a property mark which has been registered by the Forest Officer.

IV. Nothing in Rules II and III shall apply to timber imported into the tracts or places therein mentioned by bona fide raiyats of the same for their own use; but not for sale or barter.

V. Every person transporting timber cut in any forest or other land in the Kolhan Estate, or any Reserved or Protected forest in the Porahat Estate to any railway station or town referred to in Rule III shall previously obtain, and shall present for examination on demand by any Forest Officer or Police Officer, a permit signed by the Forest Officer or any other Forest Officer authorised by the Forest Officer in this behalf showing-

- (a)
the name of the owner of the timber;
- (b)
the number of dimensions of the pieces of timber of which the transport is permitted;
- (c)
the mark or marks to be borne by each piece of timber;
- (d)

the railway station or town to which the timber must be transported; and

(e)

the date upto which transport is permitted.

VI. Every person transporting timber under cover of a permit granted under Rule V shall, on arrival at the destination mentioned in his permit, present the timber for examination at the forest checking station established by the Forest Officer and shall present the permit authorizing its transport at the said checking Station on or before the date of expiry of the permit.

VII. No person shall transport firewood, charcoal, bamboos or sabai grass cut or manufactured in any part of the Kolhan Estate or in any Reserved or Protected Forest in the Porahat Estate, to the town of Chaibassa or Chakradharpur without a permit issued by a forest employee authorised by the Forest Officer to issue such permits showing:-

(a)

the kind and amount of firewood, charcoal, bamboos or sabai grass he is authorised to transport; and

(b)

the date upto which the permit holds good and before entering either of the said towns such person shall proceed to one or other of the forest checking stations established by the Forest Officer and present the firewood, charcoal, bamboos or sabai grass and the permit to the officer-in-charge of such checking station for examination.

VIII. Any person who in contravention of these Rules or of the conditions of any permit issued thereunder:-

(a)

imports or transports timber;

(b)

transports firewood, charcoal, bamboos or sabai grass; or

(c)

fails or refuses to present his permit or timber in the manners required by these Rules, shall be punished with simple imprisonment for a term which may extend to one month or with fine which may extend to five hundred rupees or with both.

The Governor is further pleased to direct in exercise of the power conferred by Section 41 of the same Act that Rules V and VI of the abovementioned Rules do not apply to timber for the checking of which special arrangements are made and embodied in a lease executed by a lessee.

Marking & Checking of Timber Rules

9. Marking and checking of timber-(Notification No. 4922-III-F-19-R dated 5.5.1923).

- The following Rules are prescribed under Section 41 of the Indian Forest Act (XVI of 1927) for the marking and checking of timber exported from the forests of the Saranda, Kolhan and Porahat Divisions.

Definition. - In these Rules-

(a)

the expression "registered property mark" means a property mark registered under the Rules published in Notification No. 1592-For., dated the 20th March, 1906 and

(b)

the word "purchaser" means a purchaser of timber for export from a coupe and includes an agent of such purchaser.

1. Route for the export of timber. - The route for the export of timber from a coupe shall be that laid down from time to time by the Divisional Forest Officer under whose management and control such coupe is.

2. Export and check depot. - On every route for the export of timber from a coupe there shall be established a depot (hereinafter called the export depot) for the measurement of such timber at a place as near to the coupe as may, in the opinion of the Divisional Forest Officer, be convenient and another depot (hereinafter called "the check depot") for the checking of the measurements made at the export depot.

3. Marking of timbers. - The purchaser shall cause to be clearly marked on both ends of each piece of timber his registered property mark and the number of the coupe from which such timber has been extracted. No purchaser shall take, nor shall the officer-in-charge of the export depot (hereinafter called "the export Muharrir") allow to pass, through the export depot, any timber which is not marked in the manner herein prescribed. The said officer shall cause to be unloaded any timber which is not so marked or on which the marks are not visible from the outside. He shall detain all un-marked timber and shall make a report thereof to the Range Officer.

4. Payment of royalties. - The export Muharrir shall not allow any timber to pass through the depot unless and shall

detain such timber until, it has been shown to his satisfaction that all royalties due in respect thereof have been paid.

5. Issue of permits. - The export Muharrir shall, before allowing any timber to pass the export depot, make out for each cart a permit in triplicate (in Form A). He shall retain the original and give the two copies of the permit to the carter. He shall record accurately the measurements of all timber and impress the same with his export hammer before allowing it to pass the export depot.

6. Checking of timber at the check depot. - On the arrival of a cart of timber at the check depot, the Officer-in-Charge of the depot (hereinafter called "the check Muharrir"). shall check the timber with the duplicate copies of the permits issued by the export Muharrir. If he detects any differences in the measurements he shall enter them on the back of both copies of the permits without altering the figures on the face of the permits.

He shall detain any timber found in excess of the number entered on the permits as well as any un-marked timber and timber not bearing the marks prescribed in Rules 3 and 5 and shall enter particulars thereof on the backs of both of the copies of the permits and shall make a report thereof to the Range Officer. The check Muharrir shall then impress his check hammer on each piece of timber, except any timber he may have detained, and allow the cart to proceed. He shall keep one copy of the permit and return the other without unnecessary delay to the carter.

7. Loading of timber on carts. - The purchaser shall as far as possible load the timber on carts in such a way that it can be measured and checked without being unloaded. If it is not possible to measure the timber in the cart the carter shall on demand by the export or check Muharrir arrange to have the cart unloaded.

8. No timber shall be passed through the export depot or check depot after sunset and before sunrise.

Form A

Forest Department, Bihar

Range

Block

Book No.

Name of Purchaser

Permit No.

Name of Carter

Compartment

No. of Pieces

Dimensions

Cubical Contents

Rate

Amount

Remarks

Amount at Credit

Rs.

P.

TotalCredit balance

CheckMuharrir

Purchaser or Agent

Date of checking

ExportMuharrir

Date.....

9A.

[

[Added vide C.S. No. 85. dated 10.1.1940.]

(1)

in exercise of the powers conferred by Section 45 of the Indian Forest Act, 1927 (Act XVI of 1927). The Governor of Bihar is pleased to declare that with effect from the date of this notification the collection and disposal of all drifts and stranded timber within the portion of the river Gandak and its tributaries including an area within a direct distance of three miles from the main stream within the district of Champaran shall be regulated under the provisions of Chapter VIII of the said Act and the Rules made thereunder. He is further pleased to declare that all timber of the following

dimensions and species found a drift, beached, stranded, or sunk shall be exempted from the operation of this notification:-

All timbers other than-

Sal, Sissoo, Deodar, Tun, Assina-Haldu, Chir, Sandan and all coniferous timber measuring less than 2 feet in girth and six feet in length.

(2)

In exercise of the powers conferred under Section 41 and 42 of the Indian Forest Act, 1927 (Act XVI of 1927), the Governor of Bihar is pleased to make the following Rules to regulate the transit of timber and other forest produce, in the district of Champaran.]

[Substituted by C.S. No. 13 dated 9.7.1938.]

Rules to regulate the transit of timber and other forest produce on Gandak river. (Revenue Department Notification Nos. 3294-VIF-7-38-R., and 3295-VIF-7-38-R., both dated the 21.4.1938 and No. 3296-VIF-38-R., dated 16.4.1938.)

1. No person having launched his timber on set it afloat on the Gandak river within the jurisdiction of Champaran district shall collect the same except: -

(a)

with the permission, in writing, of the [Divisional] Forest Officer incharge of the [Champaran Division] Bettiah Forests, to which the control of the river pertains;

(b)

at places which such Officer shall notify as a catching depot.

2. No person shall raft or otherwise convey any timber on the Gandak river within the jurisdiction of Champaran district without first obtaining a pass from the [Divisional] Forest Officer, Champaran Division in which the river is situated. Such pass shall show the number of logs or pieces, the species of timber, the length and girth of each log or piece, the marks indicative of the owner's property therein, the place of its destination and the probable time required to float or raft the same through the Gandak river within the district of Champaran. The pass may also specify that the timber may be stopped at a place to be noted on the pass as a checking centre.

3. No pass shall be issued for any unmarked timber or for such timber as bears a mark not registered as hereinafter provided.

4. Any Forest Officer or Police Officer may require any person rafting or conveying timbers as aforesaid, to produce the pass for the same at any time. No person shall be entitled to raft or convey timber by virtue of a pass which he does not himself hold but which is, or is stated to be, in the hands of some other person. In the event of the pass not being produced, the Forest Officer may detain the timber. A Police Officer finding timber in transit not covered by a pass may detain it, reporting the case at once to the [Divisional] Forest Officer, Champaran Division.

5. No person is permitted to deposit, any timber for which a pass has not yet been issued so close to the water's edge as to endanger its being carried away by a rise in the river before the pass is issued.

6. All persons wishing to float or otherwise convey timber by the Gandak river within the jurisdiction of Champaran shall register at the office of the [Divisional] Forest Officer, Champaran Division to which the control of the river pertains, the mark or marks which indicate their proprietary right in such timber. A registration fee of Five Rupees shall be payable for every separate mark so registered and the officer in whom the control of the river Gandak (within Champaran district) is vested may order the registration of as many marks as he considers necessary to the efficient control of transport operations. Ordinarily the registration of one mark only shall be required or permitted.

7. No person shall be allowed to register a mark already registered in favour of another person, nor any mark used by the Government or the Bettiah Estate Forest Department, and the Forest Officer may refuse the registration of any mark which in his judgement, so closely resembles a mark used by the Government as the Bettiah Estate Forest Department, or registered in favour of any person as to be easily produced by slightly altering such marks.

8. Every registration under Rule 6 shall hold good for three years following the 1st January next after the date of registration.

9. A certificate showing the mark registered, the date of registration, and the period for which it holds good, and acknowledgement of the payment of the fee, shall be given to every person registering his mark.

10. Within the limits of any area notified under Section 45, the moving, converting, cutting, burning, concealing or marking of timber, the altering or effacing any marks on the same, and the possession or carrying of marking hammers or other implements used for the marking of the timber except with the permission in writing of the Divisional Forest

Officer is prohibited. Such permission if granted shall specify the place at which only it is to take effect, and may contain such other conditions regarding the previous inspection of the timber and otherwise as may be necessary.

11. Any person who disobeys a requisition under the Rule shall be liable to a fine which may extend to one hundred rupees and any person who infringes any other of these Rules shall be liable to a fine which may extend to five hundred rupees.

In exercise of the powers conferred by Section 51 of the Indian Forest Act, 1927 (Act XVI of 1927), the Governor of Bihar is pleased to make the following Rules to regulate the collection and disposal of drift and stranded wood and timber within the portion of the river Gandak and its tributaries including an area within a direct distance of three miles from the main stream within the district of Champaran.

Rules to regulate the collection and disposal of drift and stranded wood or timber

1. No person unless specially authorised in writing by the Forest Officer to whom the control of the river pertains may salvage or collect wood or timber of any description other than unmarked unfashioned pieces not exceeding six feet in length and two feet girth within the areas above notified.

2. The Forest Officer may grant permission in writing to the owner or owners of all timber bearing marks registered under Section 41 of the Forest Act, XVI of 1927, which owing to flood or other cause is a drift or stranded, to save and collect such timber or may collect it himself or contract with a third party to save and collect the same at certain places at rates to be agreed upon between that party and the Forest Officer. Such timber collected by the Forest Officer or by a person authorised by him under this Rule shall be handed over to the owner or owners on payment by them of such dues as may be fixed from time to time by the Forest Officer.

3. Timber bearing marks which have not been registered under Section 41 of the Forest Act, or on which the marks have been obliterated, altered or defaced by fire or otherwise and fashioned timber bearing no marks may be salvaged and collected by the Forest Officer or by a person authorised in writing by him. No such timber shall be delivered to any claimant who under Section 47 of the Indian Forest Act has been recognised to be the owner until, under Section 50 of the said Act, he has paid to the Forest Officer a sum not exceeding 25 per cent of its value as adjudged by that officer together with such other expenses as may have been incurred in salvaging the said timber. Should the recognised owner fail to make these payments within 10 days of his receiving intimation from the Forest Officer of the amount due the property salvaged shall be dealt with (under Section 48 of the Act) as unclaimed timber.

All timber salvaged under these Rules which may become vested in the Government under Section 48 of the Act may be disposed of to the best advantage after two months from the expiry of the period fixed for the disposal of claims under Section 46 of the said Act.

4. All unfashioned wood or timber bearing no mark may be sold at any time by the Forest Officer where it lies stranded when in his opinion it is not sufficiently valuable to be brought to a depot or the right to collect and dispose of such timber may be leased by him.

5. All wood or timber when sold by the Forest Department under these Rules shall be marked with the Departmental sale mark, and when relinquished under Rule 3 with a suitable distinguishing mark, and for the removal of any wood or timber from the area above notified a printed and numbered pass must be obtained from such officials as may be appointed by the Divisional Forest Officer, on which shall be entered the number of pieces and the kinds of wood and timber and the amount realised from the purchaser or claimant, over the signature of the official appointed to this duty.

6. Any person who shall infringe any of the provisions of these Rules shall be punished with fine which may extend to five hundred rupees.

Chapter-II [Bihar Reserved Forest (Fire Protection) Rules]

[Vide Notification No. 5303-IIIF-108-R., dated 11.5.1936.]

10. Fire Protection Rules.

- [In exercise of the powers conferred by clause (d) of Section 76 and clause (b) of sub-section (1) of Section 26 of the Indian Forest Act, 1927, and in supersession of all Rules previously made on the same subject the Government of Bihar are pleased to make the following Rules for the prevention of fires in the Reserved Forests in the district of Ranchi, Hazaribagh, Singhbhum, Palamau, the Santhal Parganas, Gaya and Manbhum.]

[Vide Notification No. 614-IIIF-108-R.R., dated 26.6.1936.]

These Rules may be called the Bihar Reserved Forest (Fire Protection) Rules.

A. Rules under clause (d) of Section 76 of the Act.

1. Any person authorised to collect inflammable forest produce including grass and bamboos within a reserved forest

shall arrange such produce in stacks in an open space at such distance from the Reserved Forest that no danger to the forest is likely to result from ignition of the stacks.

2. No person shall camp within a reserved forest at any place other than a place cleared and set apart for the purpose of camping by the Forest Officer. The Forest Officer shall in each year publish a list of places which may be used as camping grounds during that year.

3. No person shall carry any burning wood, fire-brand, naked lighted torch, lighted biri, cigar or cigarette or any other burning matter along the boundary of a reserved forest.

B. Rules under clause (b) of sub-section (1) of Section 26 of the Act.

4.

(1)

No person shall kindle a fire for the purpose of clearing any standing forest or grass land near to a reserved forest in such a manner as to endanger such forest unless:-

(a)

He gives at least one week's notice to the nearest Forest Officer, Ranger or Forester of his intention to do so.

(b)

He clears a belt of land at least 20 feet broad on that side of the land which he proposes to burn which is nearest to such forest.

(2)

No person shall kindle any fire referred to in sub rule (1) on any day or at any time when a high wind is blowing.

5. No person shall kindle a fire for the purpose of burning any wood, grass, weed or other cut materials on land adjoining a reserved forest unless such materials are first collected into heaps and such heaps are burnt separately in such a manner that the fire may not endanger such forest.

6. No person shall kindle a fire for cooking near a reserved forest in such a way as to endanger such forest and any person who kindles any such fire shall extinguish it before leaving the spot on which the fire was kindled.

7. Rules 4, 5 and 6 shall apply only during the period beginning with the 1st day of January and ending on the 1st day of July in each year.

11. Control of fire conservancy operations.

- The following instructions are laid down for the control of fire conservancy operations:-

(Government Letter No. 1725-IIIIF-283-R., dated 19/20.2/1931)

1. Unless otherwise ordered by the Chief Conservator of Forests a scheme of fire conservancy accompanied by maps should be provided for each division.

2. These fire conservancy schemes shall be compiled by Divisional Forest Officers and submitted for the approval of the Conservator of Forests. No material alteration should be made in any such scheme without the sanction of the Conservator. Minor changes may, however, be made at the discretion of the Divisional Forest Officer.

3. Extensions where made, should be of areas as compact and as large as possible. The addition of small isolated areas such as the separate coupes of felling series is inadvisable.

4. Except as noted below, all men assisting in extinguishing fires in Government forest (including forest villagers) shall be paid according to the amount of assistance rendered, at rates fixed by the Divisional Forest Officer in consultation with the District Officer.

Exception. - (1) No Payment will be made to any person who exercises any right in a reserved or protected forest, or who is permitted to take any forest produce from, or to cut and remove timber or to pasture cattle in such forest, any person who is employed by any such person in such forest, any person in any village contiguous to such forest who is employed by the Government; or who receives emoluments from the Government for services to be performed to the community:

[Provided that it shall be permissible in case of urgency for the Divisional Forest Officer to issue to each person assisting in the extinguishing of fire such "satu" or parched corn or other provision as may be deemed advisable in view of the fact that the operation of extinguishing a fire will keep such person away from his home and normal meals for any length of time and that if not issued, delay would occur in getting these persons out before they had their usual meals. A careful check should be maintained by the Divisional Forest Officer on all such expenditure and the facts should be reported in the fire reports by the officer submitting the reports.]

[Revenue Department letter No. 399-R.R.-IIIIF-167, dated 26.5.1936.]

(2)

This Rule shall not be applicable to those cases whereunder the terms of any agreement or contract, persons are bound to extinguish forest fires without payment.

5. Fire-lines are of two kinds exterior and interior. The responsibility for their up-keep rests with Divisional Forest Officers.

6. Except in the case of certain malguzari, Zamindari and Feudatory States forests where special rules exist for the maintenance and clearance of a joint boundary, the construction of exterior fire-lines should, as far as possible, be within the limits of the Government forest and they should follow the boundary thereof. Occasions may sometimes arise when in order to secure efficiency, it is necessary to deviate from sinuous or difficult boundaries in favour of straight lines running through the Government forest.

7. Interior fire-lines are situated within Government forest and are intended to restrict within limits fires which have broken out in protected areas which cannot be controlled except by counter-firing. These fire lines should follow the course of roads open to the public and the beds of rivers and streams; for here, in addition to other advantages, natural efficient fire-lines already exist. The construction of interior fire-lines along ridges should be avoided as far as practicable, for there the effect of the wind is most powerful and the absence of water most marked.

8. Fire-line should be so selected and laid out on the ground that it will be not only practicable, but easy to traverse them with facility. Steep gradients and rough ground must be avoided as far as possible. Where practicable, fire-lines should follow natural clearings, such as open glades, the edge of cultivated plains or the beds of wide ravines and streams. Water should be available along or near the fire-lines, and the localities where wells exist or should be made, and all spots where water can be procured should be marked on the fire-maps.

9. When fire-lines have been properly settled, the details of the work to be done will be as follows: -

(a)

Attention will be paid to the isolation of the forest from the surrounding country. This will be effected by clearing the exterior fire-lines of all inflammable material to a width determined by local circumstances, which should ordinarily be not less than 40 feet or more than 100 feet. Not later than the months of December-January, two guide lines will be cut on either side of the fire-line which is to be ultimately cleared.

The width of guide lines will depend on the height of the grass through which they run, and they must be cleared. This work should be completed by the end of February.

(b)

Interior fire-lines will be similarly treated, but they will usually be narrower than the exterior lines.

(c)

As the season advances and the grass in the centre of the fire-lines dries, this grass should either be burnt off standing, or cut close to the ground over the whole width of the line, if the latter course is followed, the cut grass should be spread over the fire line between the guidelines be burnt as soon as it is dry.

(d)

Dry leaves and other dry material on the fire-lines must be swept up from time to time and deposited along the edge of the fire-lines, and burning of such material on the lines after the hot weather has set in is strictly prohibited.

(e)

Except under the direct orders of the Divisional Forest Officer, and in the presence of Range Officer or other subordinate authorised by the Divisional Forest Officer, no burning of fire-lines should be allowed after the 15th April.

Note. - Where an agreement exists/providing for clearance of the common boundary between the Government forests and the forests belonging to private persons, the terms of the agreement should be followed.

10. It is the duty of fire-watchers constantly to patrol the fire-lines on their beats, to keep them entirely free from inflammable material, to prevent the carrying or making of fire within or in the vicinity of the protected area, to give immediate notice of the occurrence of a fire to the beat Officer, to collect assistance and themselves to aid in extinguishing any fire that may occur.

11. The Range Officer shall be held personally responsible for the efficient clearing of the fire-lines.

12. Forest subordinates who see smoke rising anywhere in or near the forest, shall at once get together what aid they can and proceed themselves to the spot. They must not sit quiet and send some body else to enquire and report. The forest official who arrives at a spot where a fire is burning shall at once proceed to put it out. Should it be outside his own beat or range he will continue there till relieved by the local men, when he will return to his own beat or range, unless the

fire is so strong as to demand all possible help.

This rule applies not only to reserves specially protected from fire, but also to reserves which are not so protected.

13. The Divisional Forest Officer is personally responsible for carrying out efficiently the fire protection measures ordered in his division. He must satisfy himself that the exterior fire-lines have been properly cleared and thoroughly burnt before danger from external fires arises and at the same time all interior fire-lines are in good order. He must by continual inspection assure himself that the protective staff is efficient, and he must continue to attend to this work until the arrangements for the efficient protection of the forest from fire are completed. The Divisional Forest Officer must during his tours satisfy himself as far as possible that no unreported fires have occurred within the protected area, and that areas of the fires which have been reported have been accurately estimated. These checks can only be effected by personal inspection, which should always be as extensive and thorough as possible.

14.

On the occurrence of fire the Range Officer shall report it without delay to the Divisional Forest Officer, using special despatch if the fire extends over a large area. It is the duty of the Range Officer to provide for rapid communication between himself and the staff in the fire-protected forest so that undue delay may not occur in receiving intimation of the outbreak of a fire and in the transmission of such intimation to the Divisional Forest Officer. The inspection of the area burnt and the submission of a full final report with a sketch map by the Range Officer shall not, without valid excuse be delayed for more than a fortnight after the occurrence of a fire.

15.

When any [fire]

[Vide Government of Bihar, Revenue Department, Letter No. 5323-R., dated 16.11.1937.]

occurs in specially protected forest, the Divisional Forest Officer will, if he is himself present and otherwise on receipt of a report from the Range Officer, at once send a preliminary report of the occurrence to the Conservator of Forests in the usual form (Form No. 38) unless he has reason to suppose that he can submit a full report within 15 days.

16.

The first report, in Form No. 38, on a forest fire need only give the locality, date of outbreak, measures taken to extinguish the fire, and ascertain the cause and the approximate date by which a full report can be expected to follow. No further report is necessary when preliminary report contains all the information available.

17.

A full report, in Form No. 38 supplementing and revising the information given in the preliminary report should be submitted as soon as possible. The full report need not be delayed pending the result of prosecutions or lengthy investigations which should be dealt with when complete.

18.

[Except in the case of fires occurring in young crops under special protection, fires in the protected and non-protected areas affecting an area of less than 320 acres need not be reported to the Conservator of Forests unless the occurrence is of exceptional interest but it should, of course, be entered in the Divisional Register of fires.]

[Substituted by Government of Bihar, Revenue Department, Letter No. 5323-R., dated 16.11.1937.]

19.

[At the end of the fire season the Divisional Forest Officer should send to the Conservator of Forests the fire map of the division brought upto date and a consolidated report about the fires including intimation about those on which he has already reported.

He should pay special attention to fires which have caused serious damage. The report should also summarise the following:-

1. Number of fires considered of accidental origin.
2. Number of fires put down to incendiarism.
3. Number of cases in which offenders were caught and the number of the latter.
4. Number of cases in which no offenders were discovered.
5. Number of cases in which punishments were inflicted and number of offenders punished.
6. Dates on which rainfall occurred during the fire season and reference to intensity of rainfall.
7. Steps taken generally to combat the fires, i.e., counterfiring etc.,
8. Need for special steps to combat recurrences, and suggestions as to alteration to the present fire prescriptions in the division.

9. Assistance of courts-Is it adequate?

10. Is help easily available?]

20.

Forest Sub-ordinates who have been concerned in firing unintentionally, extinguishing or obtaining labour to extinguish fires should be mentioned by name as well as official designation in the report.

21.

Areas entered in fire reports should be expressed in acres, omitting fractions.

22.

When offenders concerned in fire cases are detected they should ordinarily be prosecuted. But in very exceptional circumstances it may be desirable to compound such cases or let the offenders off with warnings, and in such circumstances cases may be so disposed of, provided that the District Officer approves and any compensation fixed is realised by the Divisional Forest Officer or by a Subordinate who is competent to compound cases. As a rule, when it is not desirable to prosecute, warning offenders is preferable to compounding, due precaution being, of course, taken to make the offenders understand that they are being leniently dealt with. The circumstances of all cases disposed of by warning or compounding should be reported to the Conservator.

23.

Without convincing proof no forest fire shall be attributed to incendiarism and should that proof be forthcoming a searching enquiry shall be made in order to discover the source of friction that has induced the malpractice.

24.

Conservator is empowered to grant rewards not exceeding Rs. 25 to fire patrols and other low paid subordinates whose pay does not exceed Rs. 18 per mensem for specially good work done during fire seasons.

25.

A record of fires with fire maps on a scale of 4" to 1 mile for individual compartments and 1" to 1 mile for divisional map, will be kept up in each Divisional Forest Office. Where compartment histories are maintained, details of fires should be entered in them, and fire map (on a scale of 4" to 1 mile) should also form part of the compartment histories.

The following symbols will be used in fire maps:-

1928

?????

1929

1930

////

1931

\\\\

1932

x x x xx x x xx x x x

The map will be for a five year period when a fresh map with a rotation of the same symbols will be commenced.

12. Forest villages.

- The object of establishing Forest villages is to obtain a sufficient and continuous supply of labour for fire protection and other works of improvement.

The following Rules for the formation and management of forest village are laid down for the guidance of Forest Officers. (Government order No. 2987-III-F-34-R., dated 27.3.1931)

1. No new village should be started without the prior permission of the Conservator being obtained through the District Officers.

2. Forest villages are designed solely to afford a permanent supply of suitable local labour, and are not to be established merely for the purpose of extending cultivation and bringing in rents.

3. Only persons who are by race, caste, or occupation habituated to the extraction or handling of forest produce shall be admitted to reside in a forest village, with the immediate families and dependant of such person. The number of houses to be allowed in each village and the extent of cultivation shall be fixed by the Conservator. No outsider shall be allowed to settle in the village without the written permission of the Divisional Forest Officer.

When a village is first established, allowance should be made for moderate increase of population in the families of first settlers, and the full number of houses and the whole area available for cultivation should not be allotted at once.

4. A register shall be kept by the Divisional Forest Officer for entry of the following, for which separate pages should be allotted: -

(a)

Description of each village.

(b)

Demarcation of its boundaries.

(c)

Tracing of the area assigned.

(d)

The number of cultivators admitted.

(e)

The special objects which the establishment of village was intended to serve.

5. All adults admitted as residents to a forest village shall execute an agreement in Form No. 43, and before executing such agreement the following conditions shall be explained to them and they shall be bound by such conditions and shall be liable to summary eviction without compensation by order of the Divisional Forest Officer for breach thereof: -

(a)

That the Forest Department has the first claim to their labour on payment as hereinafter provided.

(b)

That they will not accept any other employment which is likely to interfere with the prior claim of the Forest Department.

(c)

That they will be generally obedient to the orders of the Divisional Forest Officer.

6. Subject to the limitation in the number of house-holds indicated in Rule 3 each house-holder in the village shall be entitled to the following privileges: -

(a)

Lands for cultivation will be assigned to him by the Divisional Forest Officer, sufficient with proper diligence, for the support of himself and family. Such land will be granted free of rent, it shall be held as a service jagir and shall not be alienable and shall be liable to resumption if the services of the grantee or of his successor are no longer required or if such course is otherwise found necessary by the Forest authorities.

(b)

Free grazing will be given to him for such reasonable number of cattle as may be determined in each case by the Divisional Forest Officer.

(c)

A free supply will be allowed him of all thorns and wood required for bona fide agricultural purposes, also of such wood and grass for house building and repairs as the Divisional Forest Officer may deem reasonable; also of dead wood for fuel, bamboos and of leaves and any edible fruits, flowers and roots required for domestic purposes.

(d)

The residents of the village shall have the first claim to employment in all forest works conducted under the orders or supervision of the Forest Department and in collection of minor produce and shall be paid in cash for their work at such fair rates daily or otherwise as may be fixed by the Divisional Forest Officer.

7. A headman shall be selected by each village, subject to the approval of the Divisional Forest Officer. He will assist the forest official in the organization and employment of forest labour. He will also enforce such sanitary regulations as the Divisional Forest Officer may prescribe. He shall report the occurrence of cognizable crime immediately at the nearest police station and such other occurrences as the Divisional Forest Officer shall direct to the Forest Range Officer. He shall be assigned a larger amount of land than his fellow tenants, which he shall hold on the same terms as the other villagers.

8. The arrangements for the supply of country liquor and drugs to forest villages will be under the control and orders of the District Officer.

9. The following points should be observed in the execution and record of Agreement Form No. 43.

(a)

A separate series shall be allotted to each forest village and a separate serial number given to the agreements executed by each villager in any one village for record in the register referred to in paragraph 4.

Note. - Clause IV of the agreement should be cancelled except in those forms executed by village headmen.

(b)

A permit should be issued to each cultivator who enters into such an agreement on which the following details should be recorded.

1. Name of cultivator and serial number.

2. Name of village

3. Area of land assigned for cultivation.

10. As soon as a forest village has been established a sketch map showing the blocks in which forest villages are situated should be supplied to the Conservator with the area of each; and all changes in them should also be duly reported to his office for keeping his register corrected upto date. The information under the following heads should be given:-

Name of Forest

1. Name of village.

2. Date when established as forest village and Conservator's sanction number.

3. Area in acres.

4. Number of houses and working men.

5. Area under cultivation.

11. Progress in establishing such villages and results if any, should be commented upon by each Divisional Forest Officer, in Chapter VIII of his Annual Report.

12. Takavi Advance: - The following procedure is laid down for the grant of takavi advances to forest villagers in need of financial assistance:-

1. Divisional Forest Officers will ascertain the probable requirements of each of the villages in their divisions and report to the District Officer by the first week of September the amount required (or that no provision is required) for distribution in his division.

2. The District Officer will in due course inform the Divisional Forest Officer of the amount placed at his disposal in the district account against which he may draw advances.

3. These advances should be drawn from the Treasury on abstract bills and after distribution the Divisional Forest Officer will furnish the District Officer with a detailed bill and remit the unpaid balance if any.

No entries will be made in the Divisional Forest accounts.

4. The Divisional Forest Officer will make periodical recoveries based on his copy of the detailed bill or from an extract from the District Officers Takavi Register which will be furnished to him and shall remit the amounts recovered with proper challans to the District Officer, for credit into the Treasury.

Note. - No land in the Reserved Forest outside the limits of forest villages shall be cultivated without the express permission of the Conservator of Forests.

13. Taungya Cultivation.

- There are three different forms of leases for Taungya Cultivation and the circumstances under which they are to be used are briefly indicated below:-

(1)

Manual Form No. (44). - This is the form of agreement for taungya cultivation pure and simple. The grantee receives a specified area for temporary cultivation for a fixed period and in return agrees to raise plants of a specified forest species in the area allotted to him free of charge. At the end of his lease the grantee delivers the area back to the Forest Department fully planted up.

A separate agreement is to be signed by each individual for each area to be planted in the specified time and the agreement automatically expires at the end of the period specified therein. The period should not exceed two years nor the area that which it is possible for the lessee to plant up completely in two years.

(2)

Manual Form No. (45). - This Form of agreement is meant for cases where a forest village is established mainly for obtaining labour for raising plantations by the Taungya method. Under this agreement the grantees may be allowed land for erection of their houses but they will not get any land exclusively for cultivation of field crops. They temporarily cultivate allotted areas and raise approved field crops for a period of two years only after which the areas are automatically resumed by the Forest Department. A fresh area is again allotted to them for similar cultivation under a

new lease. In return the grantees agree to plant up the areas allotted to them with seedlings of such forest species as are supplied to them by the Forest Department. This planting will be done free of charge by the grantees except that in the case of the species planted, rewards will be paid at the scale laid down and depending on the degree of success. The grantees also agree to work for the Forest Department in any other required capacity on payment at current rates for labour. In divisions where rewards are not paid the clause can be crossed out or the rates varied.

If separate plots are given to different persons then a separate agreement should be executed for each person but there is no legal objection to leasing plots to several persons jointly in which case only one agreement should be executed for them all jointly. In either case the area covered by the lease should be the area to be planted with trees in two years, and each successive two-year plot or series of plots should be covered by separate agreements.

(3)

Manual Form No. (46). - This form of agreement is applicable to cases where a forest village is established mainly for obtaining labour for regenerating forest areas with plants of specified forest species under the taungya system. The grantees receive (i) a specified area for raising field crops only, and (ii) such additional lands as may be allotted to them by the Forest Department for taungya cultivation for a period of two years. In return the grantees agree to plant up the additional lands with seedlings of forest species for which rewards are payable at the specified rates depending on the degree of success and also to work for the Forest Department in any other required capacity on payment at current rates for labour. Provision is also made for the loan of cattle for purposes of cultivating the areas allotted to the grantees under this form of agreement. On additional lands granted under (ii) only approved field crops will be allowed to be raised.

If separate plots under (i) and (ii) above are given to different persons then a separate agreement should be executed for each person and in the case of (ii) for each area to be planted during each period of two years but there is no legal objection to leasing plots to several persons jointly in which case only one agreement should be executed for them all jointly. Here also however, the land granted under (ii) should cover only the land to be planted up in two years by the persons jointly and each new area planted under (ii) should be under a new lease.

14. Working plans.

- The procedure with regard to the preparation and revision of working plans is dealt with in the Code of Working Plan Procedure in Bihar and Orissa. The procedure with regard to the exchange of working plans between provinces and the instructions for writing up control forms and compartment history forms are also embodied in the Code.

The following is a precise of the instructions issued by the Government of India, Bengal, Bihar and Orissa from time to time for the preparation of working plans:-

1. It frequently happens that the silvicultural treatment which is theoretically the best cannot be wholly applied owing to want of demand and the like, and recourse must be had to a method which is not the best but which must be adopted to satisfy the conditions. In such a case, besides dealing in the working-plan report with the method it is proposed to apply immediately, the best method from a silvicultural point of view, i.e., best suited to the physical conditions of the forest, should also be clearly indicated and briefly discussed in the plan. Any unavoidable departure from that method should then, as far as possible, be explained and justified in detail. In treating of the best silvicultural method of three following subjects may be taken consecutively: -

(a)

Object sought to be attained.

(b)

Method of treatment adopted.

(c)

The exploitable age.

2. When the demand is not equal to the possibility of the annual coupe, light or short fellings are frequently prescribed. This principle is open to objection, as it results in some or all of the coupes containing at the end of the rotation a stock of material which should have been removed in the interests of the forest.

Even though the whole possibility of a coupe cannot be utilized, the fellings should follow each other regularly, that is to say, the cuttings of each successive year should continue those of the year preceding for, if this be done, then any balance that may remain at the end of the rotation will be comprised in one complete block instead of existing in patches scattered all over the forest. If during the course of the rotation the demand should be found to increase the existing balance can be felled and the provisions of the plan fully complied with; while if, on the other hand, the demand does not

rise sufficiently to allow the possibility to be removed, then the necessary reduction in the size of the annual coupes will be easy to carry out at a revision of the plan.

3. Works dealing with silvicultural improvement, and lines of communication and export should be completed after the lapse of a definite period of years. They should be allotted in the plan to particular years, the allotment to be binding on the local officers unless the Conservator sanctions a deviation for reasons recorded in Forest Department Code Form No. 4. For buildings, demarcation, and minor works a general plan for a term of years may be prescribed, deviations from which would require the sanction of the local Government, but the manner in which the details are carried out may be controlled solely by the Conservator, who will record and give reasons in Form No.4, Forest Department Code, for any deviations from the method of procedure originally suggested which he may sanction from year to year.

4. When submitting preliminary reports for the preparation of working plans as prescribed in Article 48. Forest Department Code, 7th Edition, a small sketch map should be attached, showing roughly the proposed working circles and any other useful information which can be conveniently included.

5. The question of forming separate fodder reserves or grazing working circles should be kept in view when the working plans are prepared or revised.

6. Before a working plan is submitted to the Conservator for transmission to the Local Government, the Forest Officer who prepares it must invariably show it in draft to the Collector or Deputy Commissioner of the district concerned with a view to allow him an opportunity of recording his opinion on it and offering his advice.

7. The existing working plans should remain unaffected by the change of the forest year to the financial year. Whether the forest year (1st July to 30th June) or the financial year or some other year should be adopted for purposes of working plans and control returns will be settled in respect of a particular forest or forests by the Working Plans Officer in consultation with the Divisional Forest Officer at the time of compilation or revision of the working plan. The author of the working plan will make it quite clear what year he is using for the working plan.

15. Leases of forest produce.

- The following Rules are prescribed for the grant of leases for the removal of timber or other forest produce.

(Government order No. 3630-IIIF-38-R., dated the 8th April 1931)

1. No lease or contract shall be given out for any considerable period without adequate consideration of the circumstances and prospects of the industry or work concerned and without securing the interests and objects of Government by suitable terms and conditions.

2. Article 64(i) of the Forest Department Code, 7th Edition, requires that in exceptional cases where cash payment is not received in full at the time of delivery, the transaction must be reported to the local Government if the value exceeds Rs. 5,000/- and that the previous sanction of the local Government must be obtained if the value exceeds Rs. 10,000/-. Where cash payment is received in full at the time of delivery the Conservator may give out leases for the removal of timber or other forest-produce up to Rs. 50,000/- in value and the Divisional Forest Officers, subject to the control of the Conservator, up to Rs. 2,000/- but the Conservator is empowered to delegate to selected Divisional Forest Officers by name the power to give out leases up to Rs. 5,000/-. The Conservator should inform Government whenever such powers have been delegated.

Note. - Payment in instalments may be considered as payment in full at the time of delivery, provided that there is a clause in the agreement to the effect that when the Divisional Forest Officer considers that the value of any forest-produce removed by the purchaser equals or exceeds the amount of purchase money paid by him up to that time, the Divisional Forest Officer may stop further removal until the purchaser has paid such further sum as, in the opinion of the Forest Officer, may be sufficient to cover the excess value of the forest produce removed or about to be removed.

3. Divisional Forest Officers shall not grant any lease for any period exceeding one year. Conservator is empowered to grant leases for periods up to three years. Without the previous sanction of higher authority, leases granted by these officers respectively up to the maximum period within their power shall not be extended beyond such period except in the case of leases for coupes sold to purchasers, in which case the Divisional Forest Officer may, at his discretion, give fresh lease for the second year for the same area at a charge which may be nominal or otherwise according to the lessee's work.

16. [Execution of Contracts.

[Rule 75 (Government Publication, here Rule 16) Substituted vide C.S. No. 17, dated 9.7.1938.]

[Judicial Department Notification No. 815-J.-24-36-II, dated the 1st April 1937]

[Inserted as a new Rule 19 vide Government of Bihar, Revenue Department Letter No. 5323-R., dated 16.11.1937.]

. - In exercise of the powers conferred by subsection (3) of Section 175 of the Government of India Act, the Governor of Bihar is pleased, in, supersession of all existing orders, to direct that the undermentioned classes of deeds, contracts and other instruments may be executed on his behalf as follows:-

B. - In the case of the Forest Department.

1.

Contracts, security bonds and other instruments, other than those specified in heads 3 and 4, in connection with the administration and working of forests and with the business of the Forest Department generally where the value of the property or the amount of expenditure involved exceeds Rs. 2,000 but does not exceed Rs. 10,000.

By the Conservator of Forests.

2.

Contracts, security bonds and other instruments, other than those specified in head 3 and 4, in connection with the administration and working of forests and with the business of the Forest Department generally when the value of the property or the amount of expenditure involved does not exceed Rs. 2,000.

By Deputy Conservators, Assistant Conservators or Extra Assistant Conservators of Forests while in charge of a forest division.

3.

Conveyance deeds for the purchase of land, which Divisional Forest Officers are authorised to buy for forest purposes when the value does not exceed Rs. 2,000.

By the Conservator of Forests.

4.

Leases for cultivation inside reserved forests where the annual rent does not exceed Rs. 500.

By Deputy Conservators, Assistant Conservators, or Extra Assistant Conservators of Forests while in charge of a forest division.

5.

Leases for cultivation inside reserved forests where the annual rent exceeds Rs. 500.

By the Conservator of Forests.

As regards contracts, etc., not hereinbefore specified.

* * * * *

5.(a)

Contracts for the supply of articles required for the use of any Department or for the sale of article produced or manufactured by the Department, and other instruments connected with the administration of the Department.

By the Head of the Department and the Superintendent, Government Printing, except contracts for the sale of jail produce which may be executed either by the Inspector-General of Prisons or Superintendent of the Jail concerned.

* * * * *

9.

Contracts and other instruments relating to house building

advances.

By the authorities granting the advances.

* * * * *

16A.

[Executive Instructions in the matter of execution of deeds, contracts and other instruments.

[Inserted Rule 75-A (as per Government Publication, here Rule 16A) vide C.S. No. 19, dated 9.7.1938.]

- With reference to part "B" of the Judicial Department Notification No. 815-J.-24-36-II, dated the 1st April 1937 (Rule 75 (as per Government Publication; here Rule-16) above) Government are pleased to issue the following Executive instructions for the guidance of Forest Officers in the matter of execution of deeds, contracts and other instruments on behalf of the Governor of Bihar:-

(i)
The instruments referred to in the Judicial Department Notification will be ordinarily-

(a)
contracts for the supply of materials by or to the Forest Department;

(b)
contracts for timber transport and conversion;

(c)
contracts for roads, bridges, buildings, wells, etc., which are to be constructed departmentally;

(d)
contracts for sale of forest produce;

(e)
leases for farming forest produce;

(f)
security bonds for the fulfilment of contracts or agreements, or for faithful service;

(g)
leases of buildings belonging to the Forest Department;

(h)
leases of land in reserved forests granted for purposes other than cultivation.

Note. - (g) Vide Form No. 52 of the Forest Manual.

(h)
Vide Form No. 53 of the Forest Manual.

(ii)
The orders of Government should be obtained in any case where any doubt may arise.

(iii)
The Conservator and the other Forest Officers mentioned in the said notification are empowered to cancel or reduce the sale money payable under any contract which they are empowered to execute;
Provided that the orders passed by other Forest Officers are subject to the approval of the Conservator of Forests.

(iv)
No deed or instrument relating to land or any right or interest in land except conveyance deeds or leases for cultivation referred to in items 3, 4 and 5 of part B of the aforesaid notification and in clauses (g) and

(h)
of item (i) of these instructions should be executed by any Forest Officer except with the previous sanction of Government.

(v)
The power of the officers mentioned against item 4 of part B of the notification referred to above to execute the leases specified therein is subject to the previous approval of the Conservator.

(vi)
The authorities empowered to sanction house building advances have also the power to execute contracts and other instruments relating to such advances.]

17. Grant of Rewards Section 76(b) of Indian Forest Act, 1927 [Revenue Department No. 3753-IIIF-158-R., dated the 24th August, 1937]

[Notification No. changed vide C. S No. 20, dated the 9.7.1938.]

.

(1)

All non-gazetted Government Officers and persons not in the employ of Government are eligible for rewards under these Rules.

(2)

Where any Magistrate or Court has imposed a fine for any forest offence such Magistrate or Court shall send a report of the imposition and realization of such fine-

(a)

in the case of an offence committed in, or relating to a forest under the control of the Forest Department, to the Divisional Forest Officer concerned;

(b)

in the case of an offence committed in or relating to a forest managed by the Civil Department;

(i)

if such forest is situated in the Rajmahal or Godda subdivisions of the district of the Santhal Parganas or the Khurda subdivision of the district of Puri, to the Subdivisional Officer concerned;

(ii)

if such forest is situated in the Sadar subdivision of the district of Angul, to the Subdivisional Officer of Angul or to any Sub-Deputy Magistrate exercising jurisdiction in the said subdivision;

(iii)

in any other case, to the Collector or Deputy Commissioner of the district in which the offence was committed.

(3)

The Officer to whom a report is sent under Rule (2) may grant rewards in such proportion as he thinks fit to persons instrumental in the detection of the offence, the seizure of the articles; or the capture of the offender:

Provided that-

(a)

the total of the rewards paid in respect of any forest offence shall not exceed the amount of fine realized and the sale proceeds if any of any article is confiscated;

(b)

a reward exceeding Rs. 10/- shall not, without the previous sanction of the Conservator of Forests, be paid in respect of a forest offence committed in any forest.

(4)

(a)

When it has been decided to grant to any person a reward not exceeding Rs. 100/-, the whole amount of such reward shall be paid without any delay to such person.

(b)

When it has been decided to grant a reward exceeding Rs. 100/- to any person, Rs. 100/- of the amount of such reward shall be paid without any delay to such person, and the balance shall be paid to him after the expiration of the period allowed for filing an appeal against the decision of the Magistrate or Court trying the offence in respect of which the reward has been granted.

(c)

If the conviction for a forest offence in respect of which a reward has been paid to any person is reversed on appeal, the amount paid to such person shall not be recovered from him unless the officer granting the reward is satisfied that such person has acted fraudulently in obtaining such reward.

(5)

When a Forest Officer has under clause (a) of Section 68 of the Indian Forest Act, 1927 accepted a sum of money as compensation, a reward may be paid to any person, who may have contributed to the discovery of the suspected offender;

(a)

if the offence is suspected to have been committed in a forest managed by the Forest Department by a Divisional Forest Officer empowered by the State Government to compound offences under the said Section 68;

(b)

if the offence is suspected to have been committed in the undemarcated protected forests in the Khurda subdivision of the Puri district, by the Subdivisional Officer of Khurda;

(c)

if the offence is suspected to have been committed in any other forest managed by the Civil Department, by the Collector or Deputy Commissioner in charge of the forest:

Provided that-

(i)

a Divisional Forest Officer shall not without the previous sanction of the Conservator of Forest, pay a reward exceeding Rs. 10/- in respect of any one suspected offence;

(ii)

the total rewards paid in connection with the discovery of any one suspected offence shall not exceed the sum recovered as compensation.

17A.

[Revenue Department letter No. 9638-R., dated the 21st November, 1936.]

[Rule 76-A (as per Government Publication, here 17A) Inserted vide C.S. No. 86, dated 10.1.1940.]

.
- In determining what compensation should be accepted under Section 68(1) (a) of the Indian Forest Act XVI of 1927 when a wild animal or bird has been killed in contravention of the "Bihar and Orissa Government Reserved Forests Shooting Rules, 1930", an officer empowered under that Section should assume the value of the animal or bird killed to be as follows:-

Rs.

a.

P.

Elephant

?

?

100

0

0

Buffalo

?

?

75

0

0

Bison

?

?

50

0

0

Sambhar

?

?

25

0

0

Nilgai

?

?

20

0

0

Spotted deer

?

?

15

0

0

Barking deer

?

?

7

8

0

Mouse deer

?

?

5

0

0

Tiger

?

?

50

0

0

Leopard

?

?

20

0

0

Bear

?

?

5

0

0

Pig

?

?

10

0

0

Hare and pea fowl

?

?

2

0

0

Jungle fowl, spur fowl, partridge, pigeon, quail, duck, teal, florican.

1 each

0

0

18. Classification of charges for rewards. Government of B. & O., F. D., letter No. 2623-F.R., dated 16th July 1932.

- The charges on account of rewards should be classified as follows:-

They should be debited to the head "8-Forests-Miscellaneous-Other charges", or to the head "26-Police-District Executive Force-Allowances- voted", according as the prosecution is initiated by an officer of the Forest Department or a police officer. When prosecutions are initiated by civil officers who have been vested with the powers of a Forest Officer, e.g., District Officers, Hazaribagh, Palamau and Angul, the Subdivisional Officers, Rajmahal, Godda and Khurda, the charges for rewards should be debited to the head "22-General Administration-General Establishment-Other allowances or Subdivisional Establishment-Other allowances" according as the prosecution was initiated by a District Officer or a Subdivisional Officer. Copies of orders sanctioning the rewards should be attached to the bills in which they are drawn.

As regards the classification of receipts, the fines imposed and realized by a Magistrate or a Court for an offence under the Act should be credited to the head "XVII-Administration of Justice-General Fees, Fines and Forfeitures" in respect of forests whether under the direct charge of the Forest Department or under the charge of the Civil Department. Compensations realized on the compounding of forest offences and sale-proceeds of properties confiscated, should be credited to the head "VIII-Forests" in the case of forests directly managed by the Forest Department and to the head "V-Land Revenue-Miscellaneous-Fines and forfeitures of Revenue Courts" in the case of forests under the charge of the Civil Department.

19. Seeding of bamboos, etc. Government of India No. 261-F-74-1, dated the 1st March 1899. I.-G. of Forests Circular No. 29, dated 31st October 1893.

- Whenever a seeding year (which should be watched for) of any species save the commonest [*Dendrocalamus strictus* and *Hamiltonii* and *Bambusa arundinacea*] occurs, at least 10 lbs. of the seed should be collected, and intimation of this having been done sent to the Inspector-General of Forests, who will advise the Conservator concerned how to dispose of the seed, and if necessary, give instructions for the collection of a further quantity.

The occurrence of a good seed year of any of the more important kinds of trees or bamboos in every Forest Division should be reported to the Editor of the Indian Forester.

20. Collection of edible forest produce. Conservator's circular No. 71-T.P., dated 7th August 1891, and Bengal Government letter No. 15 T.-R., dated the 23rd July 1891.

- Unless absolutely necessary in the interests of fire-conservancy and the general protection and improvement of the forests, the collection, consumption, and removal by the public of any forest-produce, other than animals and the part and produce of animals which may be utilizable as human food, or in medicine, or which may be required for some purely ornamental purpose, such as ferns, flowers, grasses, etc., should not be interfered with, provided-

(i)

that all produce collected and removed under the permission contained in this order is for private use, and not for sale or barter; and

(ii)

that when the edible or medicinal produce is an article of trade in the locality, and of commercial value, bringing in an annual revenue of Rs. 100 or more, it may not be removed by any person in larger quantity than one seer at a time.

20A.

[Free grant of certain privileges to villagers adjoining the reserved and protected forests in Bihar,

[Rule 79-A (as per Government Publication, here 20A) Inserted vide C.S. No. 181, dated 19.6.1942.]

(Government of Bihar Revenue Department Letter No. 8994-IIIF-23/39-R., dated the 11th December, 1939). - "(1) Any bona fide recorded tenant of any land or building who resides in a village which is actually contiguous to a reserved or a protected forest may, within the limits of such forest and without payment-

(a)

collect mahua fruits and flowers, and other edible flowers and fruits and roots for his own domestic use but not for any kind of transfer whatsoever, whether permanent or temporary, or absolute, or conditional. This privilege will be allowed subject to the control of the Forest Department and under the restriction that the undergrowth or dry leaves should not

be burnt for purposes of clearing the ground to facilitate collection;

(b)

pasture and use springs for watering his own cattle or buffaloes which are his own bona fide property and are used for his own domestic and agricultural purposes:

Provided that he will not be entitled to this concession for any cattle exceeding four heads for every acre of land he cultivates:

Provided further that grazing will be permitted only in such areas as may be set apart for the purpose from time to time by the Forest Department.

(2)

If the villagers abuse the privileges allowed to them and wilfully damage the forest, the Conservator of Forests may suspend the exercise of the privileges for such time as he thinks fit. If after repeated warnings and suspensions the villagers continue to damage the forest, the matter should be referred to Government for orders.]

21. Grant of forest produce to villagers free or at concession rates from Reserved Forest (Government Letter No. 1097-III-F-229-R.R., dated 2nd September, 1931).

- (i) It is not the policy of Government to grant to villagers, forest produce from reserved forests at concession rates. Each application for such concession should be considered on its merits and should not ordinarily be granted unless the rights to such a concession have been exercised and admitted or recorded in the past, nor should it be usually granted where the villagers have wasted their supply in the village or protected forests by indiscriminate cutting:

Provided the principles are followed, the Chief Conservator of Forests may make grants of timber or other forest produce free or at concessional rates up to the value of Rs. 1000/-, and the Divisional Forest Officers up to the value of Rs. 250/- in any one case subject to the conditions laid down in Article 58 of the Forest Department Code 7th Edition:-

Note 1. - The existing Rules do not permit of a free grant of Forest produce to persons for rebuilding their houses which have been burnt down by fire [Vide Government Letter No. 10093-111F-194-R., dated 3.9.1934].

[Note 2. - (1) Free-grant of timber not exceeding Rs. 300/- a year may be granted for annual repairs to village schools in the Khashmahal villages in the forest divisions in Singhbhum district. (Revenue Department letter no. 7587 R-IIF-102, dated the 8th November, 1938).]

[Vide C.S. No. 144 dated 30.11.1940.]

[Note 3. - The Deputy Commissioner of the Santhal Parganas is empowered to make free grants of timber [xxx]

[Inserted vide C.S. No. 167 dated 15.8.1941.]

to the resident raiyats of Khashmahal villages outside the Damin area except those who pay rents for their homestead lands only, provided there is timber available in the protected forests, if there be any, in their own villages. (Vide Revenue Department Letter No. 55-III-F-14-41-R.R., dated the 24th April, 1941).]

(ii)

Grants of timber or other forest produce free or at concessional rates will not normally be made to the educational and charitable institutions for the constructions of or repairs to buildings, unless, the grant is to be used for the benefit of the public or sections of the community in their collective capacity and for real assistance in the development of forest Revenue.

(iii)

In times of distress, e.g. after flood or fire, forest produce distributed at the instance of Revenue Officers should be paid for by them out of grants placed at the disposal for purposes of relief except where the recipients have a right to such produce in which case it should be supplied free up to the limit of the particular forest area in which such rights subsist. Any produce supplied in excess of those capabilities, e.g. from other forest area, should be paid for by the requisitioning authority according to the schedule of rates prevalent in the locality.

(iv)

The value of the free grant of timber should be calculated as follows:-

(a)

The value of free grant of timber other than timber from the depots, will be calculated in terms of full royalty as mentioned in the Schedule of rates prevalent in the locality.

(b)

The value of timbers from the depots is the sale value in the depot.

(v)

The Forest Department is considered to be one of Quasi Commercial Departments which are to be remunerated for service rendered and for produce supplied. The Forest Department will charge the departments of Government or local bodies for all forest produce supplied to them at market rate or in the same manner in which it charges the public provided that this rate will not apply in case when the Forest Department is certain to benefit from the transaction.

There is, however, no objection to making free grants of stones, road metal and other forest produce from Government forests under the control of the Forest Department to district boards or local bodies where their roads pass through and are useful to Government forest. Such grant should be made by formal grant which must pass through the accounts of the Forest Department and necessary provisions for it should be made in the Forest Budget. The Chief Conservator of Forests is authorised to make such grant to a value not exceeding Rs. 500/- in any one case subject to the limit of Rs. 1000/- a year and the Conservator upto a value not exceeding Rs. 250/- in any one case subject to the limit Rs. 500/- a year, for all cases taken together.

(vi)

Free grants of timber or other forest produce may be granted to the employees of the Forest Department who are serving or have served the Department loyally and faithfully at free or concessional rate by the State Government on recommendations made by the Chief Conservator of Forest, Bihar.

(viii)

The cost of free grants of timber etc., is debitable to the budget grant under Forests-Conservancy and Works-Miscellaneous- Revenue foregone by free grants.

22. Free grants of forest produce (Government of India No. 2024-214-2-F., dated 11th September 1905. Bengal Government no. 4244-T.R., dated the 17th October 1905).

- The following Rules [regarding]

[For further information regarding this matter see relevant matter below Rule 122 (as per Government Publication, here Rule 63) in indent (Pg. 361).]

free grant of forest produce for works of Public Departments in the Santhal Parganas are prescribed:-

Timber and other produce required for Public Works, such as roads, bridges and buildings, which will be of assistance in the development of forest revenue in the Santhal Parganas district, shall be supplied by the Forest Department free of charge on the following conditions:-

(1)

The Deputy Commissioner will cause estimates of amounts of timber or other produce required for each work to be prepared, and will forward them on to the Divisional Forest Officer with instructions to mark the trees or make over other produce required.

(2)

On the receipt of such instructions the Divisional Forest Officer must, unless the value of the trees or other produce at current rates exceed Rs. 500, or he has reason to consider an estimate excessive, in either of which cases he must at once report to the Deputy Commissioner, mark the trees or supply the other produce in the area most conveniently situated in respect to the work for which they are required, where trees or other produce are available.

(3)

If the value of trees or other produce required for any work exceeds Rs. 500 the Deputy Commissioner will refer to the Conservator with a view to obtain Government's sanction of the grant, and, if he does not agree to the reduction of any estimate proposed by the Divisional Forest Officer he will consult the Conservator. If he fails to agree with the Conservator the question must be referred to the Commissioner for final orders.

(4)

If the Forest Department supplies timber or other produce it has collected at the cost of Government, the Civil Department will refund to the former direct expenses incurred on its collection.

Chapter-III [Bihar Government Reserved Forest Grazing Rules, 1939]

[Rule 81-A (as per Government Publication, here Rule 22-A) Inserted vide C.S. No. 145 dated 30.11.1940.]

22A.

[Rules to regulate the pasturing of cattle in Government Reserved Forest.

[Rule 81-A (as per Government Publication, here Rule 22-A) Inserted vide C.S. No. 145 dated 30.11.1940.]

- In exercise of the powers conferred by clause (d) of Section 76 and clause (a) of sub-section (2) of Section 26 of the Indian Forest Act, 1927 (XVI) of 1927), the Governor of Bihar is pleased to make the following Rules to regulate the

pasturing of cattle in Government Reserved Forests. -]

1. These Rules may be called the "Bihar Government Reserved Forests Grazing Rules, 1939".

2. In these Rules, unless there is anything repugnant in the subjects or context: -

(a)

"Grazing licence" means a licence granted under Rule 4; and

(b)

"Licensee" means a person who holds a subsisting Grazing Licence.

3. (a) Save as provided in Rule 9, no person other than a licensee shall pasture cattle in any Government Reserved Forest.

(b)

No licensee shall pasture cattle in Government Reserved Forest except in accordance with the conditions of his licence.

4. The Divisional Forest Officer or any other Forest Officer authorised by the Divisional Forest Officer in this behalf may, on application by any person, and on payment by such person of the fee fixed under Rule 5, grant to such person a licence authorising him to pasture cattle in a Government Reserved Forest.

5. The fee payable for a Grazing Licence shall be such fee, not exceeding two rupees per head of cattle as the Divisional Forest Officer may, with the approval of the Conservator of Forests, from time to time determine and shall be either paid in cash to the officer to whom the application is made or deposited in the nearest treasury. If the fee is deposited in a treasury, the duplicate of the challan showing the deposit shall be delivered to the Officer to whom the application is made.

6. A Grazing Licence shall be in the Form appended to these Rules and shall -

(a)

be valid for the area and for the period mentioned therein;

(b)

entitle the person to whom it is granted to pasture any number of cattle not exceeding the number entered therein; and

(c)

be subject to the conditions specified therein and to the provisions of these Rules.

7. A Grazing Licence shall not be transferable.

8. A licensee or his agent or servant, as the case may be, shall, while he is pasturing cattle in a Government reserved forest, carry his Grazing Licence and shall, on demand by any Forest Officer, produce the same for his inspection.

9. Notwithstanding anything contained in Rule 3, a person whose right to pasture cattle free of charge in the Government Reserved Forest of any village has been recorded in the record of the Forest Settlement of the village prepared by the Forest Settlement Officer under Chapter II of the Indian Forest Act, 1927 shall be entitled to pasture cattle in such forest without a Grazing Licence.

10. The Divisional Forest Officer may cancel a Grazing Licence if the licensee or any servant of the licensee commits a breach of any of the conditions of such Grazing Licence or of any of these Rules.

Form of Grazing Licence

[See Rule 6(a)]

Book No.

Forest Department..... Bihar

Grazing Licence No.

..... Division

Zamindar/dealer.....

Locality

Name and address of the licensee

No. and particular of animals

Rate

Total amount paid

1

2

3

4

Date of issue.....

Date of expiry.....

Signature of Divisional Forest Officer or other Forest Officer authorised in this behalf by the D.F.O.

Signature of check Muharrir

[Government of Bihar, Revenue Department Notification Nos. 8997-R/III-T-152-39, dated 12.12.1939, & 366-R/III-F-152, dated 15.1.1940]

23. Grazing in river-beds adjoining State forests. Bengal Government letter No. 670-T.R., dated the 31st August 1904.

- Cattle of all descriptions may be grazed in the bed of any river which though included in a Government reserved forest at the same time forms a boundary between the reserved forest and either a protected forest or a Government or jagirdari estate:

Provided that the Deputy Commissioner may order any or all cattle-owners who graze their cattle in such river-beds to discontinue grazing cattle in the same if he considers that such owners or their servants have on any occasion failed to take sufficient precautions to prevent or extinguish forest fires, or to prevent trespass of their cattle in other parts of reserved forests- or if he is of opinion that the grazing of their cattle is likely to lead to forest fires or to cattle trespass in other parts of reserved forests.

24. Control of trees etc. on the portions of the Ranchi Chaibasa Road falling within Reserved Forests (Vide Government of B. & O.P.W.D. No. 4243-C-IR-5 dated 23.3.1916).

- The Forest Department should have control of the trees and other forest produce situated on the portions of the Ranchi-Chaibasa road falling within the Reserved Forest.

Chapter-IV Control of Timber and Other Stock

Procedure and Accounts

25. Fellings.

- (i) The produce of all fellings must appear either in Form No. 1 or No. 4 or No. 6, or in the form which may be prescribed under Rule 96 (as per Government Publication, here Rule 37).

(ii)

"The gross yield" of a forest is the total volume (in cubic metres solid) or quantity of all produce felled or cut, whether removed and utilised or not. The "Outturn" or net yield comprises such portion of the gross yield as has been or will be utilised.

(iii)

The gross yield of all fellings by Government agency must appear in Form Nos. 1 and 2. Wastage or other unutilisable material will be written off in Form Nos. 1 and 2. The out turn of illicit fellings shown in Form No. 12 should be shown in Form No. 1 when the produce lapses to Government. The out turn of all other fellings must appear in Form No. 4 or No.6 or in the form which may be prescribed under Rule 96. This will not apply to areas being worked departmentally for which separate Rules have been framed.

26.

Depots.

- Under the system of Government working, two classes of depots will be established:-

(i)

Forest depots.

(ii)

Sale depots.

It will rest with the Conservator to decide what localities shall be forest depots and which sale depots (In some cases special plots will be set aside as "forest depots" in other, the areas where the fellings have been made will be considered as "forest depots").

27.

Depot Register.

- All timber and forest produce on reaching a forest depot and on its despatch or disposal will be shown in Form No. 1. The Chief Conservator of Forest will issue instructions whether all columns in these forms shall be filled up or whether any may be left blank.

28.

Register of receipts and disposals in depots.

- In each sale depot will be kept a Register of Receipts and Disposals (Form No.1) in which will be entered all stock as it arrives or is sold or otherwise disposed of. Separate Registers will be kept for-

(a)

Timber, including drift and waif wood;

(b)

bamboos, fuel, and other forest-produce.

29.

Timber received in sale depots to be measured and marked.

- (i) All logs and scantlings on reaching a sale depot will be measured and marked in such manner as may be ordered by the Conservator. The number or measurement, or both as the case may be of the logs and scantlings must be entered daily in the Register of Receipts as they are taken charge of.

(ii)

Sale-Mark. - Logs and scantlings, when sold, will be marked with the sale mark.

30.

Monthly Depot Returns (Form Nos. 2 & 3).

- (i) The following returns will be submitted monthly from each forest and sale depot to the Divisional Officer:-

Form No. 2. - Receipts and issues of timber and other produce.

Form No. 3. - Sales of timber and other produce, including drift and waif wood.

(ii)

Each description of produce will be grouped together, and the numbers and quantities will be totalled separately. The receipts and issues of forest depots will be shown separately from those of sale depots. These returns should be filed in the Divisional Office after check in guard books or bound.

(iii)

All transactions shown in Form No.2 necessitating payments should appear in Form No. 14, Forest Account Code of the same month and vice versa. Should the transactions be shown in Form No. 2 and Form No. 14 of the Forest Account Code, for different months, a note should be made in the "Remarks" column of the Form in which the transaction has been entered showing the months in which the entry appears in the other Form. When the entries made in both Forms do not tally the discrepancy should be explained against the entry in Form No. 2.

31.

Sales of timber etc collected by Government agency.

- (i) Form No. 3, will show the sales, the proceeds of which are credited under Revenue head-I, and of so much under head-III as is obtained by the sale of drift and waif wood and confiscated forest produce collected by Government agency.

Form No. 3 (ii) The entries in this Form will consequently comprise all disposals by sale of timber and other produce shown in Form No.2, the totals for forest depots and sale depots being shown separately.

32.

Permit Form No. 9.

- (i) For all timber or other forest produce sold otherwise than from depot, a permit in Form No.9 or [Form No. 37]

[Vide C.S. No. 146, dated 30.11.1940.]

must be given before any of the aforesaid purchase can be removed by the purchaser. In the case of trees felled and logged by the purchaser in the forest, such permit will not be issued without the production of the Coupe Officers' certificate in Form No. 10. This permit or licence will be issued under such Rules and in such Forms as the State Government may from time to time prescribe. Permit or licence Forms shall be kept in [duplicate, or]

[Vide C.S. No. 146, dated 30.11.1940.]

triplicate in bound books and bear printed serial numbers and the words 'original', 'duplicate' and 'triplicate'. Each permit or licence issued shall be filled in by the officer issuing it in the original as well as in the counterfoils, and be provided with a serial annual number. All amounts of produce as well as of money, shall be written in words as well as in figures.

(ii)

In the case of pre-paid licenses the officer issuing the licence may receive either cash or a treasury challan as proof of payment. The original licence shall be given to the licensee, the duplicate shall be attached to the monthly accounts and the triplicate be kept by the issuing officer.

(iii)

In cases where under the conditions of the permit, timber is marked with a Government sale-hammer on passing revenue stations, or where forest produce is otherwise allowed to leave the limits of the forests, the officer marking such timber or passing such forest produce shall collect the original licences, and the purchase certificates which may have been granted on the strength of such licenses and forward them to the Divisional Officer under whose signature or authority they were issued. They should be pasted into the book of licenses, each against its counterfoil.

(iv)

In the case of unpaid licences, or purchase certificates granted thereunder, the original shall be given to the licensee and the duplicate be sent to the officer empowered to mark or pass the produce on payment of the revenue due when the payment has been effected which may be done by cash or treasury challan. The officer receiving it shall at once return the duplicate, entering thereon any purchase certificates which may have been granted on the strength of such licence. These should be pasted into the licence book of the issuing officer, each against its counter foil. The original should be submitted as a revenue voucher to the accounts of the passing officer.

(v)

The books of licences should be periodically examined by the Divisional Officer, the returned licences being checked with their counterfoils and with the entries of the amounts realised on their account in the cash book or in the original accounts of the officer who issued the same, and an explanation called for as regards any licences missing or unduly delayed.

33.

Taking stock in sale depots.

- The stock at each sale depot must be counted periodically at such intervals as the Conservator may direct, the depot books being balanced at the time of counting.

34.

Bill and Receipt Books (Form Nos. 7 & 8).

- (i) A bill book must be used for lists of timber and other produce sold from depots. On each transaction taking place, the bill may be given to the purchaser, while a copy is rewarded to the Divisional Officer and the counterfoil will form the depot copy.

(ii)

A receipt book must also be used for receipts of price paid to be given to purchasers.

35.

Return showing Sales from forests of Produce cut by purchasers (Form No. 4).

- (i) All timber or other produce cut, collected and removed from the forest by consumers and purchasers will be entered in a monthly statement prepared in Form No. 4. The Range Officer will submit this return monthly to the Divisional Forest Officer who will file it in his office after check in guard books or have it bound.

(ii)

Form No. 4 will show the sales, the proceeds of which are credited under Revenue head-II, arranged and totalled in horizontal lines according to subheads, and so much of the revenue under head-III, as is obtained by the sale of drift and waif wood and confiscated forest produce collected and removed by consumers or purchasers.

(iii)

When leases are granted for certain fixed periods to collect produce and the revenue is payable in instalments an estimate should whenever practicable, be made of the quantity of produce removed, and the total estimated quantity should be shown in Form No. 4 once only. When the last instalment of revenue due is entered in that Form as having been received.

(iv)

When the price of the produce entered in column 6 is only partially realised, or not realised at all, the number and date of the Conservators' sanction for deferring realisation should be noted in the column provided for this purpose.

(v)

Any entry in Form No. 4. in which the rate differs from the sanctioned schedule of rates should be intialled by the Divisional Forest Officer in the "Remarks" column to show that the rate has been adopted under his orders.

36.

Revenue demand and outstandings (Forms Nos. 5, 25 and 28).

- (i) Revenue payable for timber and other produce sold under an agreement which is paid in one or more instalments on fixed dates will be entered in red at once on execution of lease in the proper columns in Form No. 5. Each sale will be given a serial number. All payments will be entered in black, in column "PAID", and all overdues in red. If any amount is paid by a contractor in excess of the demand or in advance against a Particular 'sale entered in this Form the amount will be entered in black in column "PAID" in the month in which it is collected and will be carried forward to the column "overdue" in the following months either as a minus black entry or as a red ink entry according as the payment is in excess or deficit of the amount due in the previous month. The revenue demands for which there is no agreement, such as the grazing and house licence fees realized by the Khas Mahal Authority in the Puri Forest Division, will be entered in this Form and will be treated as due on the last day of the financial year. Two copies of this form will be prepared, one copy being kept in the Divisional Office and the other sent to the Conservator of Forest monthly, which will be returned after his perusal.

When revenue on account of sale of timber or other forest produce on royalty basis is paid in advance, the amounts will be at once credited to the appropriate sub-heads in the cash book, entries being made in red ink in Form No. 3 or 4, as the case may be, showing the nature of transaction, etc. Such revenue should in no case be left unadjusted for longer than three months. A ledger account should be maintained in Form No. 12, Forest Account Code, a separate account being opened for each contractor for each separate contract.

Petty revenue demands, such as water rent, house rent, etc. should be entered in a register in Form No. 28, and maintained in Divisional Office. Any revenue not fully realised, in Form No 4, should be noted in the remarks column of that Form. The Form No. 4, should be kept pending until the amount is realised and other objections settled. As a matter of principle, no produce should be allowed to be extracted from the forests until the value is fully realised. Recoveries from subordinates for losses of or damage to Government property through negligence are not fines and should be entered either in Form No. 4, or in Form No. 28 to watch recovery.

An abstract of realisations and outstandings in Form No. 25, will be submitted monthly to the Conservator of Forests by the Divisional Forest Officers with a note of all changes (by reference to serial numbers in Form 5) and additions.

(ii)

If any outstanding revenue becomes irrecoverable the sanction of the proper authority should be obtained to its being written off; and when the sanction is received, the amount should be entered in red ink, in the column "PAID" in Form No. 5, or in the column "Date of recovery" in Form No. 28, a reference being made to the sanction under which the entry is made.

37.

Produce removed by right-holders.

- Whenever practicable, produce removed by right-holders, or under privileges granted by Government shall be shown in registers similar to Form No. 6, but with necessary alterations in the headings.

In the case of produce granted either free of charge or at concession rates to non-right holders for building their houses destroyed by fire or flood or to a public school or charitable institution, a book adjustment of the estimated value of the free grants or the concession made to them should be made in the accounts both in the revenue and the expenditure sides, thus necessitating a provision for both the receipts and the expenditure being made in the Forest Department Budget. Details of such grants shall be maintained in Form No.6.

Register of free grants of forest.....Dn.....During 20..... produce in the.....

Authority under which granted

Range

Village

No. of right for holders

Purpose for which granted

Description

Produce No. or quantity.

Granted Value

Remarks

Rs.

P.

1

2
3
4
5
6
7
8
9

The value of produce removed by right-holders shall not be so adjusted in the accounts.

38.

Return of Stores, tools and Plant. (Form No. 11).

- (i) A return (Form No. 11) of stores, tools & plants will be submitted to the Conservator of Forests by Divisional Forest Officers once a year on the 1st September.

(ii)

Stores, tools and plant, should ordinarily be classified as follows:-

(a)

Surveying and other instruments.

(b)

Machinery.

(c)

Tools.

(d)

Office and rest-house furniture.

(e)

Tents.

(f)

Building materials, small stores and house fittings.

(g)

Miscellaneous.

39.

Returns of livestock.

- (i) In those divisions where Government elephants or other cattle are kept, returns of livestock together with a statement of the cost of upkeep and of the work on which they have been employed will be submitted to the Conservator of Forests in such forms and at such time as may be prescribed by the State Government.

(ii)

Returns of elephants should show name, sex, age, height, value and conditions of the animals.

40.

Seizure and disposal of forest produce, and other property (Form No. 12).

- A return (Form No. 12) of forest produce and other property seized and disposed of during the month in accordance with the forest law or rules in force will be submitted monthly by Range Officers to the Divisional Officer. This return, will be returned to the Range Officer after check and noting the fresh entries in the Divisional Copy of the return.

Chapter-V General

41.

Members of the office establishments not to be entrusted with Government money, nor to receive applications or payments for forest produce.

- (i) Members of the office establishments should not to be entrusted with Government money, except as advances by cheque on account of the pay of office establishments and for contingent charges which should as a rule, be made payable only to the head or camp clerk, nor should they be authorised to receive payment for forest produce, but in the absence of the Divisional Forest Officer from headquarters the head clerk of a Forest Divisional Office may countersign for or on behalf of the Divisional Forest Officer challans for forest revenue to be deposited into the Treasury by the purchaser of forest produce or by his agent, provided that the head clerk shall be held responsible for reporting to the

Divisional Forest Officer immediately on his return to the headquarters the challans that he has so countersigned. All subordinates who have the custody of Government moneys or who deal with the collection of forest revenue should be made to furnish security in accordance with the rules in force.

(ii)

Applications for forest produce should be received by the Divisional Forest Officers or other officer especially authorised, and not by the members of the office establishment, when the officer so authorised is not at headquarters, the application should be sent to him accompanied by the treasury challan, on receipt of which he can issue the necessary licence.

Note. - The head clerk as a regular disburser will maintain a cash book of his own and will pay all bills at headquarters. The camp clerk will similarly pay all bills in the camp office and will maintain a cash book of his own. Pay and travelling allowance bills of Gazetted or non-Gazetted Officers will not be paid by them without the previous pay order of the Divisional Forest Officer.

42.

Placing of private money in Government Cash Chest prohibited.

- Under no circumstances shall any Forest Officer or subordinate place any private money in his government cash chest.

43.

Defalcation or loss of public money by fraud.

- Whenever any defalcation, or loss of public money or fraud in connection with the revenue from timber or other forest-produce is discovered, the fact should be immediately reported to the local Government and when the matter has been fully inquired into, a further and complete report should be submitted to them of the nature and extent of the loss, showing the errors committed or neglect of Rules by which such loss was rendered possible, and the prospects of effecting a recovery. (See also Article 29, Civil Account Code.)

44.

Recovery of losses and disciplinary action.

- The following procedure should be followed when losses of public money occur through the negligence or fraud of individuals:-

(i)

Should the Administrative Authority require the assistance of the audit officer in the investigation of any loss due to fraud, negligence, financial irregularity etc., he may call on that officer for all vouchers and other documents that may be relevant to the investigation; and if the investigation is complex and he needs the assistance of an expert audit officer to unravel it, he should apply forthwith for that assistance to Government who will then arrange with the audit Officer for the services of an investigating officer.

(ii)

Steps should be taken to ensure that an officer likely to be held responsible for any loss or irregularity which is the subject of an enquiry, is not inadvertently allowed to retire on pension while the enquiry is in progress. Accordingly when a pensionable Government servant who is likely to apply for pension is so concerned, the authority investigating the case should immediately inform both the audit officer who is responsible for reporting on his title to pension and the authority competent to sanction the pension. It will be the duty of the latter to make a note of the information and to see that pension is not sanctioned before either a conclusion is arrived at as regards the Government servant's culpability, or it has been decided by the sanctioning authority that the result of the investigation need not be awaited.

45.

Filling up of cheques forwarded to the Treasury for re-credit in the Treasury Accounts.

- All cheques forwarded to the Treasury for re-credit in that Treasury Accounts should be endorsed as follows under the signature of the Forest Officer: "Received payment by transfer credit to Revenue under head of service A. B. Forest Officer". No such cheque should ever be made payable to any Forest Officer or Treasury Officer by name or by official designation. (C.F. Note 2 to Article 26, Civil Account Code)

46.

Unusual expenditure.

- Whenever unusual expenditure, i.e., of a novel, doubtful or irregular nature has to be incurred, the sanction of the State Government must be obtained.

47.

Extent of powers of sanction given in Articles 69 and 70, F. D. Code, 7th Edn.

- It must be distinctly understood that the power of sanction given in Articles 69 and 70, F. D. Code, 7th Edition, must be exercised within Budget limits; that is, no expenditure must be incurred under any Budget head if the provision made under such head by competent authority is not sufficient to cover the outlay.

48.

Execution of works requiring sanction on estimate.

- Works requiring sanction on estimate shall not be commenced until the estimate prescribed in Article 70(ii) of the Forest Department Code, 7th edition, has been sanctioned.

49.

Advances to contractors.

- In accordance with Article 71 of the Forest Department Code. 1913, the following instructions are laid down for observance in granting advances to contractors. [Vide B. & O. Government Order No. 5300-III-F-102-R., dated 23.7.1913]:-

(1)

Advances to contractors should only be given in exceptional cases when no other arrangements can be made for carrying on the work.

(2)

Whenever possible no advance should be made exceeding in amount the value of work already completed.

(3)

In exceptional cases, where it is necessary to grant an advance before work is commenced, the Divisional Officer must satisfy himself that the contractor is reliable and in a solvent state, and must cause the contractor to execute a personal agreement for the summary recovery of the amount advanced. Wherever possible, a third party should be added as surety for the amount.

(4)

No advance or advances exceeding an amount to be fixed by the Conservator should be granted to any contractor without the sanction of the Conservator.

(5)

Divisional Officers will be held personally responsible for all advances to contractors when the amounts advanced can be shown to have been needlessly or imprudently large or frequent.

Under the provisions contained in clause (4) above, Divisional Forest Officers of the rank of Deputy Conservator of Forests may grant an advance up to Rs. 500 and other Divisional Forest Officers up to Rs. 250. (See also Rule 161 of the Bihar and Orissa Account Code.)

49A.

The following procedure should be observed from 1st April 1938 for the accounting and verification of balances of the advances made to private individuals for demarcating their forests and other advances on account of the original construction of roads, buildings, wells, etc., which are recoverable from profits in accordance with the terms of the lease for the management of private forests by Government:-

1. Accounting of advances to and repayment by private individuals for demarcation of forests and for buildings, roads, wells, etc. - These advance should be drawn by the Conservator of Forest, Bihar, or any other officer authorised by him in this behalf in the same manner as other miscellaneous expenditure is drawn and charged in the Forest Accounts. They should be drawn in lump (in Form 111 of Schedule XVIII) quoting the number and date of the particular Government order sanctioning the advance. In drawing these advances it should be seen that the disbursement is covered by grant.

2. The amount drawn should be charged to the head "R-Loans and Advances by Provincial Government-Miscellaneous Loans and Advances-Advances for demarcation of private forests, buildings, etc." in the Forest.

3. When recovery of the advances is effected, the amount representing recovery of the principal should be credited to the same head in lump while the amount representing recovery of interest will be credited in lump to the head "XX-Interest on miscellaneous loans and advances". Both these should be shown in the receipt side of the Forest Cash Accounts.

4. With each month's accounts the Conservator of Forests, Bihar, or the Divisional Forest Officer concerned will transmit to the Accountant-General, Bihar, a plus minus memo, (in Form No. 80 of Schedule XXV) in which a manuscript head

"Advances F for demarcation of private forests, buildings, etc." should be opened in the column "Nature of advance" under "Miscellaneous Loans and Advances" and the balances as well as advance and recovery properly exhibited after due agreement with his account. The Conservator of Forests, Bihar or the officers authorised by him on this behalf should sign the plus minus memo.

5. Soon after the accounts for March are closed each year the Accountant-General, Bihar, would furnish to the Conservator and the Divisional Forest Officers concerned a statement showing the amount of the balances from the previous years, the amount of advances made during the year, the amount of recoveries made, and the balances on the 31st March. This statement would be returned to the Accountant-General, Bihar, by those officers after check with their books with a certificate of their acceptance of the balances at the close of the financial year shown in the departmental records against each owner separately. [Finance Department Letters Nos. 2958-F., dated the 31st March, 1938 and 4348-F., dated the 30th May, 1938, vide C.S. No. 148, dated the 30th November 1938].

50.

Cash book of Subordinate Officers.

- The cash book of all disbursing officers subordinate to the Divisional Forest Officer shall contain a detailed record of their daily transactions and shall be written up daily.

51.

Maintenance of accounts by forest subordinates not in charge of ranges.

- A Divisional Forest Officer may authorise any subordinate officer not in charge of a range to issue permits for petty sales of forest produce, to collect revenue and issue receipts for same and to receive small advances for payment for work done. A forest subordinate thus authorised may or may not maintain a cash book for this purpose, but he will render proper accounts to his Range Officer at suitable intervals for incorporation in the latter's cash book in accordance with such instructions as may be issued by the [Chief] Conservator of Forests, (vide Appendix XIX).

52.

Suspense transactions.

- All receipts and charges on account of private firms, Government departments, public sector undertakings etc. which cannot be adjusted at once will be shown under the head "Suspense". Such receipts and charges must not be allowed to remain unadjusted for more than twelve calendar months.

53.

Pay bills of Gazetted Officers (Form No. 14).

- The pay bills of Gazetted Officers (Form No. 14), duly receipted with stamps attached, when necessary, will accompany the accounts as vouchers, copies being kept in the Divisional Office.

54.

Permanent establishments (Form No. 15).

- (i) The establishment bills of the permanent staff, in English or vernacular, will be prepared in books (Form No. 15) and the signature of each recipient will be taken when payment is made, receipt stamps being attached when necessary. When receipts of persons serving at a distance are obtained on separate abstracts the Divisional Forest Officer will note in the signature or "Remarks" column of the divisional bill book that the receipts of the incumbents have been obtained and filed separately.

(ii)

Establishment bills. - In the establishment bills complete lists of the sanctioned scale of establishment will be entered on the first day of each month; but only amounts actually paid up to the last day of the month, and for which payees; receipts have been received in the Divisional Office will be charged in the cash book. Amounts remaining unpaid will merely be entered in the appropriate column in red ink and left out of the total for each range or forest unit to be posted in column 8.

55.

Absentee Statement.

- The State Government having declared that the Subordinate Forest and Office establishments of the several Forest divisions with the exception of Forest Guards should be treated as on a provincial scale for purposes of audit, the Accountant-General has introduced the forms of Absentee statements prescribed in Article 66 of Civil Account Code. (See Note to Article 54 of Forest Account Code.)

56.

Vouchers for pay of permanent establishments.

- The vouchers for the pay of permanent non-gazetted establishments to accompany the cash accounts will be abstracts from the establishment bill book signed by the Divisional Officer. In these vouchers the names of persons in inferior service need not be given, but the number and designation of posts in each grade on different rates of pay must always be specified. (See Supplementary Rules 35 of Bihar and Orissa Account Code.)

57.

Travelling allowance bills (Form No. 16 & 17).

- (i) The travelling allowance bills of Gazetted Officers will be prepared in standard Form T.O. Form No. 2 of the Bihar and Orissa Account Code vide Manual Form No. 16.)

(ii)

The travelling allowance bills (Form No. 17) of Non-Gazetted Officers must be supported by journey receipts which will be written up in the prescribed form.

(iii)

Hours of Journeys should be quoted in the Bills-

(a)

when for an absence from headquarters of not more than two consecutive days daily allowance is claimed for two days;

(b)

when mileage or actual expenses, in lieu thereof are claimed;

(c)

when both railway or steamer fare and daily allowance are claimed in respect of a journey by rail or steamer immediately preceded or followed by journey by road or by a halt.

(iv)

When long journeys by road are undertaken or where journeys by road are done between points which are connected by Railway an explanation should be submitted alongwith the travelling allowance bill.

(v)

The travelling allowance bills will be submitted with the monthly accounts as vouchers. The travelling allowance bills of the Chief Conservator of Forests may be paid without counter signature and those of other Forest officers including the Conservators will be counter signed previous to payment by the officer to whom powers have been delegated by Government for counter signature of travelling allowance bills. The local Government may delegate to Divisional Forest Officers the power of counter signing the travelling allowance bills of members of the executive, protective and office staff serving under him.

Note 1. - The number of miles travelled should be entered in all cases of journeys by road or by boat.

Note 2. - Permanent travelling, conveyance, and horse allowances should be drawn along with the pay of the officer and not on travelling allowance bills.

Note 3. - When the first item of travelling allowance to any officer is a halt the date of commencement of that halt should be stated in the "Remarks" column.

Note 4. - Whenever daily allowance for more than ten days of a halt at one place is drawn by any officer, a certificate should be given on the travelling allowance bill to the effect that camp equipage was maintained during the whole period of the halt.

(vi)

The bills of Forest Officers not under the control of the Conservator will be countersigned by such officer as the local Government or other chief local authority may direct.

(vii)

Divisional Officers must countersign all the travelling allowance bills of their officers before submitting them to the Conservator.

(viii)

The officer who countersigns travelling allowance bills must satisfy himself that the charges are justified by the circumstances of the case.

58.

Claim for arrear travelling allowance.

- Charges on account of travelling allowance should be billed for during the month in which they are incurred or during

the following month. No claim for arrear travelling allowance bills should be admitted without satisfactory reason for the delay unless accompanied by a certificate given by the Divisional Forest Officer that the amount claimed was not drawn in any previous occasion. In no cases should bills which have been allowed to remain unpaid for more than two months be paid without the sanction of the Conservator.

Fixed T.A. - The fixed monthly Travelling Allowance sanctioned for Forest Ranger and Foresters which was sanctioned in Revenue Department letter No. 188R, dated 16th January, 1956 has been raised as follows (Vide letter No. A/F-9 (D 020/68-2475 dated 9th July, 1968 of the Government of Bihar, Forest Department).

Forest Rangers - Rs. 65/- (Sixty five monthly),

Foresters - Rs. 40/- (Forty monthly).

Subject to conditions laid down in Government No. C/F-1 (B) C165/57-26 R, dated 3rd January, 1958 and No. C/F 1062/55-188 R, dated 16th/17th January, 1956 which together with Letter No. 2474 quoted above are reproduced in App. XV.

59.

Vouchers for travelling allowances.

- The vouchers for charges on account of travelling allowances will be the Original bills countersigned by the [Chief] Conservator or by the officer duly authorised by the State Government and receipted by the payees.

60.

Revenue Remittances to treasuries.

- All entries in the cash book of "remittances of revenue to treasuries" will be supported by vouchers, in the Treasury challan or advice list form. The name of the treasury and the treasury number and date of each challan or advice list will invariably be entered in the cash book in the column of "Particulars"; and when revenue is remitted to a sub-treasury or tahsil the name of the district treasury to which it is subordinate must also be given.

61.

Treasury Challan.

- (i) Every challan or advice list will be examined and initialled by the Divisional Forest Officer who must satisfy himself that it bears the Accountant's and the Treasurer's signatures, and if the sum acknowledged is Rs. 500 or more, the Treasury Officer's signature also. Challans for sums paid by cheques in favour of the Treasury Officer will not be signed by the Treasurer; the second signature on such challan for sums under Rs. 500 will be that of the person who may have been nominated to that duty by the district officer. [See also Article 5, Civil Account Code].

(ii)

The following particulars will be given in English on the back of each vernacular challan or advice list:-

1. Name of sub-treasury or tahsil.
2. Amount acknowledged.
3. Number and date of Treasury Officer's receipt.
4. By what Forest Officer remitted.

62.

Vouchers.

- (i) All payments must be supported by vouchers in the following forms:-

Pay of permanent or temporary establishment

...

Form Nos. 14-15

Travelling allowance bill

...

Form Nos. 16-17

Cash remittance to treasuries

...

Treasury challan or advice list

Revenue derived from supplies to public departments

...

Form No. 9 of F. A. Code

Daily labour form

...

Form No. 10 of F. A. Code

All other payments

...

Form No. 11 of F.A. Code or post office receipt with inland money order acknowledgement.

(ii)

All vouchers for payments including advances, except treasury challan or advice lists and acknowledgements of transfer to the departments must bear the dates of payment, and they must be passed for payment, in words as well as in figures, by the Divisional Officers, who thereby assume the responsibility for the charge.

(iii)

Disbursement certificates required on all vouchers.

(iv)

When an Officer who does not belong to the Forest Department is in charge of a divisional or district Forest Office, he should sign the contingent bill of the Office once only. A second signature on every contingent bill as countersigning Officer, is not necessary in such a case.

(v)

All vernacular accounts must be accompanied by abstracts in English, and the needful particulars will be entered in English on all vernacular vouchers and signed by the Divisional Officer when they are forwarded for audit in support of charges entered in the divisional monthly accounts list.

63.

Transaction with public departments.

- (i) Revenue derived from sales to public departments will be adjusted by book transfer. A statement (Form No. 9, Forest Account Code) in triplicate will be sent to the officer to whom the produce has been supplied; he will sign and return the original which will then be used as a voucher (Vide Rule 121).

(ii)

A similar procedure will be followed in the case of payments to other departments. Bills or price invoices received from a supplying department should be at once adjusted in the cash book by credit to the department concerned, and by debit to the proper budget sub head, the duplicate bill or invoice, duly receipted being promptly returned.

(iii)

The departmental number and date of each bill or invoice for supplies received from another department, and the date of acceptance of each bill for timber etc. supplied to another department, will invariably be quoted in the entries in the divisional cash accounts.

Attention is invited in this connection to the Auditor-General's Directions under Section 168 of the Government of India Act, 1935, to regulate the conditions under which a department for a Government may make charges for services rendered or articles supplied by it. Relevant extracts from these directions are reproduced below:-

II. - Adjustments with outside bodies

4. Adjustments with outside bodies. - Payment shall be required in all cases where a department of a Government renders service or makes supplies to a non-Government body or institution or to a separate fund constituted as such inside or outside the public Account, unless the Government by general or special order gives directions to the contrary. Relief in respect of payment for services or supplies given to any body or fund, should ordinarily be given through a grant-in aid rather than by remission of dues.

III. - Inter-Departmental Adjustments

5. For purpose of inter-departmental payments, the departments of a Government shall be divided into service Departments and Commercial Departments according to the following principles: -

A. Service Departments. - These are constituted for the discharge of those functions which either (a) are inseparable from, and form part of the idea of Government or (b) are necessary to, and form part of the general conduct of the business of Government.

Examples of the first class are-

The departments of Administration of Justice, Jails and Convict Settlements Police, Education, Medical, Public Health, Forest, Defence.

Examples of the second class are-

the departments of Survey, Government Printing, Stationery Public Works (Buildings and Roads), Indian Stores Department.

B. Commercial Departments or undertakings. - These are maintained mainly for the purposes of rendering services, or providing supplies of certain special kinds, on payment for the services rendered or for the Articles supplied. They perform functions which are not necessarily Government functions. They are required to work to a financial result determined through accounts maintained on Commercial Principles.

Note. - Government has the power in respect of these directions to decide whether a particular department or particular activities of a department shall be regarded as a commercial department or undertaking. A list of departments and undertakings at present recognised by Government as Commercial is given below:-

List of departments and undertakings at present recognised by Government as Commercial

(The list does not purport to be exhaustive and may be modified by Government where necessary in consultation with the Accountant-General.)

Bihar Government

Irrigation, Navigation, Embankment and Drainage Works for which capital and revenue accounts are kept, including the Irrigation Department Workshop at Dehri.

6. Save as expressly provided by those directions, a service department shall not make charges against another department for services or supplies which fall within the class or duties for which the former department is constituted: -

The following exceptions to the above direction have been authorised:-

(a)

The Forest Department may charge any other department for vegetable, animal or mineral products extracted from a forest area.

(b)

Payment must ordinarily be made for convict labour as in the case of that supplied to the Public Works and other departments of Government but except at Port Blair, no charge is made for convict labour in the case of works under-taken by the Public Works Department which are treated as Jail Works.

(c)

The cost of additional Police Guards supplied to an irrigation or other project while under construction, may be charged to the project concerned.

7. A commercial department or undertaking shall ordinarily charge and be charged for any supplies and services made or rendered to, or by, other departments of Government.

This direction may be applied to particular units or particular activities of any department even though the department as a whole may not be commercial department. Such a unit or activity shall ordinarily charge for services or its supplies to, and may likewise be charged by either the department of which it forms a part or any other department.

Note 1. - Save as otherwise provided in these directions, service rendered by a Service Department falling under clause A(a) of paragraph 5 in the normal charge of it functions shall not be regarded as service rendered for the purpose of the above directions.

Note 2. - The supply of residential accommodation by one department to the employees of another shall not, for the purpose of these directions, be held to constitute a service rendered. In all such cases, the rent charged for residential accommodation will be the rent recoverable under the rules for the time being in force from the persons actually using such accommodation.

8. Where one department makes payment or renders service as an "agent of" another department of the same Government the principal department may, subject to the limit of Rs. 50, be charged with the expenditure incurred on its behalf by the agent department.

Note 1. - The cost of land acquired by a civil department on behalf of the Public Works Department is chargeable in the accounts of the latter as part of the cost of the works for which the land is taken up; but when land is taken up for two or more service departments conjointly, the cost is wholly debitable to the department for which the major portion of expenditure was incurred, unless there are special reasons to the contrary.

Note 2. - When a special officer is employed for the acquisition of land for any department, the expenditure on pay, allowance, etc., of the special officer and his establishment and any expenditure on contingencies is chargeable to the department as part of the cost of land. When the land is taken up by a civil officer, not specially employed for the work,

only special charges incurred in connection with the acquisition of the land on establishment, contingencies, etc., are borne by the department for which the land is acquired.

9. Without prejudice to the general principle contained in paragraph 6, the Defence Services shall, in respect of inter-departmental transactions, charge and be charged for services rendered and supplies made to or by other departments, unless in particular cases or classes of cases, Government in consultation with the Auditor-General have decided that the inter-departmental adjustment would be unsuitable and undesirable.

Note. - The Defence Services are not required to pay rent for office accommodation supplied by the Public Works Department in Central buildings in any station in India; nor is rent charged for buildings of the Defence Services in any station in India occupied by departments of the Central Government other than those falling under clause B of paragraph 5.

10. A branch of a service department performing duties supplementary to the main functions of the department and intended to render particular services on payment, may levy charges in respect of the work for which it has been constituted.

Examples

Jail manufacture, Survey map-publishing, Printing (Publishing Department), Mint (Miscellaneous Services other than coinage).

11. A branch of a department constituted for the subsidiary service of that department, but employed to render similar service to another department, may charge that other department, e.g. -

Workshops of a department, Mathematical Instrument Office, Dockyards.

12. A regularly organised store branch of a department should ordinarily charge any other department for supplies made; but petty and casual supplies of stores may, if the supplying department consents, be made without payment.

13. Notwithstanding anything contained in these directions, a Government may for special reasons which shall be recorded and communicated to the Accountant-General, permit inter-departmental adjustment in any case where such adjustment may be considered necessary in the interests of economy or of departmental control of expenditure.

Note. - "Accountant-General" means the head of an office of accounts keeping the accounts of the Central (or Federal) Government or of a province, by whatever designation he may be called".

2. District boards, municipalities and other local bodies, who are liable in the ordinary course to pay for any articles supplied to them from the forests controlled by the Forest Department are not exempted from payment. There is, however, no objection to making free grants of stone, road metal and other forest produce from Government forests under the control of the Forest Department to district boards where their roads pass through and are useful to Government forests. Such grant should be made by a formal grant which must pass through the accounts of the Forest Department and necessary provision for it should be made in the forest budget. The Conservator of Forests is authorised to make such grants to a value not exceeding Rs. 250 in any one case subject to the limit of Rs. 1,000 a year for all cases taken together. [Government Letter No. 474-IIIF-139-R., dated the 6th June 1936, Government of Bihar, Revenue Department, Letter No. 5139-R.-IIIF-80, dated the 7th July, 1939. vide C.S. No. 87, dated the 10th January, 1940].

64.

Entries in the cash book of cheques drawn.

- The amounts of Cheques drawn will be entered in the cash book at once, and the expenditure for which the cheques are drawn will be charged under appropriate heads of service or account.

65.

Forms to be rendered to the Conservator.

- On the same day on which the accounts are sent to the Accountant General, Classified Abstracts of Revenue and Expenditure (Form No. 14, Forest Account Code) will be submitted to the Conservator by Divisional Officers, the items in these classified abstracts being entered in such detail as the Conservator may direct; and monthly returns in Forms Nos. 5 and 25 will be submitted to the Conservator.

66.

Scrutiny of Divisional Accounts.

- The monthly returns received from Divisional Officers will be scrutinized in the Conservator's Office and the Divisional Forest Officers addressed regarding any discrepancies which may be noticed.

67.

Intimation of sanction (Form No. 26).

- A monthly return in Form No. 26 will be sent by the Conservator to the Accountant-General of all sanctions of works in accordance with Article 48 of Forest Account Code.

All sanctions to works accorded by the Divisional Forest Officers will also be communicated by them to the Accountant General in a monthly statement in Form No. 26 (cf. Financial Rule 307 of B. & O. Account Code).

68.

Comparative Statement of Revenue and Expenditure (Form No. 27).

- A Comparative statement of revenue and expenditure should be submitted as early as possible in January, February and March in Form No. 27 in order that savings towards the close of the year in certain divisions may be utilised in others so that the budget figures sanctioned by Government may be worked upto.

69.

[Hints for checking monthly accounts in Divisional Offices.]

[See also Appendix XIX.]

- The principal duty of the Accounts Branch of Divisional Forest Office is the incorporation of Range Accounts into one consolidated account which is submitted to the Accountant General. The Divisional Officer is required to see that such subsidiary accounts are properly incorporated. Although it is desirable in order to avoid objections to see that the various forms submitted agree with each of the, this point is not of great importance. The Divisional Officer must remember, however that as the Accountant-General's Office does not see the Range Accounts, the responsibility for their proper incorporation and check rests entirely with him.

(2)

The Divisional Cash Book as submitted to the Accountant General as far as it concerns Range Accounts should be shown into four heads-

(a)

Advances on account of expenditure by disbursers.

(b)

Recoveries of these advances by expenditure on work done by Range Officers, etc.

(c)

Revenue collected by Range Officers.

(d)

Revenue remitted by Range Officers.

(3)

The Divisional Office Accountant should be required to balance each Range Account when received by endorsing the following simple abstract giving lump sum totals on each Range Cash Book:-

Dr.

Cr.

Opening balance on 1st

Expenditure charged off on work done.

Revenue (if any) receive.

Revenue (if any) remitted.

Advances received from Divisional Office Recoveries of excess payments if any

Closing balance on 31st

If these are totalled for all Ranges and the Divisional headquarters accounts added the result should agree with Form No. 6, Forest Account Code, as submitted to Accountant-General, and the Accountant should invariably exhibit this check to the Divisional Officer.

(4)

The Range Accounts should also be compared with the abstracts of entries in the Contractor's and Disburser's Ledger. (The Office Accountant may be entrusted to see that the abstract submitted to the Accountant General through the Conservator is a true copy of the entries in the Ledger itself, which is rather too bulky to send into camp.) If the range Accounts disagree with the entries in the Ledger Abstract, the Accountant must be called upon to explain, and the Range Officer at once addressed to make his accounts agree (should any sum, for instance, be disallowed).

(5)

Check of revenue mainly entail the checking of payments due by lessees or purchasers who are paying for forest produce by instalments, and Divisional Officers should either keep up themselves or require their Accountant to send them every month the form in which such instalments are originally written up and subsequent payments entered as they are shown from time to time. From this, the Divisional Forest Officer will become aware of instalments which become overdue and can take action for their recovery. Other items include the realisation of compensation for forest offences. This is usually dealt with by the Accountant, who should be responsible that outstandings are realised without undue delay. These items do not ordinarily come to the notice of the Accountant General.

(6)

Copies of the Range Accounts submitted to the Head office should occasionally be compared with the originals in Range Offices when opportunity occurs. Cases have been known in which such copies have been altered by clerks at headquarter without intimation having been given to the Ranger concerned. Any discrepancy should of course be severely dealt with as it gives a loop hole for fraud. All documents should be carefully scrutinized for erasures.

(7)

As regards check of Subsidiary Forms required by the certificate at the foot of the Cash Book, although any discrepancy would soon be brought to notice in the Accountant General's audit it is just as well to see that the following items in the Divisional Cash Book agree with the registers concerned, namely:-

(a)

"To cheques drawn":-

Figures should agree with those in column 4 of the Register of Cheques Form No. 4, Forest Account Code (Schedule Form No. 2).

(b)

"By amount of advances made, etc."-

Figures should agree with totals of Column 10 of Ledger Abstract. Form No.13, Forest Account Code (Schedule Form No. 4).

(c)

"To recoveries from disbursers, etc."-

Figures should agree with totals of column 6 of Ledger Abstract (Form No. 8F. A. Code).

(d)

"By expenditure charged, etc."-

Figures should agree with totals Form No. 14, Forest Account Code-expenditure. (116-Schedule XVIII)-

(e)

"To revenue received":-

Figures should agree with totals of Form No. 14, Forest Account Code-Revenue (116-Schedule XVIII)-

(f)

"By revenue paid into Treasuries":-

Figures should agree with totals of Schedule of Remittances (Form No. 6 of F.A. Code).

Note. - It frequently happens, however, that owing to dates of payment in Range Accounts not agreeing with those in Treasuries, a memorandum of adjustments has to be drawn up. This should be checked with accounts of previous month.

The following forms should also be compared for purposes of agreement. Total of Form No. 14, (Forest Account Code) (Form No. 116, Schedule XVIII) Revenue, should equal total of figures in Manual Form No. 4 (Revenue received from purchasers) plus total of Manual Form No. 3, (No. 21), (Depot sales account) plus total of receipts under V (Miscellaneous).

It is hardly necessary to add that a Divisional Forest Officer should keep control of expenditure and see, as far as possible, that work charged for has been duly executed which can only, however, be done by personal inspection while on tour.

Neglect of the following points when preparing Form No. 14 (116 Schedule XVIII) Expenditure (Forest Account Code) often leads to unnecessary correspondence:-

(a)

Sufficient details should be given in column 2 to enable the charges to be at once understood and checked.

(b)

The authority for charges lying outside the power of the sanction of the officers submitting the accounts should invariably be quoted in the "Remarks" column.

(c)

Whenever expenditure on any work is spread over two or more months, the total previous expenditure on such work should be noted in the "Remarks" column before beginning to enter the items expended during the month.

(d)

Whenever in the case of departmental operations the expenditure on a particular lot of produce is charged in a month subsequent to that in which this particular produce was brought on to Form No. 2 of this Manual a reference to this latter month should be made in the "Remarks" column, in no case should charges be made for produce which has not yet been brought on to Form No. 2 of this Manual.

(e)

Final adjustment of expenditure on construction of buildings, roads, etc. should not be made except on receipt of a satisfactory completion report signed by the Range Officer after personal inspection of the work.

(f)

If any produce is entered in Form No. 2 of this Manual as received during the month, the expenditure on account of which cannot for some valid reason be charged off in the same month, such reason will be briefly recorded in the "Remarks" column against the entry in question, the month in which it will appear being at the same time stated.

The comparison between the Range Accounts and the Divisional Accounts in which they are incorporated should, if possible, be made before the submission of latter to the Accountant General. The latter however, must not be unduly delayed for this purpose and there is no reason why this comparison should not take place subsequently and errors, if any, rectified by adjustments in the following month. Want of time will not be held as an excuse for neglect on the part of the Divisional Forest Officer to properly scrutinise the accounts work in his office.

69A.

Bihar Rules for Licenses for the Hunting of Elephants, 1937.

- (Revenue Department Notification Nos. 2717-R., dated the 24th March, 1938, 913-IIIF-29-R., dated the 20th February 1937, 1716-IIIF-20-R., dated the 8th April, 1937 and 3142-IIIF-94-R., dated the 12th April, 1938). - (1) In exercise of the powers conferred by Section 1 of the Elephants' Preservation Act, 1879 (Act VI of 1879), the Governor of Bihar is pleased to extend the said Act to the districts of Singhbhum, Manbhum, Palamau and Ranchi.

(2)

In exercise of the powers conferred by Section 6 of the Elephants' Preservation Act, 1879 (Act VI of 1879), the Governor of Bihar is pleased to make the following Rules:-

1.

(1)

These Rules may be called "The Bihar Rules for Licenses for the Hunting of Elephants, 1937".

(2)

They shall apply to the districts of Singhbhum, Manbhum, Palamau and Ranchi.

2. In these Rules -

(a)

"Deputy Commissioner" means the Deputy Commissioner of the district comprising the area in respect of which a license is applied for, granted or renewed under these Rules.

(b)

"form" means a form appended to these Rules.

(c)

"license-holder" means a person who holds a subsisting license granted or renewed under these Rules.

3.

(1)

Every application for a license to capture wild elephants or for the renewal of such a license, shall be made to the Deputy Commissioner and the Deputy Commissioner may with the sanction of the Commissioner of the Chota Nagpur Division grant to any person applying for the same a license in form A or renew a license already granted to such person.

Every license granted or renewed under this sub-rule shall be subject to the conditions laid down therein.

(2)

The fee payable on the grant or renewal of such a license shall be one hundred rupees.

4. A license shall continue in force from the 1st October of the year in which it is granted, until the 31st March following.

5. A holder of a license in form A shall not -

(a)

capture wild elephants except in accordance with the conditions of his license, or

(b)

transfer in any manner his rights under his license.

6. A holder of license in form A shall for every elephant captured by him or accidentally killed in an attempt to capture, pay to the Government, in such manner as the Deputy Commissioner may from time to time direct, a fee of Rs. 100.

7. A holder of a license in form A shall not remove outside the boundaries of the area covered by his license any elephant captured by him or the tusks of an elephant killed in an attempt to capture unless he has -

(a)

obtained a written permit to do so from the Deputy Commissioner or some other officer appointed by the Deputy Commissioner in that behalf; and

(b)

paid the fees required to be paid by Rule 6.

8. The Deputy Commissioner may cancel any license in Form A if the holder thereof has committed a breach of any of these rules.

9.

(1)

When the destruction of a particular elephant or elephants is urgently required in the interests of the public safety on account of widespread danger to cultivation, forests or other property, the Deputy Commissioner may, with the permission of the Commissioner of the Chota Nagpur Division, grant a license in form B for the destruction of such elephant or elephants. Such license may, if the Commissioner so directs, be subject to the conditions that the tusk of any elephant or elephants if killed shall be the property of Government and shall be made over to the Deputy Commissioner.

(2)

Unless the Commissioner otherwise directs a fee of Rs. 100 shall be paid for each elephant killed under a license in Form B.

Form A

License For The Capture of Elephants within the in the District of.....

(Seal and signature of the Deputy Commissioner)

To.....

Son of.....

Resident of.....

The right to capture elephants for one year in Block no.

North-East-South-West-

Boundaries of Block.

Name of Block.....

District of.....

Province of..... the boundaries of which are specified

in the margin, is granted to you on the following conditions:-

I. That you pay Rs. 100 for this license.

II. That you pay Rs. 100 in respect of every elephant captured by you.

III. That you shall capture or attempt to capture elephants only between the 1st October and the 31st of March and at no other time.

IV. That you capture or attempt to capture elephants yourself and do not transfer in any manner your rights under this license.

V. That you shall not capture or attempt to capture elephants by means of pit-falls.

VI. That you report in writing on the 1st of each month to the officer granting this license or to any other official as you may be directed, in the form herewith supplied to you, the capture or death in attempt to capture or death after capture, of every elephant so captured or dying during the preceding month.

VII. That you obtain a written permit, and pay the royalty prescribed in clause II, before removing beyond the boundaries specified in the margin any captured elephant or the tusk of any elephant killed.

VIII. That you shall not cause any unnecessary damage to any forest, set fire to any jungle or cause injury or unnecessary annoyance to any jungle tribes or cultivators residing within the boundaries specified in the margin or in the neighbourhood thereof.

IX. (a) That before you commence the construction of any stockades in a Reserved or Protected forest you shall submit for the approval of the Divisional Forest Officer a list of the proposed sites of the stockades properly described, preferably with the aid of a map.

(b)

That before you commence such construction in a forest not under the management of the Forest Department you shall similarly submit a list of the proposed sites for the approval of the Deputy Commissioner.

X. That the Divisional Forest Officer or the Deputy Commissioner, as the case may be, shall have the right to forbid the erection of a stockade in a site not approved by him.

XI. That after the site of the stockade has been chosen and approved by the Divisional Forest Officer he shall make an estimate of the value of the timber which will be destroyed in the building and establishing of the stockade and that you shall pay for such timber at rates to be fixed by the Divisional Forest Officer and that you shall be entitled to use any such timber in the building of the stockade. This condition and conditions XII, XIII and XIV shall apply only to forests managed by the Forest Department.

XII. That if in addition to the timber purchased on the site of the stockade you require other timber the Divisional Forest Officer shall arrange for its felling on a site convenient to the stockade and you shall pay the Divisional Forest Officer for such timber at rates to be fixed by the Divisional Forest Officer.

XIII. That should you intentionally destroy any elephant you will be proceeded against under the Elephants' Preservation Act VI of 1879.

XIV. That should you, in contravention of clause VI, fail or neglect to report capture, or killing in the attempt to capture or death after capture of any elephant the Deputy Commissioner may order that you shall pay to Government a sum which may extend to Rs. 3,000 for each elephant the killing or the capture or death of which has not been reported. The amount shall be recoverable as a public demand under item 9 of Schedule I to the Bihar and Orissa Public Demands Recovery Act.

XV. That you shall not-

(a)

fell any timber except in such places and to such extent as has been previously approved by the Divisional Forest Officer or the Deputy Commissioner;

(b)

interfere with any operations of the Forest Department or any forest contractor in Government forests.

XVI. That should you commit any breach of any of the conditions of this license, the license may, at the discretion of the Deputy Commissioner, be cancelled, and any, or all, of the elephants captured by you forfeited to Government; this penalty to be in addition to any other punishment or penalty to which you may be liable under any provision of the law in force at the time or any rule duly made in exercise of any authority conferred by law.

I,....., son of.....resident of..... to whom the license no.....has been granted, do hereby acknowledge and declare that all the conditions of this license have been explained to me, and that I have understood the same, and that I accept the license subject to all the conditions therein contained. And I further declare and covenant that I will not question or dispute the execution against my property of any penalty that may be imposed upon me under clauses XIV, XV and XVI for any breach of the conditions of this license.

Licensee's signature.

All the conditions of this license were thoroughly explained to.....in our presence, and he also in our presence executed and signed the above covenant.

Three witnesses.

1.

2.

3.

Form B

License For the Shooting of Elephants within the.....In the District of.....

(Seal and signature of the Deputy Commissioner.)

Permission is hereby granted to you.....son of.....resident of.....to shoot the elephant(s) described below during the period.....to.....in

North-East-South-West-

Boundaries of Block or locality

Name of Block.....

District of.....

Province of..... the boundaries of which are specified

in the margin, is granted to you on the following conditions:-

Description of elephant(s) as far as it can be given-

I. That in shooting the elephant you shall use no weapon less in power or in bore than a 0.400 cordite or a 0.577 black power.

II. That in reserved forests you shall comply with such Rules and Regulations of the Bihar Government Reserved Forest Shooting Rules, 1930, published under Notification No. 1066-IIIF-5-R.R., dated the 14th October 1930, in so far as they are not inconsistent with the provisions of this license.

III. That you shall pay a fee of Rs. 100 for each elephant killed under this license.

(To be crossed out if the Commissioner directs that no fee shall be payable.)

IV. That the tusks of any elephant killed under this license shall be the property of Government and shall be made over to the Deputy Commissioner.

(To be crossed out if the Commissioner so directs.)

Here enter number.

I, son of, resident of,, to whom the license no.....has been granted, do hereby acknowledge and declare that all the conditions of this license have been explained to me, and that I have understood the same, and that I accept the license subject to all the conditions therein contained.

Licensee's signature.

All the conditions of this license were thoroughly explained to.....in our presence and he also in our presence executed and signed the above covenant.

Three Witnesses:

1.

2.

3.

Station.....

Form C

Statement for the Month of.....

Showing the number of elephants captured by.....in accordance with a licence granted under the Elephants' Preservation Act, 1879 (VI of 1879) by.....on the.....day of.....

Date of capture.

Number of elephants captured alive.

Number of elephants that died during capture.

Number of elephants sold out of those entered in column 2.

Number of elephants that died out of those entered in column 2.

Number remaining at the end of the month, i.e., column 2- columns 4 and 5.

Total number remaining at the end of proceeding month.

Total of columns 6 and 7.

Remarks.

Male.

Female.

Male.

Female.

Male.

Female.

Male.

Female.

Male.

Female.

Male.

Female.

Male.

Female.

1

2

3

4

5

6

7

8

9

[C.S. No. 88, dated the 10th January 1940.]

70.

Rules regulating the grant of licenses to capture elephants in Angul.

- [In exercise of the powers conferred by Section 6 of the Elephants Preservation Act, 1879 (Act VI of 1879), the Government of Bihar and Orissa are pleased to make the following Rules for regulating the grant and renewal of licenses under the said Act within the Sadr subdivision of the district of Angul, the fees to be charged on such grant and renewal, the time during which such licences shall continue in force and the conditions on which they shall be granted:-]
[Notification No. 3145-P., dated 1st April, 1932 and Notification No. 3616-RR. dated 7th October, 1933 and Notification No. 1433-P., dated 15th February, 1934 and Notification No. 76-R., dated 5th January, 1935.]

(1)

Every application for a license to kill or to capture or to kill and capture wild elephants, or for a renewal of such a license, shall be made to the Deputy Commissioner of Angul and may be granted by him with the sanction of the Commissioner of the Orissa Division. The fee payable on the grant or renewal of such license shall be one hundred rupees:

Provided that in special cases where the destruction of an elephant is urgently required in the interest of the public safety, the Deputy Commissioner may, with the permission of the Commissioner of the Orissa Division, issue a license for the destruction of such elephant, either free of charge or subject to the condition that the tusks of such elephant killed shall be the property of Government and shall be made over to the Deputy Commissioner of Angul.

(2)

A license shall not be granted for more than six months from the date of issue and shall hold good only within the boundaries therein specified.

(3)

The holder of a license shall be at liberty to kill or to capture, or to kill and capture wild elephants himself or by his agents and shall not be allowed to sell or transfer his rights under the said licence.

(4)

For every elephant captured by or on behalf of the licence-holder and for every elephant killed the license-holder shall pay to the Government in such manner as the Deputy Commissioner of Angul may from time to time direct the sum of

Rs. 100 by way of royalty:

Provided that no royalty shall be payable for an elephant killed under a licence issued in accordance with the proviso to Rule (1).

(5)

The license-holder shall be at liberty to capture or kill elephants in any manner except in pits.

(6)

The license-holder shall be bound to report in writing on the first day of each month to the Deputy Commissioner of Angul or to any other officer appointed by the said Deputy Commissioner in that behalf in such form as may be prescribed the capture or death during capture or otherwise of every elephant which has been captured or has died during capture or has been killed in the preceding month. In the event of failure to report any such capture or death the holder of the license shall forfeit to Government the sum of Rs. 3,000 for each elephant the capture or death of which he shall have omitted to report.

(7)

The license-holder shall obtain a written permit from the Deputy Commissioner of Angul or any officer appointed by him in that behalf and shall, save as provided in the proviso to Rule (4), pay the royalty prescribed in the said Rule (4) before removing outside the boundaries of the area covered by the license any recently captured elephant or the tusks of an elephant killed.

(8)

No stockade shall be built in any teak forest, no valuable timber shall be felled and no jungle shall be set fire to by any license-holder or his agent neither shall they be at liberty to cause injury or unnecessary annoyance to any jungle tribes or cultivators residing in the neighbourhood nor to interfere with any operations of the Forest Department or of any forest contractor. All timber felled and used in the construction of the stockade shall be paid for by the license-holder at the full rates in force in the Reserved Forests in the district of Angul and if the timber required for the purpose is to be taken from the Protected Forests or from the Reserved Forests in that district the previous sanction of the Deputy Commissioner or the Divisional Forest Officer as the case may be must be obtained.

(9)

The license shall be liable to be withdrawn by order of the Deputy Commissioner of Angul on breach of any of the above Rules.

71.

[Rules regulating the grant of licenses to capture elephants in Cuttack, Puri and Balasore districts.]

[Notification No. 687-IIIF-131/35-R., dated the 22nd January 1936.]

- In exercise of the powers conferred by Section 6 of the Elephants Preservation Act, 1879 (Act VI of 1879), and in supersession of all previous Rules on the subject in force at the date of this notification in the areas hereinafter mentioned the Government of Bihar and Orissa are pleased to make the following Rules for regulating the grant and renewal of licenses under the said Act within Killah Sukindah in the district of Cuttack, within the subdivision of Khurda in the district of Puri and within the police-stations of Banth in the Bhadrak subdivision and Khaira in the Sadr subdivision and certain [villages as specified in Notification No. 62-IIIF-315-R., dated the 3rd January 1936]

[See page 377.]

, in the police-station Soro in the Sadr subdivision of the district of Balasore, the fees to be charged on such grant and renewal and the time during which licences shall continue in force.

1. In these Rules -

(a)

"Collector" means the Collector of the district comprising the area in respect of which a licence is applied for, granted or renewed under these Rules;

(b)

"licence-holder" means a person who holds a subsisting licence granted or renewed under these Rules.

2.

(1)

Every application for a licence to kill or to capture or to kill and capture wild elephants or for the renewal of such a licence, shall be made to the Collector and may, with the sanction of the Commissioner of Orissa Division, be granted by him in Form A appended to these Rules and subject to the conditions laid down therein.

(2)

The fee payable on the grant or renewal of such a licence shall be one hundred rupees:

Provided that in special cases where the destruction of an elephant is urgently required in the interests of the public safety the Collector may, with the permission of the Commissioner of the Orissa Division, grant a licence for the destruction of such elephant either free of charge or subject to the condition that the tusks of such elephant, if killed, shall be the property of Government and shall be made over to the Collector.

3. A licence shall continue in force from the 1st October of the year in which it is granted, until the 31st March following and shall be valid only within the boundaries specified in the licence.

4.

(1)

A licence-holder shall be at liberty to kill or to capture, or to kill and capture as the case may be, wild elephants.

(2)

A licence-holder shall not transfer in any manner his rights under his licence.

5. For every elephant captured by the licence-holder and for every elephant killed, the licence-holder shall pay to the Government, in such manner as the Collector may from time to time direct, a fee of Rs. 100:

Provided that no fee shall be payable for an elephant killed under a licence granted under the proviso to Rule 2.

6. A licence-holder shall be at liberty to capture or to kill elephants in any manner except in pits.

7.

(1)

A licence-holder shall, on the first day of each month send to the Collector or to such other officer as the Collector may appoint in this behalf a statement in Form B appended to these Rules showing every elephant which during the preceding month -

(a)

has been captured by the licence-holder;

(b)

has been killed by the licence-holder; or

(c)

has died during or after capture by the licence-holder.

(2)

If a licence-holder fails to comply with the provisions of sub-rule (1) he shall forfeit to Government a sum of Rs. 3,000 for each elephant, the capture or death of which he shall have omitted to report.

8. A licence-holder shall not remove outside the boundaries of the area covered by his licence any elephant captured by him or the tusks of an elephant killed by him unless he has -

(a)

obtained a written permit to do so from the Collector or some other officer appointed by the Collector in that behalf; and

(b)

paid the fee required to be paid by Rule 5.

9.

(1)

A licence-holder shall not -

(a)

build a stockade in any sal or teak forest;

(b)

fell any valuable timber;

(c)

set fire to any jungle;

(d)

cause injury or unnecessary annoyance to any jungle tribes or cultivators residing in the area covered by his licence; or

(e)

interfere with any operations of the Forest Department or any forest contractor in Government forests.

(2)

A licence-holder shall pay at such rates as may be fixed by the Collector or any officer appointed by the Collector in this behalf, for all timber felled or used by him for the construction of a stockade.

10. A licence-holder shall not after the 15th day of December in any year undertake any Kheda operations in any Government forests to which the Fire Protection Rules apply.

11. The Collector may cancel the licence of any licence-holder who commits abreach of any of these Rules.

The villages referred to in notification no. 62-IIIF-315-R., dated 3rd January 1936:-

Chhatara.

Kurei.

Mugunipur

Ranpur.

Aria.

Chalk Kamaripur.

Khunta.

Sialigotha.

Barikpur.

Digibhaunra.

Ghoramara.

Patharpenth.

Saralia.

Lakshabindha.

Patana.

Sindhua.

Wada.

Taharpur.

Gujiriha.

Rautamanakahani.

Bagapur.

Singa Khunta.

Paandamanakahani.

Sipura.

Brundadeipur.

Chhatrapur.

Samnathpur

Kumbhi

Kasbajaipur

Manjarigan.

Nuagan.

Chitapada.

Naikpada.

Juki.

Darkholi.

Gunada.

Gopinathpur.

Katuni.

Chalk Samanathpur.

Raipitambar.

Mahumuhan.

Bishnu Chak.

Mendhagaria.

Khanjamahal.

Maitrapur.

Raghunathpur.
Gobindapur.
Chalk Patharpenth.
Narasinghagar.
Kesuripur.
Jirtal.
Rusa.
Mahinshasuri.
Abdulnagar.
Rusa (Patana).
Pagarasal.
Dalingia.
Baghua.
Mantri.
Alsua.
Hariragaria.
Angula.
Raima.
Khanhupur.
Chartpo.
Garbhang No. I
Beharanpur.
Rangapati.
Garbhang No. III.
Balibar.
Balipur.
Bahar-padagan.
Daipur.
Chahalima.
Garbhang No. II.
Gopalpur.
Kiamundia.
Mulakudei.
Barchhigaria.
Bilabankia.
Haripalpur.
Jagannathpur
Sarsankha.
Sankhua
Mudpur.
Brahmansahi.
Garbhang No. IV.
Manipur
Natapara.
Suthang.
Bharararpada.
Binagaria.
Bhagatpur.
Atpur.
Radhaballabhapur.
Khantapara.

Belada.
Barakhuri.
Gobindapur.
Harirapada.
Nuapur.
Ramanagar.
Krushnadaspur.
Utarsar.
Naichhanpur.
Hensagura.
Kamarpur.
Atapur.
Hansipatna.
Madhusudhanpur.
Nuapara.
Nischintapur.
Dahisara.
Panpana.
Sarupada.
Jagantahpur.
Begunia.
Ghashipada.
Danda Haripur.
Darariha.
Kasagaria.
Pitalpada.
Basulipur.
Jarida.
Kespur.
Bahanga.
Patulida.
Naikbandha.
Ichhapur.
Gangei.
Chalk
Pitalpada.

Form A

Licence for the capture of elephants within the in the district of.....

(Seal and signature of the Collector.)

To.....

Son of.....

Resident of.....

The right to catch elephants for one year in Block No.....

North-East-South-West-

Boundaries of Block

Name of Block.....

District of.....

Province of.....

the boundaries of which are specified

in the margin, is granted to you on the following conditions:-

I. That you pay Rs. 100 for this licence.

II. That you pay Rs. 100 royalty in respect of every elephant capture by you and for every elephant killed in attempt to capture.

III. That you hunt between the 1st October and the 31st March and not otherwise.

IV. That your catch elephants and do not sell or lease your Block, or any part of it.

V. That you catch elephants by any method except pitfalls.

VI. That you report in writing on the 1st of each month to the officer granting this licence or to any other official as you may be directed, in the Form herewith supplied to you, the killing or the capture or death during capture, of every elephant so captured or dying during the preceding month.

VII. That you obtain a written permit, and pay the royalty prescribed in clause II, before removing beyond the boundaries specified in the margin any newly-caught elephant or the tusk of an elephant killed.

VIII. That you shall not (build a stockade in any sal or teak forest, or fell any valuable timber or set fire to any jungle or) cause injury or unnecessary annoyance to any jungle tribes or cultivators residing in the neighbourhood.

Note. - The bracketed portion should be omitted when within Killah Sukindah the proprietor of Sukindah is himself the licence-holder.

IX. That should you wilfully destroy any elephant for the sake of its ivory, or otherwise, you will be proceeded against under the Elephants' Preservation Act VI of 1879.

X. That should you, in contravention of clause VI, fail or neglect to report the killing or the capture, or killing in the attempt to capture, of any elephant you shall pay to Government a sum of Rs. 3,000 for each elephant the killing or the capture or death of which has not been reported.

XI. That should you commit any breach of any of the conditions of this licence, the licence may, at the discretion of the Collector, be cancelled, and any, or all, of the elephants captured by you forfeited to Government; this penalty to be in addition to any other punishment or penalty to which you may be liable under any provision of the law in force at the time or any Rule duly made in exercise of an authority conferred by law.

I,son ofresident of.....to whom the licence no. has been granted, do hereby acknowledge and declare that all the conditions of this licence have been explained to me, and that I have understood the same, and that I accept the licence subject to all the conditions therein contained. And I further declare and covenant that I will not question or dispute the execution against my property of any penalty that may be imposed upon me under clauses X and XI, for any breach of the conditions of this licence.

Licensee's signature.

All the conditions of this licence were thoroughly explained to in our presence, and he also in our presence executed and signed the above covenant.

Three witnesses.

1.

2.

3.

Station.

Form B

Statement For The Month of.....

Showing the number of Elephants captured by.....duly licenced under Act VI of 1879

Date of capture.

Number of elephants captured alive.

Number of elephants that died during capture.

Number of elephants killed.

Number of elephants sold out of those entered in column 2.

Number of elephants that died out of those entered in column 2.

Number remaining at the end of the month, i.e. columns 2- (columns 5 and 6.)

Total number remaining at the end of preceding month.

Total of columns 7 and 8.

Remarks.

Male.

Female.

Male.

Female.

Male.

Female.

Male.

Female.

Male.

Female.

Male.

Female.

Male.

Female.

Male.

Female.

1

2

3

4

5

6

7

8

9

10

72.

Revenue from Quarries and Rules for granting leases for the same.

- (i) From 1st April 1922 revenue accruing from mineral concessions granted by Government shall be credited under the minor head 'Receipts from mines, quarries, etc.' of "V-Land Revenue-Miscellaneous" whether the area under concession is or is not in reserved or protected forest.

(ii)

Government of B. & O. Revenue Department Letter No. 2767-IIW-167-R., dated the 30th March 1921. - The Rules for the grant of licences to prospect for minerals and of mining leases are contained in the Bihar and Orissa Waste Lands Manual. Such leases or licences are granted by the Civil Department but when the land in question is situated within a reserved forest the District Officers shall consult the Forest Officer before granting the lease or licences.

73.

Fixed value permits.

- Mode of realizing revenue by the use of fixed value permits in the Sambalpur divisions.

(Government of Bihar and Orissa, Revenue Department Memo. No. 12828-IIIF-22-R., dated the 8th December 1925 and Letter No. 1583-R-IIIF-30, dated the 18th February 1936.)

1. The sale of fixed value permits, their use for the removal of forest-produce and the method of check on the accounts necessitated by their use are regulated according to the following system:-

System of fixed value permits

2. The main principles adopted are -

(i)

that licenced vendors shall have as little as possible to do beyond selling the permits; and

(ii)

that the classification of forest revenue for departmental purposes shall be done by paid officials of the Forest

Department.

3. Fixed value permits in Form No. 37 of the following denominations which are distinguished by different colours will be used: -

A book of

0

0

3

permits

containing

64

Permits.

?

0

0

6

?

?

64

?

?

0

0

9

?

?

64

?

?

0

1

0

?

?

64

?

?

0

1

6

?

?

64

?

?

0

2

0

?

?

32

?

?
0
2
6
?
?
32
?
?
0
3
0
?
?
32
?
?
0
4
0
?
?
32
?
?
0
6
0
?
?
16
?
?
0
8
0
?
?
16
?
?
0
9
0
?
?
16
?
?
0
12

0
?
?
16
?
?
1
0
0
?
?
16
?
?
2
8
0
?
?
8
?

Each class of permits will be bound in books with limp cover and will be in duplicate; the original and duplicate foils being superposed for use with carbon paper and serially numbered 1 to 64, 1 to 32, 1 to 16 or 1 to 8 as the case may be, with book number printed in each foil of the permit. The duplicate will be perforated. The original and duplicate foils of each permit will bear the same number. The book number, the value of the permit and the words "this book contains 64-32-16-8 permits" will be printed by the press on the outer cover of each book.

The Divisional Forest Officer shall obtain the fixed value permits on indent from the Deputy Superintendent, Government Printing, Bihar and Orissa, Gaya.

4. A register of receipts and issues of fixed value permit books shall be maintained in the Divisional Forest Office in Form No. 33 called the Register of Fixed Value Permit Books. As soon as a supply of these books of different denominations (Re. 0-0-3 to Rs. 2-8-0) is received from the Press, they should be examined and stamped and a certificate given on the cover of the book that the sequence of the number of permits in it is unbroken. Entries will then be made in columns 1 to 3 of this Register and when the books are issued to Range Officers, columns 4 to 6 should be filled in. This register should be numbered serially and a page index should be opened at the beginning of the book to show the pages where each class or denomination of fixed value permit books is entered.

5. The Range Officer shall obtain his supply of fixed value permits on indent from the Divisional Forest Officer in indent Form No. 34. The Divisional Forest Officer will supply the books indented for and fill in columns 7 to 11 of the indent Form and send it back with the permit books, to the Range Officer who should check them and sign and return the indent to the Divisional Forest Officer for record.

Rs. 500 is fixed as the maximum value of fixed value permits to be kept in stock by Range Officers.

6. The Range Officer shall also maintain a register in Form No. 33, in which all receipts and issues should be entered as they occur.

7. Licensed vendors shall purchase their permit books for cash at the nearest Range or Sub-Range Office and shall be allowed a discount, of anna 1 in the rupee on the face value of the permits. If they cannot attend personally licensed vendors may send their agents with a written request for permit books and the necessary cash together with a receipt duly signed for the amount of discount due. The Range Officer shall then supply the permit books. He will show the full face value of the books supplied as a receipt and remit that amount to the treasury; the amount of discount allowed will be shown as expenditure supported by the licensed vendor's receipt.

8. Licensed vendors shall maintain a register in Form No. 35 and shall enter all transactions in fixed value permits daily in Form No. 36. Form No. 35 which shall be written up from Form No. 36 should be balanced monthly.

9. Licensed vendors shall close their accounts on the 12th day of each month and shall submit so as to reach the Range

Office on or before the 15th of the month copies of Forms 35 and 36 together with the used up permit books containing the counterfoils and partly used up permit books containing the counterfoils of permits sold up to the 11th of the month as well as unsold permits. From the 12th the licensed vendors shall use another set of permit books until the submission of their next accounts.

10. The Range Officer shall prepare an abstract From monthly Forms 35 and 36 received from licenced vendors in his range and submit it to the Divisional Forest

Officer in Form No. 35 together with the used up permit books containing the counterfoils of permits issued during the month. The Divisional Forest Officer shall, after check, file it in guard books or have it bound. In the partly used up permit books the Range Officer shall initial with date the counterfoil of the last permit issued and return them to the licensed vendors for continuation of issues in the following month.

The counterfoils of used-up permit books shall be destroyed after six months from date of receipt in the Divisional Forest Office.

11. Licensed vendors may obtain refund of the price paid by them less discount already received, on returning to the Range Officer the permits in respect of which refund is claimed and fulfilling such other conditions as the Divisional Forest Officer may prescribe, such refunds being charged to "RVI-Deduct Refunds" and the permits brought on to stock in Form No. 33.

12. Licenced vendors shall enter on each permit issued the name of the block or forest, sub-range and range.

13. Licenced vendors shall issue a separate permit to each individual person and shall on no account issue one permit for produce to be removed by two or more persons from different forests.

14. The quantity and value of the permit books to be kept by each licence vendor shall be regulated by the Divisional Forest Officer according to the needs of particular cases.

15. Licensed vendors shall give a security bond for Rs. 50 executed by some person of known respectability and solvency for their good and honest performance of their duties. (See Form No. 32).

16. Range Officers will be personally responsible for the loss of any permits supplied to them.

17. Range Officers will show the sales by fixed value permits separately from those effected by ordinary permits.

18. Range Officers, or any of the Sub-Range Officers deputed by them for the purpose, should inspect the permits of every licensed vendor once a month and should submit a report on the result of their inspection to the Divisional Forest Officer as usual.

19. The Range Officer with the prior approval of the Divisional Forest Officer will furnish the vendors with a list of the forest produce for which they are empowered to issue fixed value permits, giving the rates chargeable for the different loads or quantities of such produce and specifying the forests for which they may issue fixed value permits and the period for which these permits will be current.

20. Sub-Range Officers who are specially authorized by their Range Officer, with the Divisional Forest Officer's previous permission in writing, may keep a stock of fixed value permit books for sale to licensed vendors, up to a maximum value of Rs. 100.

21. Purchasers of fixed value permits are required to return the permits, if not previously collected by a Forest Officer, to the nearest Forest Officer within a week of the expiry of the time granted for extraction of the forest-produce and the Forest Officer concerned shall transmit them as soon as may be to the Range Officer. The Range Officer shall check 10 per cent of these with the counterfoils submitted by licensed vendors.

74.

Remittance of forest revenue and advance through Post Offices.

- The following Rules are prescribed for the remittance of forest revenue and advance through post offices.

(Approved in Government Order No. 2597-For., dated the 21st July 1893, and No. 1069-For., dated 27th February 1896.)

1. Divisional Forest Officers should provide their Range and other revenue-remitting officers with ordinary inland money order forms in books with counterfoils, such as are obtainable at all post offices, and these alone should be used, all particulars of the remittance being noted on the counterfoil.

2. The remitter should make out a money order on one of these forms, filling in the name of the most convenient post office and other particulars, and making it payable to the officer-in-charge of the treasury, and should send it with the cash to the post office. He should note briefly on the coupon particulars of the remittance sufficient for the Treasury Officer's information.

3. The Treasury Officer, on receipt from the post office of the money order, will sign and date the money order and return it to the post office after cutting off the strip containing the coupon and acknowledgement. He will forward to the Divisional Forest Officer the advice list prescribed in the Rules published in the notification of the 11th May 1888, together with the corresponding strips consisting of the coupons and acknowledgements of all money orders received during the day.

4. The entry in the remitter's account will be supported by the receipt given to the remitter by the post office when the money order was issued.

5. The commission paid on money orders will be charged to contingencies in the Forest Department Accounts.

6. Remittance of advance. - In remitting advances to disbursers the same procedure as that prescribed in Rules 1 and 5 above should be followed; but the amount of the money order and the commission may be paid into the post office either in cash or, where the post office is at a treasury or sub-treasury station, by a cheque drawn in favour of the Postmaster on such treasury or sub-treasury. The latter course can only be adopted when the remitter has a banking account with the treasury or sub-treasury concerned.

7. The money order will be treated by the post office as an ordinary inland money order, and acknowledgement sent to the remitter in due course. The remitter's accounts will be supported by the acknowledgement, as well as the receipt referred to in Rule 4 above.

Chapter-VI Budget Estimates

75.

Preparation of budget and revised estimates.

- The Rules regarding the preparation and submission of the budget and the revised estimates and regarding budget control are detailed in a separate publication named the Bihar and Orissa Budget Manual.

Chapter-VII Miscellaneous Office Business

Office Business

76.

Definition of "case" and "files".

- A group of documents relating to one subject is called a "case". A group of case referring to one head or division of work may be collected in a "file".

77.

Case cover.

- Each case will be kept within a stiff cover standardized for the purpose, and on the title-page of this will be entered the number and subject of the case and its references, if any, to previous and subsequent correspondence.

78.

Case register. (Form No. 18.).

- A register of cases will be kept (Form No. 18) with a series of numbers commencing on the opening of each financial year. The cases falling within each "file" or "class of cases" should be entered in one place, space being set apart in the Case Register for entering the case of each "file" in the order of their number. The number given to each "file" should be in Roman figures, e.g., "I" for "Accounts". The number given to each "case" should be in Arabic figures. Cases should be serially numbered within each "file". Thus "1-I" will mean Case no. 1 of File "I-Accounts"

79.

Government and Account Department General Orders and Circulars.

- Government and Account Department general orders and circulars will be filed separately, according to number and date, in a "Circular file". If they are received in duplicate, one copy will be placed with the case to which it relates. If only one copy be available, and it has special reference to any case, a memorandum of its contents will be filed therewith.

Miscellaneous Office Business

80.

Register of books and maps, Form No. 19.

- (i) In each office a register of Books (Form No. 19 must be kept up. The current number of the register and the date of receipt should be entered on each copy. The column of "Remarks" is intended to explain what has become of any copies which may have been lost or otherwise disposed of. The entries in this column should be dated and initialled by the officer to whose office the books belong.

(ii)

A separate register for maps will be kept in the same form.

81.

Registers of correspondence. (Forms Nos. 20 and 21.).

- (i) Registers of receipts and issues of all correspondence will be kept in Forms Nos. 20 and 21 comprising, if necessary, consecutive volumes of convenient bulk.

(ii)

A new series of numbers will be commenced in each register book at the opening of each financial year. Circulars are to be entered in red ink.

82.

Destruction of useless documents.

- (i) Every year, in the months of September and October the Divisional Officer and his clerks will sort the cases that have been closed for three full years, with a view to destroy those documents which may be considered of no further use. A large bulk of the correspondence may be got rid of by destroying forwarding dockets, inquiries and reminders. Many of the letters relating to questions which have been settled for three full years can also be destroyed, provided the register books contain all that may be necessary to ascertain regarding them.

(ii)

The original accounts rendered to the Divisional Officer by Subdivisional Officers and subordinates, and which have been filed in his office for three full years, should be similarly set aside for destruction.

(iii)

Such documents as annual or special reports, correspondence relating to boundary questions, to rights and privileges of other persons in the forests, to working plans and annual plans-of-operations, and to all subjects affecting the general management and history of the forests included in the division, as well as all orders of Government and circulars on important subjects, should be carefully preserved.

(iv)

All correspondence registers shall be preserved for twenty years. Records in Forms Nos. 4, 6 and 12 of Forest Account Code and Manual Form No. 15, should be preserved for the periods specified in the margin. The Register of Reserved Forests (Form No. 1, Forest Department Code) is an important document and should be continuously retained. Forms Nos. 2, 3, 4 of the Forest Department Code and Form No. 14, Forest Account Code, should be preserved until a working plan or other report, embodying a complete account of the history and statistics during any period considered, has been prepared or revised for the forests in question. As a general Rule, when monthly or annual returns have been reproduced or adequately summarized in printed working plans or administration reports, the original manuscript forms, if they have been retained for at least three full years in all, may be destroyed. [Form No. 4-6 years. Forms Nos. 6 and 12-25 years. Form No. 15- 35 years].

(v)

Those papers, which it is proposed to destroy, will be submitted to the Conservator on his next visit and his authority will be obtained for their destruction.

(vi)

The local Government may authorize any Selected Officer or class of Officers in charge of a Forest Division the power to authorize the destruction of useless records.

(vii)

These Rules apply to Conservator's Office as well as to Divisional Offices. (See also Rule 40-A in Section XIII, chapter I of the Bihar and Orissa Account Code.)

83.

Register of distribution of books.

- A register of the distribution of books and circulars etc. will be kept in Form No. 22.

84.

List of correspondence to be sent to Forest Officers when on tour.

- When the Conservator or any Divisional Forest Officer is absent on tour, a list in Form No. 23 of all documents received in his office will be sent to him daily or as frequently as he may direct with all papers necessary for his orders.

85.

Register of forest buildings.

(1)

A register of all forest buildings in Form No. 29 is to be maintained in every divisional office, one page being allotted to each building and when applying for sanction to the writing off of a building the Divisional Forest Officer should provide full particulars of the building. The annual sanctioned amount for repairs of each building should only be shown in the Register of buildings while the actual cost of repairs of each building should be shown on a separate comparative statement in the annexed Form given below. -

Register showing the expenditure incurred annually on the maintenance of building in.....Division.

Sl. No.

Name of buildings.

Sanctioned cost of annual repairs

Year

Year

Year

Ordinary

Special

Total

Ordinary

Special

Total

Ordinary

Special

Total

1

2

3

4

5

6

7

8

9

10

11

12

(2)

Register of land. - A register of land (other than forest) owned or occupied by the Forest Department (e.g. land used for forest roads, forest building sites etc.) is to be maintained in the annexed Form in every divisional forest office.

Register of land (other than forest) owned or occupied by the Forest Department

Serial No.

Purpose.

1. Area in acres

...

...

...

...

2. Situation

...

...

...

...

3. Description of boundaries

...

...

...

...

4. Method of demarcation

...

...

...

...

5. Date when acquired or leased

...

...

...

...

6. Method of tenure -

Whether rented, if so amount of rent, free of rent, other terms.

7. Subsequent Addition or modification;

The following instructions should be followed in preparing the register:-

(i)

The headings should be written horizontally.

(ii)

The register should be bound as the Register of Reserved and Protected Forests, and the index should be classified under the three main heads-A. Compounds, B. Roads and C. Miscellaneous, e.g., plantation sites, depots etc. Separate serial numbers should be given to the lands, entered under each of the above heads, a page or more being devoted to each serial number.

(iii)

In all cases areas in the possession of this Departmental should be shown on the 16' = 1 mile cadastral sheets of the settlement maps which should be properly attested. The sheets of the settlement maps in question should be kept in a folder or in a map almirah with a note in the register that the maps are in the folder or almirah giving the number of the sheet and the collection in which to be found.

(iv)

A special folder or map almirah should be made and copies of settlement maps showing out properties should be kept in it.

(v)

The Settlement Department is likely to give one plot number to the whole road running through a village. If within one village a road bearing one plot number is held by the Forest Department under different methods of tenure, the different sections should be shown on the maps as (a), (b) etc. to indicate the different kinds of tenure.

(vi)

Each Range Officer should have a register giving records of lands in his range, the maps to be filed in the range register being copies of maps in the Divisional Register.

86.

Capital and Revenue Accounts of residential buildings.

- The Government considers that it is desirable to maintain a Capital and Revenue account of forest buildings on the same lines as those maintained in the case of buildings which are on the books of the Public Works Department. The Chief Conservator of Forests and the Conservator of Forests will open in their offices, a Capital and Revenue Register and will forward annually a copy of the entries contained therein to the Superintending Engineer to enable that officer to exercise a check on the assessment of rent. (Abstract from letter No. 7124 R. dated 28th October, 1913 from the Revenue Secretary, Government of Bihar and Orissa).

It is not considered that the Civil Account or Public Works Code either expressly directs or intends that residential buildings of the Forest Department shall be brought on the books of the Public Works Department.

Capital and Revenue Accounts should be prepared in the form attached for non-Public Works Department residential buildings, the cost of which exceeds Rs. 5000 for each residential quarters and submitted to the Accountant General, Bihar every year not later than 31st July each year. In the case of residential buildings whose capital cost cannot be ascertained from records, the [A. G's Circular No. 374 dated 25th May 1926 and No. 38 dated the 8th July, 1926] present estimated value there of may be taken as the capital cost.

The rates of interest given in the following table should be applied in calculating the standard rent of residences and filling in the column 13 of the return.

Date of acquisition or construction of the residence.

Rate of interest

Buildings occupied on or before the 19th June 1922.

Buildings occupied after the 19th June 1922.

Before 1st April 1919

1st April 1919 to 31st July 1921..

1st August 1921 to 31st December

1921

From 1st January 1922 until further orders

3 ½ per cent.

3 ½ per cent.

3 ½ per cent.

6 per cent.

4 per cent.

5 per cent.

6 per cent.

6 per cent.

Note. - The date of construction referred to in column of this table should be taken as the date on which the accounts of the estimate for the construction of the residence are closed. In respect of expenditure on additions and alterations to residences the interest should be calculated at the rate applicable on the date on which the accounts for the estimate for the additions and alterations are closed.

Capital and Revenue Accounts of residences and their subsidiary services for the year

Locality.

Serial no.

Particulars of buildings.

Capital outlay to end of year under report.

Cost of value of site including expenditure on its preparation which has not been taken into account in calculating the standard rent.

Capital cost of-

Building excluding site.

Water-supply and sanitary installation.

Electric installation.

Total

1

2

3

4

5

5(a)

5(b)

5(c)

5(d)

Number of years for which revenue accounts have

been kept.

Annual allowance of maintenance

Actual expenditure on maintenance

Interest on capital outlay to end of year under report (column 4) or rent payable by Government.

Total annual cost to Government, i.e., total of columns 12 and 13.

Ordinary.

Special

Municipal and other taxes payable by Government.

During year.

To end of year under report.

Average per annum.

6

7

8

9

10

11

12

13

14

Standard rent per annum calculated under

Rent realised during the year

Remarks

(1) Information as to whether the particular occupant pays rent under Fundamental Rules 45A and 45B.(2)

Explanations of short realization.(3) Reference to orders

fixing, special rents, rates, etc.(4) Explanation of excess

of average annual maintenance charges over the amount permissible (columns 7 and 8)

Date from which it is operative.

Fundamental Rule 45A.

Fundamental Rule 45B.

Monthly rate.

Number of months.

Amount.

15

16

17

18

19

20

21

87.

House Rent

, Government of B. & O., F Department, No. 1889-F., dated 26th February 1923, and No. 3584-F., dated 11th April 1923, 1629-F.R., dated 17th June, 1932. - The Officers of the classes named below are exempted from payment of rent for Government quarters occupied by them:-

1. (i) Ministerial officers drawing not more than Rs. 60 a month who are employed as Range clerks in Forest Ranges. [Government of Bihar and Orissa, Finance Department, Letter No. 1629-F.R., dated the 17th June, 1932.]

(ii)

All members of the Subordinate Forest Establishment of whatever designation and pay.

2. In the case of clerks (not subject to any special Rules or orders) drawing pay up to Rs. 125 a month rents are limited to 5 per cent, of their pay.

(Government of Bihar and Orissa, Public Works Department, Circular No. 1170-A/IVR-1 of 1922, dated 23rd January, 1922.)

3. Bengal P.W.D. Circular No. 24-A., dated 20th October 1905. Government Order No. 2807, dated 8th November 1905.

- When an officer continues to occupy a house after it has been purchased by Government for official residence, rent should be recovered at the rate paid to the former landlord subject to the usual limit of 10 per cent on the salary and local allowance of the officer occupying the house, pending the approval of Government to the rent assessed by the Superintending Engineer.

Note 1. - Government quarters as used in this Rule include as well houses leased by Government.

Note 2. - The Gazetted Officers of the Forest Department, whether on duty or on recess, are allowed to occupy the forest rest-house at Doranda (Ranchi), free of rent, up to a limit of 10 days subject to the condition that occupation should be treated as continuous where an interval of seven days or less intervenes between two or more periods of occupation.

88.

Quinquennial reports and maps to illustrate the same. Inspector-General of Forests Circular No. 1010, dated 9th November 1897.

- Forest maps are to be appended to all Provincial Forest administration Reports once in every five years, with effect from the quinquennial period commencing with the year 1898-99. Similarly every fifth year the Conservator's letter covering the annual report will give a short resume of progress made in forest administration during the preceding five years.

89.

Nomenclature of plants in Forest Administration Reports and other reports and publications.

- When vernacular or popular names are used, the scientific names should invariably be given in brackets also. When possible, the English equivalent or trade name should be given as well. Specific names of plants should always be spelt with a small initial letter.

All scientific, vernacular and trade names (except those that have been anglicised, such as mango and teak) must be printed in italics.

Examples: - *Sitsal* (*Dalbergia latifolia*) (Bombay black wood, Indian rosewood), but teak (*Tectona grandis*).

90.

Rules for supply of stationery.

- The supply of stationery is regulated by a fixed, book credit, which is distributed by the controlling officer to the indenting officer by annual allotment. All articles of stationery, including drawing material, type writers and their accessories, brass seals, dating machines and rubber stamps will be obtained from the stationery office, Gulzarbagh, in accordance with the rules for the supply of articles of stationery in Bihar and Orissa.

To enable the Conservator to make suitable alterations from year to year Divisional Forest Officers should submit (not later than the 15th March) a value forecast for the ensuing indent explaining differences from the value of the previous year's indent; the Conservator will then intimate the allotment for each division on the 15th April. Indents must be prepared in accordance with the Rules for the supply of stationery and the regular annual indent is due to reach the Conservator's office not later than the 1st of May.

Supplementary indents should rarely be necessary and should be accompanied by an explanation.

91.

Rules for Supply of Printed Forms.

- The Forest Department Code Forms will be obtained by indent on the Government of India Central Forms Stores, Calcutta. The indenting officers will send a copy of the indent for these forms to the Deputy Superintendent in charge, Press and Forms Department, Gaya and will also inform him of the receipt of the forms.

[Out of three copies of invoices received from the Central Forms Stores, Calcutta, for the supply of the Forms, one copy will be kept by the indenting officers and the remaining copies will be forwarded to the Deputy Superintendent in charge of Press and Forms, Gaya, the cost of the forms will be debited to the Forms Department, Bihar, by the

Accountant-General, on its acceptance of the debit. All other Forms will be indented for from the Forms Department, Bihar, in accordance with the Rules for the supply and custody of printed Forms in Bihar. (Government of Bihar, Finance Department, Letter No. 3761-F., dated the 13th April, 1939)]

[Substituted vide C.S. No. 89, dated 10.1.1940.]

Chapter-VIII Transfer of Charge

92.

Transfer of charge, General.

- On the occasion of transfer of charge arrangements must be made by the two officers concerned that the relieving officer is placed in such a position as will enable him to carry on the duties of which he has taken charge in an efficient manner, and with as complete a knowledge of the property entrusted to his charge, the works in progress and all arrangements made in connection with them, as the circumstances of the case admit.

93.

Transfer Report.

- A transfer report signed by the relieved and the relieving officers will, on the day of transfer, be submitted to the Conservator in the case of a transfer between two Conservators and to the State Government in the case of the transfer of the Chief Conservator's Office. The relieved officer will report the transfer of Divisional charge to the officers in charge of the treasuries on which he is authorised to draw cheques and bill, at the foot of the report; send a specimen of the relieving officer's usual signature in order that the, treasury officers may satisfy themselves as to the validity of the cheques presented by the relieving officer.

94.

Examination of accounts and vouchers outstandings and liabilities.

- The relieving officer must see that all office books are posted upto date, and in the case of cash and stock accounts that the needful vouchers of receipts and issues belonging to the accounts of the current month are made over to him. The relieving officer will make himself acquainted with all outstandings and liabilities on account of the department, and state that he has done so.

95.

Cash.

- (i) The cash book will be closed and the cash balance will be counted in the presence of both officers who will sign the book.

(ii)

A certificate (in Form No. 24) will be made out in quintuplicate and signed by both officers. These Certificates will be forwarded to the Conservator, Chief Conservator or the State Government and the original will be submitted to the Accountant General, Bihar (See Article 52 Civil Account Code).

96.

Timber and forest produce.

- In the case of a transfer between two Divisional Officers the Relieving Officer will take over charge of all timber, bamboos, and other forest-produce for which a certificate, in a Form similar to that prescribed in Rule 154 (as per Government Publication, Rule 95 herein) for cash, will be submitted.

97.

Other properties.

- Besides cash, timber, and forest-produce, the following are the main classes of property which ordinarily form the subject of transfers between Divisional Officers:-

(1)

Demarcated reserves.

(2)

Plantation.

(3)

Timber depots and revenue stations.

(4)

Buildings, roads and bridges.

(5)

Live-stock.

(6)

Machinery, stores, instruments, and tools.

(7)

Books and maps.

(8)

Office records.

(9)

Office furniture.

98.

Examination of property by Relieving Officer.

- (i) In the transfer report, the relieving officer should state by what means he has satisfied himself of the nature and condition of the different classes of property of which he has taken charge.

(ii)

Live and dead stock and other articles which may be at headquarters as well as books and maps, office records, and office furniture should, as a Rule be personally inspected by the relieving officer at the time of transfer, and the fact of this having been done should be stated.

(iii)

In the case of property at a distance from headquarters the register and other documents in which they are described should be examined.

Chapter IX

Inspection Report

99.

(i)

Government are pleased to prescribe the following standard of inspection to be done by superior Forest Officer's.

(a)

inspection of Conservator's offices. - Each Conservator of Forests should, as far as possible, inspect the office of each Conservator once a year.

(b)

Inspection of Divisional office. - Each Conservator of Forest should as far as possible inspect the office of each Divisional Forest Officer once a year.

(c)

Inspection of Range office. - Each Divisional Forest Officer should inspect each Range office once a year.

(ii)

Apart from holding regular inspections according to the standard prescribed above, all Divisional Forest Officers should also pay surprise visit to and hold surprise check of the subordinate Forest Offices and Forest Blocks, within their respective jurisdictions. (Revenue Department No. C/F2401/59/-796 R, date March 1959).

(A)

The following is the Inspection report Form for the Inspection of Conservator's Office by the Chief Conservator of Forest. (Revenue Department No. C/F. 2403/59-1504 Rt, dated August 28, 1959.)

Period of Inspection

I. Inspection report Form for inspection of Conservator's office. - Office Building.

(a)

Owner

(b)

Rent

(c)

Condition and General suitability.

(d)

Furniture.

II. Records-

- (a)
Live and dead stock:
 - (i)
Stock register of stores, tools and plant.
 - (ii)
Yearly store return.
 - (iii)
Purchase of furniture.
 - (iv)
Condition of instruments.
- (b)
Cash account.
 - (i)
Cash balance
 - (ii)
Establishment pay bill.
 - (iii)
Register of cheques.
 - (iv)
Budget control book.
- (v)
Register of administrative sanction to capital projects.
- (vi)
Contractors' and Disbursed Ledger. - Form No. 63 of revenue outstandings.
- (vii)
Audit objections, their nature if due to carelessness culpable irregularities brought to notice; unnecessary work thrown on the Controlling officer by intention to objections.
- (viii)
Progress of submission of Divisional Account.
- (c)
Office business:
 - (i)
Register of uniforms.
 - (ii)
Register of cases.
 - (iii)
Register of books and maps.
 - (iv)
Register of receipts and issues of correspondence.
 - (v)
Destruction of useless documents.
 - (vi)
Neatness in keeping office records.
 - (vii)
Punctuality in correspondence.
 - (viii)
Register of disposals of letters received from Government and Chief Conservator of Forests.
 - (ix)
List showing the dates of receipt of Chief Conservator of Forest's letters and date of disposal.
- (x)

Custody of stationery.

(xi)

Stock book of stationery.

(xii)

Stock book of forms..

(xiii)

Means taken to ensure preservation of records, maps etc.

(xiv)

Reference books if corrected up to date.

(xv)

Register of correction slips.

(xvi)

Service books and character roll.

(xvii)

Register of service stamps.

(xviii)

Security deposit register and pass books.

(xix)

Casual leave register.

(xx)

Contingent bill register.

(xxi)

Maintenance of Type writer-machine Cord. (Rule 121 of the Bihar Stationery Manual).

(xxii)

Capital and Revenue accounts of residences.

III. Personal. -

(i)

Officer in charge.

(ii)

General state of discipline in office.

(iii)

Efficiency of each member of the establishment.

(iv)

Adequacy of establishment.

(v)

Working hours.

(vi)

Irregularities.

(vii)

Complaints.

IV. Inspections. -

(i)

Tours and Forest Inspection by the Forest Officer.

(ii)

Progress of Development works.

(iii)

Corruption and malpractices detected amongst the forest staff and disciplinary action taken.

(iv)

General comments

(B)

Inspection report Form for inspection of Divisional Forest Officer. - The following is the Inspection report for the

inspection of the Divisional Forest Offices by the Conservator;

I. Office Building:

(a)

Owner

(b)

Rent

(c)

Condition and general suitability.

(d)

Furniture.

II. Records:

(a)

Management and working of Forests.

(i)

Detailed record of Reserved, and protected Forests and unclassified State lands.

(ii)

Maps of the Reserved, protected and other forests.

(iii)

Control book and register of out-turns.

(iv)

Forest Journals.

(v)

Compartment History.

(vi)

Plantation Journals.

(vii)

Control maps.

(viii)

Fire protection maps.

(ix)

Records of fires.

(x)

Register of sample and 1 experimental plot.

(xi)

Depot register of receipts and disposals of timber etc.

(xii)

Register of standards,

(xiii)

Register of receipts.

(xiv)

Sales of timber and other produce cut and collected by Government agency.

(xv)

Account of timber cut, collected and removed by consumers or purchasers.

(xvi)

Revenue demands and outstandings.

(xvii)

Particulars of items outstanding and unadjusted for over one year.

(xviii)

Progress of revenue of the division.

(xix)

Register of free grants and Register of produce removed by right holders (when kept).

(xx)

Register of seizure and disposal of forest produce and other property.

(xxi)

Register of revenue received in advance.

(b)

Live and deadstock.

(i)

Stock register, tools and plant.

(ii)

Yearly store returns.

(iii)

Purchase of Furniture-their quality.

(iv)

Condition of instruments.

(c)

Cash Account.

(i)

Cash balance.

(ii)

Establishment pay bills.

(iii)

Register of cheques.

(iv)

Budget control book.

(v)

Contractors' and Disbursers' Ledger. - Form No. 63 of revenue outstandings.

(vi)

Audit objections, their nature if due to carelessness, breach of rules, culpable irregularities brought to notice; unnecessary work thrown on the controlling officer by intention to objections.

(vii)

Progress of audit of Divisional Accounts.

(d)

Office business

(i)

Register of uniforms

(ii)

Register of cases.

(iii)

Register of books and maps.

(iv)

Destruction of useless documents.

(v)

Neatness in keeping office records.

(vi)

Punctuality in correspondences.

(vii)

Register of disposal of letters received from Government and Chief Conservator of Forests.

(viii)

List showing the dates of receipt of Chief Conservator's letters and date of disposal.

(ix)

Custody of stationery,

(x)

Stock book of stationery.

(xi)

Stock books of forms.

(xii)

Means taken to ensure preservation of records, maps etc.

(xiii)

Reference books if corrected up to date.

(xiv)

Register of correction slips.

(xv)

Service books and character rolls.

(xvi)

Register of service stamps.

(xvii)

Security deposit register and pass books.

(xviii)

Abstracts of forest offences committed in right-burdened forests.

(xix)

Casual leave register.

(xx)

Contingent bill register.

(xxi)

Maintenance of Typewriter Machine Card.

(xxii)

Capital and Revenue-Account of residences.

III. Personnel

(i)

Officer in charge.

(ii)

General state of discipline in office.

(iii)

Efficiency of each member of establishment.

(iv)

Adequacy of establishment.

(v)

Working hours.

(vi)

Irregularities.

(vii)

Complaints.

(C)

Inspection of Range Offices. - The items of inspection for Range Offices by the Divisional Forest Officers are the matters marked (viii) in (B) above and the following:-

(i)

Register of graziers.

(ii)

Circular files and standing orders

(iii)

Diary

(iv)

Dak-book.

(D)

Audit of offices by the Accountant-General. - Article 149 of the Constitution of India empowers the Auditor-General to audit and report on all expenditure from the revenue of the States and to ascertain whether money shown in the accounts as having been disbursed were legally available for and applicable and whether the expenditure conform to the authority which governs it (b) to audit and report all transactions of the States relating to deposits, sinking funds, advances, suspense accounts and remittance business; (c) to audit and report on all trading, manufacturing and profit and loss accounts etc. maintained by any Department of the State the receipts of any Department, the account of Stores and Stock kept in any office or Department and (d) and to give such information and assistance to the Central Government or the Government of State as may be required for the preparation of their annual financial statements.

In view of the above, the Accountant General Bihar has the authority in auditing the accounts of the offices of the Chief Conservator of Forests, Bihar, Conservator of Forests and the Divisional Forest Officers (Revenue Department letter No. C/F-2033/58-191RT dated 13th August, 1958).

Chapter-X Miscellaneous

100.

Scale of Furniture for use of Forest Officers on tour.

- As most of the forests are equipped with Rest Houses and Subordinates' rest sheds, the need of tents will not often arise; where tents are necessary the scale of camp furniture should not ordinarily exceed the following. (Government Order No. 2915-IIIF-56 R, dated the 26th March, 1931 and C.C.F.'s Letter No. 1148 dated the 9th February, 1961).

Designation of officers

Sanctioned scale

Chief Conservator of Forests,

4 camp folding (office or dining) chairs.

Deputy Chief Conservator of Forests and Conservator of Forests.

1 camp folding long chair.

2 camp folding (dining) tables,

1 camp folding (office) table.

1 camp folding teapoy.

1 bath tub.

1 camp commode with pan.

2 chamberpots.

1 camp folding wash hand table with basin

All Dy. Conservator of Forests. Working Plans Officers and

Assistant Working Plans Officers

3 camp folding (office or dining) chairs.

1 camp folding long chair.

1 camp folding (dining) table.

1 camp folding (office) table,

1 camp folding teapoy.

1 bath tub.

1 camp commode with pan.

2 chamber pots,

1 camp folding wash hand table with basin.

Assistant Conservator of Forests and Extra. Assistant

Conservator of Forest attached to Divisions.

3 camp folding (office or dining) chairs.

1 camp folding long chair

1 camp folding (dining) table.

1 camp folding (office) table.

1 camp folding teapoy.

1 bath tub.
1 camp commode with pan.
2 chamber pots.
1 camp folding wash hand table with basin.
1 camp folding (office or dining) chairs.
1 camp folding (office or dining) table.
1 camp folding teapoy.

1 bath tub.
1 camp commode with pan.
Camp Clerks, Surveyors and Draftsman.
2 chamber pots.

1 camp folding wash hand table with basin.
Forest Rangers and officer-in-charge of Ranges.
2 camp folding office chairs
1 camp folding office table.
1 camp folding (office) chair.
1 camp folding (office) table.

Tents. - (i) The Chief Conservator of Forests has power to sanction the purchase of tents of different sizes or description up to a limit of Rs. 5000/- in each case within the limit of his budget allotment.

(ii)

All tents are provided with salitas and they should always be wrapped up in their salitas for transport and storage.

(iii)

Special care of tents to avoid damages from whiteants and damp is necessary and officers and their subordinates will be personally held responsible for the proper care of the tents issued to them when not in use, tents and their equipment should be properly stored on ants-proof-racks and should be frequently examined and aired when not in use.

(iv)

A tent is expected with repairs to last in efficient condition for ten years.

(v)

A record should be kept showing the date of purchase and full description of each tent with accessories that has been or is hereafter purchased. The tent should bear a distinguishing number and the date of purchase.

(vi)

When a tent is proposed to be condemned as useless the Divisional Forest Officer will personally inspect the same and attach with his proposal a certificate of unfitness, in the following Form for the orders of the Conservator of Forests. When tents of under ten years use are proposed to be condemned the reasons must be fully and specially stated.

Certificate

Certified that I have personally examined the undermentioned tent and I find its condition as under:

In my opinion the tent should be condemned/is fit for use for a further years.

Circle number of the tent.

Type and design of tent

Size

Year of purchase

Condition

(vii)

all condemned tents of any value should be sold, perfectly useless tents should be destroyed by fire or otherwise. The sale proceeds of old tents are to be credited to Government.

101.

Scale of furniture in the residences of Forest Officers.

- The following is the sanctioned scale according to which furniture may be supplied to officers of the Forest Department free of rent, for doing office work in their residence (Government letter No. 1104. R, dated the 3rd February 1931 and Chief Conservator's No. 1148 dated 9th February 1961 to the Government).

Designation of officers

Sanctioned scale

Chief Conservator of Forests.

1 Secretariat table.

Dy, Chief Conservator of Forests.

2 Writing tables.

2 What-not.

1 Book-shelf.

1 Chair: revolving.

1 Chair: easy.

12 Chairs ordinary.

1 Teapoy.

1 Stool.

1 Almirah.

1 Waste paper basket.

1 Stationery Cabinet.

1 Small Durree.

1 Iron safe.

1 Petromax.

Conservator of Forests.

1 Writing table.

2 What-not.

3 Chairs.

1 Book-shelf.

1 Teapoy.

1 Almirah.

1 Waste paper basket.

1 Small Durree.

Divisional Forest officer (Territorial and non-territorial).

1 Writing table.

1 What-not.

3 Chairs.

1 Teapoy.

1 Waste paper basket.

102.

Rules for occupation of Forest Rest Houses (Forest inspection Bungalows).

- The Rules for the occupation of Forest Department Inspection Bungalows in Bihar & Orissa are as under:-

1. These Rules shall apply to all Forest Department Inspection Bungalows with the exception of those for which special rules may be prescribed.

2. Forest Department Inspection Bungalows are intended primarily for the accommodation of the Gazetted Officers of the Forest Department on tour, and such officers have the prior right to occupy them. The nature of a Forest Officer's duties frequently entails a lengthy stay in a locality and the period during which such officers may occupy a bungalow, free of rent, is not limited, except by order of the Conservator of Forests.

3. Subordinates of the Forest Department may not make use of a Forest Department bungalow without the written sanction of the Divisional Forest Officer.

4. An Officer of the Forest Department may temporarily occupy any of the bungalows as a residence, if such a course is considered by the Conservator to be absolutely necessary for the proper performance of his duties. But an officer so occupying a bungalow, containing more than one main room shall vacate one room required by another officer of the Forest Department on duty.

5. (i) A Forest Department bungalow may be occupied by Gazetted Officers of Government, other than Forest Officers, when travelling on duty, without payment of rent, provided as follows: -

(1)

The bungalow is not required for occupation by an officer of the Forest Department on duty.

(2)

The bungalow is vacated immediately on requisition being made by an officer of the Forest Department intending to occupy it while on duty.

(3)

When the period of occupation is intended to exceed, or does exceed ten days, the consent of the Divisional Forest Officer must be obtained in writing and rent will be charged for the period in excess of ten days at the rate specified in Rule 9 (a).

(ii)

The Officers of the N.C.D.C. and the Forest Department are allowed to occupy Forest Rest House and N.C.D.C. Rest House respectively, while on duty, on reciprocal basis (Government of Bihar Forest Department No. C/ F-16048/68-3073-V dated 27th/28th August, 1968).

(iii)

The Officers of the Central Government while travelling on duty and occupying Forest Department Bungalows will be charged rent at the rates specified in Rule 9.

(C.C.F. Bihar memo No. 1824/32 dated 25.5.1943).

6. Divisional Forest Officers are authorised to sanction the occupation of Forest Department Inspection Bungalows, under the rules applicable to other Gazetted Officers, by non gazetted officers other than of the Forest Department, travelling on duty temporarily for a specified time, and by name in each case.

7. Gazetted Officers, other than Forest Officers, not travelling on duty and non-officials may temporarily occupy a Forest Department Bungalow only with the written permission of the Divisional Forest Officer who will fix the period of such occupation, subject to the conditions laid down in Rule 5. They will be liable for rent at the rates specified in Rule 9.

8. Divisional Forest Officers are competent to reserve accommodation for intending occupants, in cases where accommodation has not been previously reserved under written order of the Divisional Forest Officer in whose charge the bungalow is. The senior of the two Officers of other Departments, travelling on duty, is allowed preference. It is, however, contemplated that preference will ordinarily be exercised with caution and that in any case it will not be exercised between sunset and sunrise.

Touring officers are advised to ascertain from the Divisional Forest Officer incharge of the bungalow whether accommodation will be available at the time desired.

9. The following rates of rent will be charged:-

(a)

For occupation under Rules 5 and 6 for every day after the 1st ten days Re 1/-.

(b)

For occupation under Rule 7, Rs. 5/- per room per day or part thereof exceeding 3 (Three) hours but if the period of occupation is not more than three hours, Re. 1/- per room.

(c)

For the below noted Forest Rest House, Lodges and Cottages the scales of fees for occupation under Rule 7 for one suite of rooms for every twenty four hours or part thereof is as indicated against each.

(i)

Rajaderwa F.R. House.... Rs. 10/- (Rupees ten) only.

(ii)

Cottage No. 1 (Haz. N. Park) Rs. 8/- (Rupees eight) only.

(iii)

Cottage No. 2 (-do-) Rs. 8/- (Rupees eight) only.

(iv)

Tourist Lodge (-do-) Rs. 5/- (Rupees five) only per room. Besides Rs. 21/- (Rupees two) per head will be charged for each additional occupant.

(v)

Canary F.R. (House....Rs. 10/- (Rupees ten) only.

(vi)

Kodarma F.R. House Rs. 8/- (Rupees eight) only.

(vii)

F. R. House at Betla.... Rs. 8/- (Rupees eight) only.

(d)

In the Tourist Rest House at Betla, Palamu National Park, the rent of a suite of rooms would be Rs. 15/- (Rupees fifteen) only per day. Government servants and Ministers occupying the Tourist Rest House will also pay at the same rate.

(e)

Rupee 1/- (one) per day for the period during which a non-official occupant's belongings remain in the bungalow in the absence of their owner. This does not apply to the class of occupiers noted in Rules 2 and 5.

(f)

The following rates for electric consumption will be charged from the occupants of the Forest Rest House provided with electricity:-

(i)

50 paise per day per suite of rooms from the 15th March to 15th October.

(ii)

25 paise per day per suite of rooms from the 15th October to 14th March.

(iii)

If the period of occupation is not more than 3 hours, half of the above rates will be charged. (Forest Department Memo No. AJF-7057/ 68-2451 V, dated 6th/8th July, 1968).

Note 1. - The first day of occupation shall be reckoned as 24 hours from the time of arrival. Every subsequent period of 24 hours shall count as one day. In reckoning the total rent to be charged, any uncompleted day shall be charged as a full day.

Note 2. - Husband and wife, when occupying a Forest Department Inspection Bungalow shall be charged separately though they may be occupying only one room and not using more than one bed. [C.S. No. 91 dated 10.1.1940].

A visitor's book will be kept in each bungalow in which every person occupying the bungalow shall immediately, on arrival, enter his name, designation or full address and the date and time of his arrival, and before departing, the date and time of his departure and the amount paid. The book should be shown by the Chaukidar to the Officer-in-Charge of the bungalow at such intervals as the Conservator prescribes for the purpose.

10. Officers or others who may occupy forest bungalows are required to keep and leave them clean. If they have no servants of their own or cannot themselves arrange for doing this, they will pay the Chaukidar of the bungalow paise 25 for each day or a portion of a day in addition to the usual fees, and the latter will arrange to keep the bungalow clean and be responsible that it is kept clean.

11. All persons occupying forest bungalows must make their own arrangements for obtaining water, fuel and supplies. The bungalow Chaukidar is not to be employed for the purpose.

12. A list showing the valuation of each article of furniture, crockery, glass etc. shall be hung up in the bungalow. The price of any article lost or broken and the cost of repairing any article damaged by an occupant or his servants should be paid to the Chaukidar and the fact recorded in the visitor's book.

13. No person suffering from any infectious or contagious disease may occupy any Forest Department Inspection Bungalow.

103.

Recess (B. & O. Government Letter No. 355 R.T. IIF-186, dated the 23rd June, 1921).

- The Conservator may, in the interest of the public service, summon or permit to come to his headquarters for not more than two months in the period 1st June to 31st October, any officer of the Indian Forest Service or any officer of the Bihar Forest Service subject to the following conditions:-

(a)

That the work of the Forest Department will not suffer by the absence of the Officer from his ordinary charge.

(b)

That no extra expenditure to Government is caused (Officers must defray their own travelling expenses as well as the travelling allowance of any clerks that they take with them.)

Exception. - An officer of the Indian Forest Service is entitled to travelling allowances at the ordinary rates when he is allowed by the Conservator of Forests to come to Ranchi from the Saranda, Kolhan and Porahat Forest Divisions for the

recoupment of his health provided the Officer obtains a medical certificate from the Civil Surgeon that a change is necessary in the interest of his health. The officer will not be entitled to any halting allowance for the period spent at Ranchi and nor will he be exempted from payment of rent for his residential bungalow at his headquarters for that period. (Government Order No. 1537-R.T. - IIF-244, dated the 2nd-5th September, 1922).

(c)

That any Officer shall be liable to be recalled at any time, and, when so recalled, shall bear all charge of his journey to headquarters.

Note. - The interest of the public service, for the purpose of this Rule includes the safeguarding of the health of the Officers of the Forest Department.

104.

Visit of Forest Officers to Forest Research Institute

, (Circular No. 13F-190-1, dated 3rd July, 1912, from the Government of India.). - I am directed to invite a reference to paragraphs 1 (b) and 3 of this Department's Circular no. 7-190-24-F., dated the 24th April 1911, dealing with Resolution no. XIII passed by the Board of Forestry in March 1910, in which it was recommended that selected forest officers should be allowed to visit Dehra for the study of any particular subject in which they desire to carry out research work. It will be seen that the matter was left over for further consideration. Two years have now elapsed since the Board of Forestry made their recommendation, and during this time the work at the Forest Research Institute has made great progress. The Government of India consider it is of great importance that all Gazetted Forest Officers should be in touch with the Research Institute and keep themselves acquainted with the work and investigations which are in progress there, and, though deputations for special duty have not yet been arranged for, they will be glad to see all promising officers encouraged to pay short visits to Dehra of, say, ten days or a fortnight, during which time they would be able to inspect the Museums, the Chemical Laboratory, and the Herbarium. They would thus gain a general knowledge of the investigations which have been and are being undertaken-and of the widespread effects that these may be expected to have on the silvicultural treatment of the forests and on the development of forestry in general.

2. Should it be considered desirable that an officer should pay a more extended visit to Dehra for some particular purpose or with some special object, e.g., to consult the herbarium in connection with the preparation of a local 'Flora' it will be open to local Governments to allow him to do so and the President, Forest Research Institute, will endeavour to give him every facility for prosecuting his inquiries. During such period of deputation officers would receive their full pay and allowances, and may be allowed travelling allowance to and from Dehra Dun, but no daily allowance during halt there. The most convenient time for such visits would be during the monsoon-duty to October-and I am to suggest that with the permission of His Honour the Lieutenant-Governor, any Forest Officer who wishes to do so, and who it is considered would profit by such visits, may after consultation with the President, Forest Research Institute and College, be allowed to visit Dehra on duty for the purpose set forth above.

105.

Hire of Government Elephants.

- When Government elephants are used by an Officer for the carriage of articles for which, if they were carried on a cart, he would have to pay the hire of that cart, a charge of Rs. 2 per diem shall be made for each elephant so used; but as for instance, where an elephant carries personal luggage as well as articles, the property of Government, Re. 1 per diem shall be charged for each elephant. When an Officer goes out on inspection or other such duty in tracts where it is impossible for him to travel except on an elephant, no charge at all need be made for that elephant.

106.

Recovery of costs of Management of private Forests

, (B. & O. Government Letter No. 876-IIF-116-R.R., dated 15.9.1930). - The following orders of Government are issued with regard to the recovery of costs of Management of private Forests under Section 38(1) of the Indian Forest Act, 1927.

1. Where Government undertake preliminary investigation of the Forests without stipulating for payment, the position will not be altered by the fact that the inquiry did not result in any reservation of forests either because the proposals were unwelcome to the proprietor or because the Forest Officer reported the forests to be unsuitable.

2. The question whether land-owners who ask the Forest Department to inspect or advise about their forests should be asked to pay for these services should in each case be considered on its own merits. While Government realize that the circumstances of small land-holders who would feel the expense, but who are anxious to do the best for their forests,

may require that Government should give these services free of charge, they do not see any reason why the provincial exchequer should pay for expert advice tendered to wealthy land-holders who are quite capable, and probably willing to pay for the services of an expert. The Commissioner of the Division concerned should therefore be consulted in the first instance whether the expert advice should be paid for, or given free in any particular case, and the case should then be submitted to Government for orders.

3. With regard to the question whether any and, if so, what recoveries should be made from the owners of private estate forests for the services of a Forest Officer required for a short period to carry out, initiate or demonstrate some technical work, such as surveying, marking, etc., in forests under the management of a Court of Wards or otherwise, the decision of Government is that in all such cases (whether any addition is made to the regular establishment or not) the pay and allowances of the officers deputed for such works, together with contributions for their leave-salary, pension and passage should be recovered in full. The rate of recovery will be those prescribed in the Government of India, Finance Department, Letter No. F.L.XI-RI/29, dated the 4th September, 1929, in the case of the officers who are governed by the Fundamental Rules, and in the Bihar and Orissa Service Code Rule 368 read with Rule 359 and Appendix 19 in the case of those governed by the Service Code.

When such recoveries are made, the portion representing pay and allowances should be taken as reduction of expenditure under exception (I) to Rule 3 of Appendix 10A to the Audit Code, Volume II, and that representing leave and pension contributions should be credited as revenue under VIII-Forests and XXXIII-Receipts in aid of superannuation under the said rule 3 and foot note (80) in Appendix 7 to the Audit Code as amended by Correction Slip No. 130, dated the 2nd February, 1930.

107.

Medical Attendance.

- [Government Notification No. 2255-M.R., dated the 12th October, 1920 as amended by Notifications No. 967-L.S.-G., dated the 20th January 1923, No. 2385-L. S.-G.R, dated the 26th July 1923, No. 5504-L. S.-G., dated the 6th June 1924, No. 5787-L., S.-G., dated the 1st June 1928, No. 7144-L. S.-G., dated the 31st July, 1928 and No. 3404-L. S-G, dated the 11th March, 1929]. The following Rules are prescribed for the grant of free medical attendance and supply of medicine in Bihar and Orissa.

1. Every Government servant is entitled to receive for himself free medical attendance, and such medicines as are available in the hospital or dispensary at which he is being treated under every circumstance, whether at his own or at another station, whether passing through his own or another district, and whether on duty or on leave.

Note 1. - Every person employed under the Court of Wards, who is appointed by Government but is paid from the funds of the Wards Estate, shall be entitled to receive free medical attendance and medicines in those cases only in which the service counts for pension under the Civil Service Regulations. Road Cess Officers are also entitled to gratuitous medical attendance and medicines.

Note 2. - A Government servant on foreign service, who has no Medical Officer provided by his foreign employer, is entitled, in accordance with his status, to the services of the Government Medical Officer of the station in or near which he is employed. A Government Officer of Gazetted rank employed on foreign service who is not provided by his employer with a medical attendant of Gazetted rank, shall be entitled to the same concession.

2. The privilege of free medical attendance shall ordinarily include the free supply of medicine.

3. Every Civil Officer of Government is entitled to receive the personal attendance of a Medical Officer in accordance with the following classification: -

Class.

Entitled person.

Appointed Medical Officer.

1

2

3

A.

Officers of Government whose monthly salary, as defined in the Civil Service Regulations, is not less than Rs. 300 whether their appointments are gazetted or not.

Civil Surgeon.

B.

Officers of Government whose monthly salary is less than Rs.

300.

Assistant Surgeon or failing an officer of this rank,

Sub-Assistant Surgeon.

Note 1. - Officers in superior service are entitled to attendance at their own residences unless distance renders this impracticable. Officers in inferior service and the servants of Government employees can claim free medical attendance and medicine at the local general hospital or dispensary only.

Note 2. - In all cases of emergency or great danger or difficulty, the attendance of the Civil Surgeon shall be given to persons not ordinarily entitled to it when applied for by the subordinate medical attendant.

Note 3. - Medical Officers in charge of dispensaries maintained or aided by local bodies shall attend free of charge Government servants on duty or on leave residing in the town or village in which the dispensary is situated. This concession does not apply to families of Government servants for attendance on whom fees may be charged.

4. On the grounds of humanity, and irrespective of strict right to his services, every Medical Officer shall attend without delay to a sick call in any case of emergency and, after having given such aid or advice as the circumstances demand, may transfer the further treatment of the case to the proper medical attendant.

5. In the case of a Government servant entitled to free medical attendance who is seriously ill, the local Medical Officer in attendance is permitted to obtain the aid of another Medical Officer in consultation by moving the Inspector-General of Civil Hospitals to depute another Medical Officer for the purpose. In deputing a Medical Officer the Inspector-General of Civil Hospitals shall pay due regard alike to considerations of propinquity and to the interests of the patient.

Note. - In a case of real or special urgency, a Medical Officer may, however, call in another Medical Officer, in anticipation of orders from the Inspector-General of Civil Hospitals, to whom the action taken should be reported without delay.

6. At places where a Government Medical Officer has not been specially appointed for attendance on Government servants residing in a particular area, the Assistant or Sub-Assistant Surgeon in charge of the nearest sadr, subdivisional or mufassal hospital or dispensary is liable to attend gratuitously on such Government servants as are entitled to free Medical Attendance from a Medical Officer of his status. No fee should be demanded by such Assistant or Sub-Assistant Surgeon in any circumstances from any Government servant entitled to his attendance.

7. If a Government servant knowingly calls in a Medical Officer other than the appointed Medical Officer, it will be considered a private arrangement and the former may claim the usual fees.

8. If an officer at the headquarters of district entitled to the service of the Civil Surgeon calls in, with the cognizance of the Civil Surgeon, the Assistant Surgeon, he shall be liable to pay the latter a fee only if he was warned at the outset of this liability.

9. No scale of fees has been prescribed for medical attendance on the families of Government servants. To prevent any subsequent misunderstanding, a definite arrangement should be made in such cases on the first occasion that the medical officer is called in. In the absence of a special agreement or contract on the basis of a yearly payment, it will be fair to assume that the Medical Officer's professional services are to be remunerated by the visit.

10. Every patient attending at a charitable hospital or dispensary is entitled to receive advice and medicines free of charge.

108.

Pasteur Institute.

- The following Rules are prescribed regarding the grant of concessions to Government servants and indigent persons in Bihar proceedings to the Pasteur Institute at Patna for treatment. (Government Order No. 8708 L.S.G. dated 22nd July 1929 and No. 10200-L.S.G. dated the 11th October 1930.)

Government Servants

1. Any Government servant who has been bitten by a rabid animal may be granted special casual leave not exceeding one month to enable him to proceed to the Pasteur Institute at Patna provided that his absence does not necessitate the appointment of a substitute.

2. The additional concessions noted below may be granted for the same purpose to Government servants who have been bitten by a rabid animal and whose substantive pay does not exceed the several limits specified: -

(i)

Government servants drawing not less than Rs. 100 and not more than Rs. 500 may be granted-

Concession A. In the case of an Officer whose absence necessitates the appointment of a substitute, upto one month, leave on average pay, which will not be debited against his leave account.

Note:- During the one month's extra leave on average pay granted under this concession the leave salary of a Government servant in inferior service will not be subject to the usual condition of their being no extra expense to Government.

Concession B. An Advance of one month's substantive pay.

Concession C. An Advance sufficient to defray their actual travelling expenses to Patna and back, namely-

- (a)
A single fare each way by railway of the class by which they are entitled to travel on duty; and
(b)

For journeys by road, boat or steamer, the actual cost of transit not exceeding the amount admissible under the rules laid down for journeys performed on tour in the rules framed by the local Government.

The sums thus advanced under concessions B and C will ordinarily be recovered in three equal monthly instalments. But in cases of hardships they may at the discretion of the authority sanctioning the advance be recovered in more than three but not more than twelve equal monthly instalments.

- (ii)
Government servants drawing more than Rs. 25 but less than Rs. 100 a month may be given the following two concessions (D and E) in additions to concessions A and B above :-

Concession D. Grant of actual travelling expenses to Patna and back, namely a return fare by railway of the class by which they are entitled to travel on duty and the actual cost, of transit for journeys by road, boat or steamer not exceeding the amount admissible to them on duty.

Concession E. In cases where the Government servant who has been bitten is a man who is by reason of age or other sufficient cause, incapable of travelling alone, or a woman, the despatching officer may allow an attendant to accompany the patient to the institute and back. In special cases more than one attendant may be allowed, e.g., when the patient is a woman and in addition to one attendant is compelled to take one more children with her. The travelling expenses of such attendant or attendants will also be paid on the scale allowed for Government servants in concession D above and in addition, wages-for the attendant or attendants not exceeding 25 paise a day be paid by the despatching officer in cases where he is satisfied that the patient is unable to pay the daily expenses to the attendant or attendants.

- (iii)
Government servant drawing not more than Rs. 25 a month may be given the following two concessions (F and G) in addition to concession A, B, D and E above:-

Concession F. A grant of daily allowance at the rate admissible to officers of third or fourth grade (as the case may be) for the period during which they are under treatment at the institute and for the period spent in the Journey to and from the Institute.

Concession G. In case where an attendant or attendants is or are allowed to accompany the patient to the institute daily allowance for the attendant or attendants on the scale allowed for the patient in concession F above may be paid in addition to the travelling expenses and wages allowed in concession E above.

3. The concession of the foregoing Rule may be allowed to the Government servants without a lien on permanent post who are officiating in a permanent or temporary post provided that their tenure of the appointment is expected to last for a period sufficient to enable the necessary recoveries to be made.

4. All officers of the Civil Veterinary Department of whatever class are treated as on duty for the purpose of pay, travelling allowance, leave and pension for the period covered by their journeys to and from the Institute and their residence there for treatment, subject to the proviso that this concession is admissible only to an Officer who comes into contact with a rabid or suspected animal, while actually discharging his official duty. But they are not eligible for Concession C.

5. Families of Government servants. - Any Government servant whose substantive pay does not exceed Rs. 500 a month may, if a member of his family is bitten by a rabid animal and he has difficulty in finding at once the means of sending him or her to the Pasteur Institute at Patna, be given an advance of one month's substantive pay as in Concession B and of the travelling expenses to the institute and back of the person bitten as in Concession C. If his substantive pay does not exceed Rs. 100 a month an advance of travelling expenses for an attendant or attendants

where necessary may also be given at the rate sanctioned for the patient subject to the same conditions of recovery as for concessions B and C. If his substantive pay does not exceed Rs. 50 a month or if in the opinion of the Commissioner of the Division or the Head of the Department special circumstances exist which warrant the grant of an extended concession to a person drawing a substantive pay of not more than Rs. 100 a month the recovery of the amount advanced as travelling expenses may be waived in full or in part.

6. Person unconnected with the public service. - Any indigent person unconnected with the public service who in the opinion of any officer authorised to grant the concession is unable to proceed to the Pasteur Institute at his own expense may be granted travelling expenses on the following scale:-

(a)

Single third class fare by rail, and the actual expenses of journey by road, boat or steamer to Patna and back.

(b)

Daily allowance at the following daily rates. - Europeans and Anglo Indians Rs. 1 during the journey and Rs. 2.50 during treatment; Indians 31 paise during the journey and 31 paise during treatment.

(c)

Indigent person including women, children under 16 years of age, and men who are, by reason of age or other sufficient cause, incapable of travelling alone may be allowed one attendant to accompany them to the institute except in special cases, e.g. when the patient is a child unable to travel without the mother or other woman in charge who also requires an attendant or when the patient is a woman and in addition to one attendant is compelled to take one or more children with her, more than one attendant may be allowed the cost being borne by the fund to which the charges on account of the patient are debited. Such attendant or attendants may be granted the travelling expenses and daily allowance at the rate sanctioned for the patients and also wages not exceeding 25 paise a day, in cases where the despatching Officer is satisfied that the patient is unable to pay the daily expenses of the attendant or attendants.

7. The Superintendent of the Pasteur Institute may make payments to indigent person who come to the institute at their own expense but are unable to maintain themselves there or to pay for their return journey. Such payments will be calculated on the scale prescribed in Rule 6(a) and (b) above and will be charged to the Government of Bihar, the expenditure being debited to the head "47 Miscellaneous charges-Miscellaneous charges for the treatment of patients at the Pasteur Institute".

8. Power to grant concessions. - The following Officers and all Officers of superior rank to them in their respective departments and officers are empowered to grant the concessions referred to in the preceding rules except the daily allowance and return journey charges which will be paid by the Superintendent of the Institute and will be charged to the Government of Bihar as indicated in Rule 7 and to authorise the immediate departure for Patna of any Government servant or indigent person unconnected with the public service :-

Department

Designation of officer.

Empowered to grant concession in respect of

Remarks

1

2

3

4

5. Forest Department

Forest Officers in charge of Division.

Own subordinates only

10. Heads of Departments

All Gazetted Officers,

Own subordinates only

9. The patient will be required to bring back with him a certificate from the Superintendent of the Pasteur Institute and produce it before the officer under whose orders he was sent for treatment.

10. Vaccine for anti-rabic treatment may be supplied on requisition from the Civil Surgeon of the district for residents outside the Pasteur Institute at Patna and its centre at Cuttack on payment. A standard charge of Rs. 10 will be made for sufficient vaccine for each case.

11. All rabies patients from Bihar should be sent for treatment to the Patna where is a centre for such treatment. The above rules regarding concessions to Government servants and indigent persons for treatment in the Pasteur Institute at Patna apply mutatis mutandis to Patna".

109.

Travelling Allowance to candidates for an appointment

, (Government Letter No. 496-538 F.R., dated 8.6.1928). - (i) No travelling allowance is allowed for interview with Selection Boards appointed to select recruits for the regular services.

(ii)

Candidates summoned to interview by Selection Boards in connection with special posts are not allowed travelling allowance save in exceptional circumstances and with the sanction of Government previously obtained. In such case the travelling allowance admissible is restricted to a return railway fare.

(iii)

Grant of travelling allowance to Government servants summoned for an interview with a view to being selected for an appointment under the Government of Bihar should be regulated as follows:-

(1)

When a Government servant appears for an interview before a selecting authority to whom the application of the Government servant has been forwarded after a definite act of selection in his department as required under any Rule or specific orders. Travelling allowance admissible, Railway:- Actual railway fare of the class admissible to Government servants of the grade, but limited to the return fare when return tickets are available.

Road:-When the journey or part of the journey has necessarily to be performed by road, actual cost limited to the normal road mileage admissible to Government servants of that grade.

(2)

When a Government servant applies for another post and his name is sent up as a matter of course by his superior officer who is not called upon to exercise any act of selection before sending the application.

No travelling allowance will be admissible.

(Finance Department No. 1146 F.R., dated the 8th August, 1941 vide C.S. No. 185 dated 19.6.1942).

110.

Appointment of Indian non-commissioned officers as Rangers.

- The following Rules are prescribed for the entry into the Forest Department as Rangers of Indian non-commissioned officers of His Majesty's Indian Army and Indian State Forces.

A. Indian non-commissioned officers of His Majesty's Indian Army.

1. Any such officer who is recommended for the purpose by his Commanding Officer may apply to a Conservator of Forests* in the province in which he desires to be employed for permission to follow the course of instruction in the Ranger class at the Forest, College, Dehra Dun, with a view to securing after successfully passing through the College and obtaining a certificate, an appointment as Forest Ranger in the Subordinate Forest Service.

* Conservator of Forest, Bengal, Darjeeling.

Conservator of Forest, Assam, Shillong.

Conservator of Forest, United Provinces.

Eastern Circle, Naini Tal.

Western Circle, Naini Tal.

Kumaon Circle, Naini Tal.

Working Plan Circle, Naini Tal.

Conservator of Forest, Punjab.

Eastern Circle, Lahore.

Western Circle, Lahore.

2. The Conservator to whom application is made must be satisfied -

(a)

that the candidate will not be more than 30 years of age when he enters the college;

(b)

that he has been sufficiently well-educated, especially in Mathematics and English to be able to follow the college course, with advantage, and to obtain a Ranger's certificate; and

(c)

that he is of good constitution and active, habits, and possesses fair ability and powers of observation as well as such physical qualifications as are required for a good Forest officer.

3. If the conditions in the preceding rule are satisfied and the candidate is accepted by a local Government for an appointment in the Subordinate Forest Service, he may be admitted to the College and be allowed to receive from the deputing authority the stipend and travelling allowance admissible to Government probationary students under Rules 14 and 15 of the Ranger's course rules. While at the College, with the exception that he need not attend drills, he will, in all respects, be subject to the Rules for the time being in force a copy of which can be obtained from the President of the Forest Research Institute.

4. On obtaining a certificate at the conclusion of the Ranger's course, the candidate will be eligible to be appointed as Ranger. On being so appointed, he will be subject, as regards future promotion, to the regulations of the Forest Service for the time being. As regards other conditions of service, the candidate will, after the expiry of the period of three months' absence from his unit, be transferred to the India Unattached List under the conditions laid down in Regulations for the Army in India, Appendix XXVII, paragraph 29. On obtaining an appointment in the Forest Department if he elects to remain on the Unattached List, his pension will be assessed under Pay and Allowance Regulations of the Army in India, Part II, paragraph 598. If he elects to take his discharge from the Army, his pension will be regulated under Articles 356 and 357 of the Civil Service Regulations, and he will also be permitted to count 12 months of his period of instruction at the Forest College as service for pension under those Regulations.

B. Indian non-commissioned officers of the Indian State Forces.

1. An Indian non-commissioned officer of the Indian State Forces shall be eligible for admission to the Forest Department as Ranger provided he can obtain a nomination for an appointment under a local Government or Administration.

2. Rule 4 of the Rules above, so far as it relates to conditions of military service, will not apply to candidates from the Indian State Forces.

3.

These Rules do not apply to the provinces of Madras, Bombay and Burma.

(Government of India, Department of Education, Health and Lands, Resolution No. 506-F, dated the 19th April, 1928.)

111.

Out break of disease among Cattle.

- The following instructions should be observed by Forest Officials on the outbreak of disease among cattle in the Reserved or in the Protected Forests. [Government Letter No. 1197-IIIF-275-R.R., dated 24.10.1930.]

1. Forest subordinates should report immediately to the nearest thana officer any outbreak of cattle disease.

2. Forest Officials should give every assistance to the Veterinary Officer in dealing with the outbreak.

3. Forest Officials should do their best to induce the owner or grazier to bury the carcass of any animal that has died of disease.

112.

Civil suits and prosecutions against Government Officers.

- The Rules for the conduct of civil suits instituted by or against Government and the Rules for the prosecution of criminal charges and for the payment of fees to Government pleaders for conducting such cases on behalf of Government are contained in the Bihar & Orissa Practice and Procedure Manual.

113.

Agreement with Forest Department exempt from stamp duty

, (Extract from Government of India, F. Department (Central Revenues) Notification No. 6 (Stamps) dated the 12th September, 1931). - The following Agreements made with the Forest Department are exempt from stamp duty payable under Stamp Act-

(1)

Agreement or security bond required to be executed under the Rules to regulate the training and appointments in the Subordinate Forest Service by a student and his surety previous to his entry into a Forest School or College in India.

(2)

Instrument in the nature of a conveyance by the Government of standing trees or any other forest produce in a Government forest; and also the following Instruments:-

(i)

Contract for the collection of minor produce, bark etc.

(ii)

Contract for felling and removing trees.

(iii)

Contract for the collection, removal and disposal of stock in coupes subject to obligation to coppice and clear the area.

(iv)

Contract for purchase of timber or firewood to be felled or cut departmentally.

(v)

Contract of the usufruct of trees and topes.

(vi)

Contract for the felling or cutting and purchase of timber or firewood.

(vii)

Kancha or grazing lease.

(viii)

Agreement for felling and conversion of timber.

(ix)

Agreement for right to collect seigniorage on minor produce brought for sale by hill Tribes.

(x)

Agreement for cultivation under the Taungya system in reserved or protected forests.

(xi)

Agreement for hunting, shooting or fishing in reserved or protected forests.

114.

Rewards for destruction of wild animals.

- The Rules regarding the scale of rewards for the destruction of various classes of wild animals are contained in the Bihar Treasury Manual.

Notifications

With reference to Notification No., dated published under Section of the [Indian] Forest Act 1927 (XVI of 1927)] at page.....of the Government Gazette of the.....declaring the.....forest to be a Reserved Forest.....is pleased to direct that the following amended and more accurate description of the boundaries of the said forest be substituted for the description contained in the said notification.

Related AI tags, queries and research notes

Translation